

In re S. Bradley Mell

No. 26-16834-EJO (Bankr. D.N.J.)

Hearing: July 16, 2026

Appendix to Opposition to Motion to Dismiss

Volume IVb — Criminal & Federal Record (Part 2)

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Tab D-3

Tab D-3

Mell Memorandum to Roberts — State v. Mell, Corrected
Attachments

Dear Mr. Roberts,

I hope this letter finds you well. My name is Bilal Khan, and I am a paralegal with experience in federal criminal law, including district court, appellate, and Supreme Court practice. I have written two books for federal defendants (Surviving Pretrial: The Ultimate Survival Guide to Being Busted & Prosecuted by the Feds and The 2255 Motion Handbook) and have been featured twice on Ready for Sentencing, the sentencing mitigation podcast by attorney Douglas Passon.

I want to emphasize that my only goal here is to assist in whatever way might be helpful. I have advised Brad that his best course of action is to proceed with counsel, and I fully respect that you are the one leading this effort. I also understand that resources—especially when assigned through public channels—are often stretched thin, and I just wanted to offer any research or analysis that might be useful in moving things forward. Please let me know if there is anything I can do to be of help. I appreciate your time and consideration and look forward to your thoughts.

Best regards,

Bilal Khan

INTERNAL MEMORANDUM

TO: Michael B. Roberts, Esq

FROM: Bilal Khan, Paralegal

DATE: February 13, 2025

RE: Motion to Withdraw/Vacate Plea in State v. Mell

Introduction

This memorandum details the legal and factual basis for filing a motion to withdraw or vacate Steven Mell's New Jersey state plea under NJ Court Rule 7:6-2(b). Mell's plea was expressly conditioned on federal acceptance of his plea agreement in United States v. Mell, but that condition was never met. When the federal court rejected Mell's plea agreement, his automatic right to withdraw was triggered, but he was never given the opportunity to exercise that right. The failure of Mell's counsel, the State, and the court to ensure that his withdrawal option was exercised constitutes a manifest injustice that requires correction under Rule 7:6-2(b). Because Mell's ability to withdraw was never time-barred, the strongest legal approach is to first seek plea withdrawal through this motion. If that fails, post-conviction relief (PCR) should be pursued based on ineffective assistance of counsel, due process violations, and sentencing in absentia.

Issue

Whether Steven Mell is entitled to withdraw his New Jersey state plea under NJ Court Rule 7:6-2(b) due to manifest injustice, where:

1. His plea agreement expressly permitted withdrawal if the federal court rejected his agreed-upon 60-month sentence, a condition that was triggered but never effectuated.
2. The plea agreement contained no expiration date for withdrawal, and Mell was never informed of the federal rejection in time to exercise his right.
3. Mell was incarcerated at FCI Allenwood at the time of his state sentencing, with no knowledge of the procedural steps necessary to invoke withdrawal, and neither his counsel nor the court ensured that he had an opportunity to do so.
4. Mell's state sentencing proceeded in absentia, despite prior representations that arrangements would be made for him to participate remotely, resulting in a due process violation.

5. The court and the State failed to conduct an on-the-record voir dire to determine whether Mell knowingly and voluntarily waived his right to withdraw the plea.

Given these procedural failures and constitutional concerns, should the plea be vacated under Rule 7:6-2(b) to prevent manifest injustice?

Facts

On May 13, 2019, Mell entered a guilty plea in New Jersey state court. His plea was expressly

conditioned on the federal court's acceptance of his 60-month plea agreement in *United States v. Mell*. The plea agreement stated:

"The acceptance of the Fed Rule 11(c)(1)(C) plea terms by [federal] District Judge Brian Martinotti at the time of sentencing. If Judge Martinotti does not accept the terms of the Fed Rule 11(c)(1)(C) plea, defendant may take back this plea and anything defendant says in furtherance of this guilty plea cannot be used at trial" (*State v. Mell Plea Agreement Forms*, May 13, 2019 at 5).

At the time, Mell's federal plea agreement called for a 60-month sentence, which he formally entered in federal court on December 20, 2018. On May 17, 2019, Judge Brian Martinotti rejected Mell's federal plea agreement during a chambers conference with counsel. Mell was not present at this conference and was not informed of the rejection until a month later.

The rejection of the federal plea automatically triggered Mell's right to withdraw from his state plea, but no action was taken on his behalf. Neither his attorneys nor the court took any steps to inform Mell or to initiate withdrawal proceedings. Instead, Mell's attorneys proceeded as if nothing had changed and negotiated a new federal plea agreement for 84 months, which Mell accepted and was sentenced under on June 17, 2019.

By the time Mell's New Jersey state sentencing took place, he was incarcerated at FCI Allenwood in White Deer, Pennsylvania. At that point, Mell had no knowledge of the procedural steps necessary to invoke his contractual right to withdraw. Mell's attorneys did not initiate a legal call to discuss his withdrawal rights, nor did they file any motion on his behalf. Mell had no way of knowing he needed to take procedural action to enforce his withdrawal right while incarcerated. Given the importance of the withdrawal right, the court and the State should have conducted an on-the-record voir dire to confirm Mell's decision before proceeding with sentencing.

Adding to this procedural failure, Mell was never notified of his state sentencing date. His New Jersey attorneys had told the court that they would work with the Bureau of Prisons to allow Mell to appear remotely:

"We will contact the Bureau of Prisons to determine their capabilities to accommodate the request" (*State v. Mell Plea Hearing*, May 13, 2019 at 10:19-23).

Mell's understanding was that he was waiving only his physical presence, not his presence entirely. No remote access was arranged, and he was sentenced in absentia without his knowledge or participation.

Rule

Under NJ Court Rule 7:6-2(b), a court may grant a motion to withdraw a plea before or after sentencing if necessary to correct a manifest injustice.

The New Jersey Supreme Court in *State v. Slater*, 198 N.J. 145 (2009), established a four-factor test to determine whether plea withdrawal is justified:

1. Assertion of innocence. Mell indeed asserts legal innocence regarding whether he "debauched" the alleged victim. Under New Jersey law, the age of consent is 16 years old (N.J.S.A. 2C:14-2), and Mell has indicated that he did not engage in any sexual relations with the alleged victim until she had reached the age of consent. Given this, Mell's plea was not an admission to conduct that was necessarily criminal under state law. Furthermore, Mell never had any legal duty or responsibility over the alleged victim and was never in a position of trust or authority as defined under New Jersey law. The relationship was openly acknowledged, ratified, and condoned by the alleged victim's parents, further negating any suggestion that he exercised undue influence or coercion. Additionally, Mell's federal conviction does not contradict his assertion of innocence under New Jersey law. The federal statute under 18 U.S.C. § 2256 defines a minor as anyone under 18 for purposes of child pornography offenses, regardless of whether the conduct itself was legal under state law. Because child pornography offenses are strict liability crimes, his federal conviction does not inherently establish that he engaged in any illegal sexual conduct under New Jersey law. Furthermore, while Mell was convicted

federally for possession of child pornography, that conviction does not contradict his claim of innocence regarding the state charge. The federal statute under which he was convicted, 18 U.S.C. § 2256, defines a minor as anyone under 18 for purposes of child pornography offenses, regardless of whether the conduct was legal under state law. Because child pornography offenses are strict liability crimes, his federal conviction does not inherently establish that he engaged in illegal sexual conduct under New Jersey law. Thus, it would appear Mell has a legitimate basis for asserting legal innocence, distinguishing his case from those where a defendant merely regrets their plea or seeks withdrawal for strategic reasons. This factor, combined with the failure of the State and his counsel to ensure he could invoke his right to withdraw, strongly supports granting the motion under *State v. Slater*, 198 N.J. 145 (2009).

2. Nature and strength of the reasons for withdrawal. The plea agreement explicitly allowed withdrawal if the federal judge rejected the plea, yet Mell was never given an opportunity to exercise that right.

3. Existence of a plea bargain. The plea was conditional, and because the condition was never fulfilled, the plea should not be enforced.

4. Prejudice to the State. The State knowingly agreed to the withdrawal condition and could have imposed a time limit but did not. It cannot now claim prejudice when it accepted the risk of withdrawal.

Additionally, in *State v. D.M.B.*, Docket No. A-5543-10T2 (App. Div. Jan. 22, 2013), the court reaffirmed that a post-sentencing plea withdrawal requires a showing of manifest injustice. We believe that the manifest injustice standard would be met here. Unlike *D.M.B.*, Mell's case presents a clear contractual right to withdraw that was never effectuated, making his claim particularly compelling.

Analysis

Mell's case presents a strong and unique basis for plea withdrawal. The plea agreement's express condition was not fulfilled, yet Mell was never informed that the condition had failed and was never given the opportunity to exercise his withdrawal right. Because no expiration date was imposed on this right, Mell remains entitled to withdraw his plea now.

The manifest injustice standard is necessary in this case because the fundamental principle behind plea agreements is fairness—a defendant must fully understand the nature of the agreement and be given a fair opportunity to make informed decisions about their rights. A plea agreement that is not honored as written or that is enforced without giving the defendant the ability to exercise a contractual right undermines the integrity of the judicial system and violates due process.

In *State v. Kovack*, 91 N.J. 476 (1982), the New Jersey Supreme Court held that where “the responsible arms of the judicial and law enforcement establishment, together with defendant's own counsel, have misinformed him as to a material element of a plea negotiation, which the defendant has relied on in entering his pleas, as we conclude was here the case, it would be manifestly unjust to hold the defendant to his plea.” This principle applies directly to Mell's case.

Mell's plea agreement contained an express contractual provision granting him the right to withdraw if the federal plea agreement was not accepted. That condition was not met, and yet, neither the court, the State, nor his counsel took any steps to ensure that Mell was given an opportunity to invoke that right.

By the time Mell's New Jersey sentencing occurred, he was incarcerated at FCI Allenwood in White Deer, Pennsylvania, entirely unaware that he was even being sentenced in New Jersey. While Mell was aware by then that his original federal plea had been rejected, what he did not know was that his state plea would still be enforced without giving him the chance to exercise his contractual option to withdraw. If the sentencing hearing was his opportunity to withdraw, as contemplated by the plea agreement, then it is manifestly unjust to deprive him of that right now—given that he was never given the opportunity to invoke it at the time.

This case closely parallels Kovack because, in both cases, the plea agreement was fundamentally altered without the defendant's knowledge. In Kovack, the defendant was misled about a parole ineligibility period, while in Mell's case, he was misled by silence and inaction, depriving him of

his absolute right to withdraw. Just as the Kovack Court found that enforcing the plea under those circumstances was "manifestly unjust," the same conclusion must be reached here. Additionally, Mell's attorneys had previously represented to the New Jersey court that they would arrange for him to appear remotely for sentencing, stating:

➤ "We will contact the Bureau of Prisons to determine their capabilities to accommodate the request." (State v. Mell Plea Hearing, May 13, 2019 at 10:19-23).

That never happened. Instead, he was sentenced without any notice, participation, or ability to exercise his withdrawal right. There was no on-the-record voir dire to confirm whether Mell knowingly and voluntarily waived his contractual right to withdraw, and he was not even given the most basic procedural safeguards that would have ensured he had an opportunity to make an informed decision.

Kovack makes clear that when a plea agreement is not properly implemented, and the defendant is misinformed or left uninformed about a material term of the agreement, enforcing the plea is a manifest injustice. Here, Mell was never given a meaningful opportunity to exercise the very option he bargained for in the agreement. If his sentencing hearing was his one opportunity to withdraw, then it is indisputably unjust to hold him to a plea he was never given a fair chance to withdraw from.

Under Kovack, enforcing Mell's plea under these circumstances would constitute a clear due process violation, requiring relief under Rule 7:6-2(b).

Further, the constitutional violations surrounding Mell's sentencing in absentia reinforce that his plea must be withdrawn. Mell was never notified of his sentencing date. He was led to believe he would participate remotely, yet no arrangements were made. He was sentenced without any inquiry into whether he wished to withdraw his plea.

The failure of both the court, the State, and defense counsel to ensure that Mell knowingly waived his right to withdraw, and to be present at sentencing, therefore supports withdrawal of the plea under Rule 7:6-2(b).

Conclusion

Mell's plea should never have been enforced once his federal sentence was rejected. His attorneys failed to act, the State failed to impose a withdrawal deadline, and the court failed to ensure that Mell was present for sentencing or given the opportunity to formally waive his withdrawal right. These procedural failures constitute a manifest injustice warranting plea withdrawal.

The best course of action is to file a motion to withdraw before pursuing PCR. If the court denies the motion, PCR proceedings should then be initiated to challenge the conviction based on ineffective assistance and due process violations.

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NOTICE: This is a public document, which means the document as submitted will be available to the public upon request.

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County

Prosecutor File Number

New Jersey Judiciary

Plea Form

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Defendant's Name: (' ~ ve/n C, (l ~~

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before Judge: - 1 c l" r?

List the charges to which you are pleading guilty:

GAcc./Comp.# Count Nature of Offense Degree

Statutory Maximum

Max

Time

Your total exposure as the result of this plea is:

2. a. Did you commit the offense(s) to which you are pleading guilty?
- b. Do you understand that before the judge can find you guilty, you will have to tell the judge what you did that makes you guilty of the particular offense(s)?
3. Do you understand what the charges mean?
4. Do you understand that by pleading guilty you are giving up certain rights? Among them are:
 - a. The right to a jury trial in which the State must prove you guilty beyond a reasonable doubt?
 - b. The right to remain silent?
 - c. The right to confront the witnesses against you?
 - d. Do you understand that by pleading you are not waiving your right to appeal (1) the denial of a motion to suppress physical evidence (R. 3:5-7(d)) or (2) the denial of acceptance into a pretrial intervention program (PTI) (R. 3:28(g))?

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@ [No]

@] [No]

[No]

[No]

e. Do you further understand that by pleading guilty you are waiving your right to appeal ~--" [No] the denial of all other pretrial motions except the following: ~

- Victims of Crime Compensation Office Assessment

Main Plea Form/Revised Fann Promulgated by Directive#01-18 (02/23/2018), CN 10079

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S. Do you understand that if you plead guilty:

- a. You will have a criminal record?
- b. Unless the plea agreement provides otherwise, you could be sentenced to serve the maximum time in confinement, to pay the maximum fine and to pay the maximum Victims of Crime Compensation Office Assessment?
- c. You must pay a minimum Victims of Crime Compensation Office assessment of \$1,0 (\$100 minimum if you are convicted of a crime of violence) for each count to which you plead guilty? (Penalty is \$30 if offense occurred between January 9, 1986 and December 22, 1991 inclusive. \$25 if offense occurred before January 1, 1986.)

b. If you are pleading guilty to such a charge, the minimum mandatory extended term is ____ years and ____ months (fill in the number of years/months) and the maximum mandatory extended term can be ____ years and ____ months (fill in the number of

years/months).

8. Are you pleading guilty to a crime that contains a presumption of imprisonment which means that it is almost certain that you will go to state prison?

9. Are you presently on probation or parole? [Yes]

a. Do you realize that a guilty plea may result in a violation of your probation or [Yes] parole?

10. Are you presently serving a custodial sentence on another charge?

a. Do you understand that a guilty plea may affect your parole eligibility?

11. Do you understand that if you have plead guilty to, or have been found guilty on other charges, or are presently serving a custodial term and the plea agreement is silent on the issue, the court may require that all sentences be made to run consecutive l y?

u---ti~t any charges the prosecutor has agreed to recommend for dis1!1-issal:

~/Acc./Compl.# Count Nature of Offense and Degree ~

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13. Specify any sentence the pfusecutor has agreed to recommend:

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8 [No]

[Yes] Q

[Yes] 8

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W [NA]

[No] [NA]

Maio Plea Form/Revised Fonn Promulgated by Directive #01-18 (02/23/2018), CN 10079 Defendant's Initial

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14. Has the prosecutor promised that he or she will NOT:

a. Speak at sentencing?

b. Seek an extended term of confinement?

c. Seek a stipulation of parole ineligibility?

15. Are you aware that you must pay restitution if the court finds there is a victim who has suffered a loss and if the court finds that you are able or will be able in the future to pay restitution?

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[Yes] 6)

[No]

s [No]

[No] [NA]

16. Do you understand that if you are a public office holder or employee, you can be required to forfeit your office or job by virtue of your plea of guilty?

22. Have any promises other than those mentioned on this form, or any threats, been made in [Yes] ~ order to cause you to plead guilty?

record that, based on the circumstances of the case, the offense should be considered a sexually violent offense.

or an attempt to commit these offenses.

I. Registration

a) Do you understand that you must register with certain public agencies? Q[No] 6 [No] b) (I) Do you understand that if you change residence you must notify the law enforcement agency where you are registered, and must re-register with the chief law enforcement officer of the municipality in which you will reside, or the Superintendent of State Police if the municipality does not have a chief law enforcement officer, no less than 10 days before you intend to reside at the new address?

(2) Do you understand that if you change employment or school enrollment status you must notify the appropriate law enforcement agency no later than 5 days after the change? ~

(3) Do you understand that if you fail to notify the appropriate law enforcement agency of a change of address or status you may be charged with a third degree crime, and may receive a sentence of imprisonment of up to 5 years (if the offense was committed on or after July 1, 2014) or you may be charged with a fourth degree crime and may receive a sentence of imprisonment of up to 18 months (if the offense was committed before July 1, 2014)?

c) Do you understand that if you fail to register or re-register you may be charged with a third degree crime and receive a sentence of imprisonment of up to 5 years? 6) [No]

d) Do you understand that you must provide the appropriate law enforcement agency with information about your routine access to or use of a computer or device with Internet capability? (if the offense was committed on or after February 25, 2008) ~ [No]

e) Do you understand that if you fail to notify the appropriate law enforcement agency about your routine access to or use of a computer or device with Internet capability or a change in such use or access, you may be charged with a third degree crime and may receive a sentence of imprisonment of up to 5 years (if the offense was committed on or after July 1, 2014) or you may be charged with a fourth degree crime and may receive a sentence of imprisonment of up to 18 months? (if the offense was committed on or after February 25, 2008 but before July 1, 2014) ~ [No]

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2. Address Verification

a) Do you understand that if you are pleading guilty to aggravated sexual assault, sexual assault, aggravated criminal sexual contact, kidnapping pursuant to 2C: 13-1 c(2) or any attempt to commit any of these crimes and at sentencing the court finds that your conduct was characterized by a pattern of repetitive, compulsive behavior you must verify your address with the appropriate law enforcement agency every 90 days or if the court finds your conduct is not characterized by a pattern of repetitive and compulsive behavior, you must verify your address annually?

[Yes] [No]@

b) Do you understand that if you provide false information concerning your residence or fail to verify your address you may be charged with a third degree crime and receive a sentence of imprisonment up to 5 years (if the offense was committed on or after July 1, 2014) or [No]

a fourth degree crime and receive a sentence of imprisonment of up to 18 months (if the offense was committed on or after March 7, 2007)?

3. Notification

Do you understand that the requirement of registration may result in notification to law enforcement, community organizations, or the public at large, of your release from incarceration or presence in the community?

4. a) Community Supervision for Life (only complete if the offense occurred before January 14, 2004). (If the offense occurred on or after January 14, 2004, the defendant should complete Question 4b, Parole Supervision for Life).

(1) Do you understand that if you are pleading guilty to the crime of aggravated sexual assault, sexual assault, aggravated criminal sexual contact, kidnapping pursuant to 2C: 13-1 c(2), endangering the welfare of a child by engaging in sexual conduct which would impair or debauch the morals of the child pursuant to 2C:24-4a, luring, or an attempt to commit any such offense, the court, in addition to any other sentence, will impose a special sentence of

[Yes]

~[No]

[No] 6)

community supervision for life?

(2) Do you understand that being sentenced to community supervision for life means that: you will be supervised for at least 15 years as if on parole, and subject to conditions appropriate to protect the public and foster rehabilitation, including, but not limited to counseling; Internet access or use; and other

[Yes] [No]@

restrictions, which may include restrictions on where you can live, work or travel?

(3) Do you understand that the restrictions on where you can live may include [Yes] [No]~ restrictions on residing in a home with minor children? '.....2

(4) Do you understand that if you violate a condition of community supervision for [Yes] [No]/[NAT life and you are indicted and convicted for that violation, you may receive a '.....L. sentence of imprisonment of up to 5 years and a special sentence of parole supervision for life (if the violation of the condition occurred on or after July 1, 2014) or you may receive a sentence of up to 18 months (if the violation of the condition occurred before July 1, 2014)?

b) Parole Supervision for Life (only complete if the offense occurred on or after January 14, 2004).

(1) Do you understand that if you are pleading guilty to the crime of aggravated sexual assault, sexual assault, aggravated criminal sexual contact, kidnapping pursuant to 2C: 13-1c(2), endangering the welfare of a child by engaging in Revised Form Promulgated by Directive #04-I 4 (07/31/2014), CN I 0080-English 8 [No] [NA]

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sexual conduct which would impair or debauch the morals of a child pursuant to 2C:24-4a, endangering the welfare of a child pursuant to 2C:24-4b(3), luring or an attempt to commit any of these offenses and the offense occurred on or after January 14, 2004, or violating a condition of a special sentence of community supervision for life if the violation occurred on or after July 1, 2014 the court, in addition to any other sentence, will impose a special sentence of parole supervision for life?

4. b) (2) (only complete if the offense occurred on or after August 14, 2013)

Do you understand that if you are pleading guilty to the crime of child pornography pursuant to N.J.S.A. 2C:24-4b(4) or N.J.S.A. 2C:24-4b(5) or an attempt to commit either of these offenses and the offense occurred on or after August 14, 2013, in addition to any other sentence, and upon motion of the prosecutor, the court shall impose a special sentence of parole supervision of life, unless the court finds on the record that parole supervision for life is not needed to protect the community or deter you from future criminal activity?

[Yes] [No] a.

(3) Do you understand that being sentenced to parole supervision for life means that upon release from incarceration or immediately upon imposition of a

suspended sentence you will be supervised by the Division of Parole for at least

9 [No] [NA]

15 years and will be subject to provisions and conditions of parole, including conditions appropriate to protect the public and foster rehabilitation, such as, but not limited to, counseling, Internet access or use, and other restrictions which may include restrictions on where you can live, work, travel or persons you can contact?

(4) Do you understand that the restrictions on where you can live may include Q [No] restrictions on residing in a home with minor children? \!.....;|

(5) Do you understand that if you violate a condition of parole supervision for life, Q [No] your parole may be revoked and you can be sent to prison for 12 to 18 months ~ for each revocation that occurs while you are being supervised and that the prison term you receive cannot be reduced by commutation or work credits?

(6) Do you understand that if you violate a condition of parole supervision for life Q [No] on or after July 1, 2014, and you are indicted and convicted for that violation, ~ you will receive. a sentence of imprisonment up to 5 years or if the violation occurred before July 1, 2014, you will receive a sentence of imprisonment of up to 18 months and that the sentence you receive could be in addition to any prison term you may receive from the Parole Board for a violation of parole supervision for life?

5. Internet Posting

a) Do you understand that as a result of your conviction your name, age, race, sex, date of birth, height, weight, eye color, any distinguishing scars or tattoos you have, your photograph, the make, model, color, year and license plate number of any vehicle you operate, the street address, zip code, municipality and county in which you reside and a description of the offense for which you are pleading guilty, ~ be publicly available on the Internet?

[NA]

[NA]

[NA]

b) Do you understand that if you are convicted and your conduct was found to be ~[No] characterized by a pattern of repetitive and compulsive behavior your name, age, race, sex, ~ date of birth, height, weight, eye color, any distinguishing scars or tattoos you have, your photograph, the make, model, color, year and license plate number of any vehicle you operate, the street address, zip code, municipality and county in which you reside and a

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description of the offense for which you are pleading guilty, may be publicly available on the Internet?

6. Statewide Sexual Assault Nurse Examiner Program Penalty

Do you understand that if the crime occurred on or after May 4, 2001 as a result of your guilty plea you will be required to pay a penalty of \$800 for each offense for which you are pleading guilty?

7. Civil Commitment

Do you understand that if you are convicted of a sexually violent offense, such as aggravated sexual assault, sexual assault, aggravated criminal sexual contact, kidnapping under 2C:13- ~ 1 c(2)(b), criminal sexual contact, felony murder if the underlying crime is sexual assault, an attempt to commit any of these offenses, or any offense for which the court makes a specific finding on the record that, based on the circumstances of the case, the offense should be considered a sexually violent offense, you may upon completion of your term of incarceration, be civilly committed to another facility for up to life if the court finds, after a hearing, that you are in need of involuntary civil commitment?

Do you understand that if you are pleading guilty to the crime of aggravated sexual assault, Q[No] sexual assault, aggravated criminal sexual contact or criminal sexual contact and the offense ~ occurred on or after July 1, 2002, the court shall impose fine of 1J., OQ?

Do you understand that if the offense was committed on or after July 1, 2014, as a result of ~.Yes]' o] your guilty plea you may be required to pay a Sex Offender Supervision Penalty of \$30 per ~Ll.._ month? -

Do you understand that if the crime occurred on or after April 26, 2005, as a result of your guilty plea you will be required to pay a mandatory Sex Crime Victim Treatment Fund (S.C.V.T.F.) penalty as listed below for each offense for which you pled guilty?

(I) Up to \$2,000 in the case of a 1st degree crime

)Up to\$750 in the case of a 3rd degree crim;---~J

Total S.C. V. T.F. Penalw..j:t=z~:::;!:;'5,:fJ:-.-"\,-

Date: -S/1 3 /(1 ---=71---'-11 ~+--.....=-----

S[No]

Defense Attorney: _____

Prosecutor:

Revised Form Promulgated by Directive #C4-14 (07/31/2014), CN 10080-F.english page 4 of 4

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Therefore, do not enter personal identifiers on it, such as Social Security number, driver's license number, vehicle plate

number, insurance policy number, active financial account number, or active credit card number.

New Jersey Judiciary

Additional Questions for

Certain Sexual Offenses ~ -n (Use if committed on or after December 1, 1998! <> -::c, ~ :).: J7' ~ f!"

These additional questions need to be answered if you are pleading guilty to the offense.

attempt to commit the offense of aggravated sexual assault, sexual assault, aggravated~inatt"§exlf.fl

contact, kidnapping under 2C: 13-1c(2), endangerin the welfare of a child b en a i,::i xu . ~

conduct which would impair or debauch the morals of the child under 2C:24-4a, endan.- t~ L

welfare of a child pursuant to 2C:24-4b(4), endangering the welfare of a child pursuant to 2C:24-4b(5), or

(if the offense was committed on or after February 1, 2018), or leader of a child pomogf~hfnet~rk

pursuant to 2C:24-4.1 (if the offense was committed on or after February 1, 2018) g

1. Do you understand you will be required to submit to a psychological examination [Yes] [No]

by the Department of Corrections the purpose of which is to determine if your

conduct in committing the offense was characterized by a pattern of re~ive

and compulsive ~havior and if it was, whether you are amenable to (will benefit

from) sex offender treatment and you are willing to participate in such treatment?

2. Do you understand if the examination reveals that your conduct is characterized ~. s] [No]

by

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treatment
compulsive
and willing
behavior,
to participate
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such treatment,
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the judge shall, upon recommendation of the Department of Corrections,
sentence you to confinement at the Adult Diagnostic and Treatment Center for
sex offender treatment; however, if the sentence imposed is greater than 7 years,
you will first be confined at a facility other than the Adult Diagnostic and
Treatment Center?

,,,,-----..

3. Do you understand if the court finds your conduct is characterized by a pattern of (e) [No]
repetitive and compulsive behavior and you are unable to sex offender ~
treatment or if you are amenable (will benefit from) but you are not willing to
participate in such treatment, the court will sentence you to a term of
incarceration to be served in another facility which will not provide for sex
offender treatment and in such event, you will not receive commutation time for
good behavior or earn work credits for time served in such other facility?

4. Do you understand you will be able to challenge the findings of the Department of Corrections in a hearing and at that hearing you will have the right to confront
the witnesses against you and to cross examine them and then present evidence
on your own behalf?

5. Do you understand if you are sentenced to the Adult Diagnostic and Treatment
Center ()

a. that any future parole will not be guided by the normal parole guidelines? (~ [No]
Revised Form Promulgated by Directive #01-18, (02/23/2018), CN 11081 page 1 of 2

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5. b. that you will be eligible for release when the State Parole Board, after (~ [No]
receiving a recommendation from a special classification review board, finds (~ ~
you have achieved a satisfactory level of progress in sex offender treatment
and that you will then be released on parole unless the State Parole Board
determines by a preponderance of the evidence that you have failed to
cooperate in your rehabilitation or there is reasonable expectation that you
will violate conditions of parole?

c. that you could spend more time in treatment than you would spend if
sentenced to state prison?

[No]

6. Do you understand that if you are determined to be a repetitive, compulsive sex ([Y _ _ e ~ ~ s])' [No]
offender who is amenable to (will benefit from) sex offender treatment but you (C7
are not willing to participate in such treatment and are confined to a facility other
than Adult Diagnostic and Treatment Center, you will also be subject to the same
parole eligibility terms as contained in section 5 above?

7. Do you understand that if your conduct is not characterized by a pattern of
repetitive, compulsive behavior or you are not amenable to sex offender

treatment you will not become primarily eligible for parole until you have served any mandatory minimum term imposed by the court or one third of the sentence imposed where no mandatory minimum term is fixed and neither term will be reduced by commutation time for good behavior or work credits?

Date: Defen : _ -----,c::...fi,--.,,,,,,-,;::-'::~_.,,,,~==~----- ~

Defense Attorney:

-----:;::=.tr."==-----:....-_-:--'-s:-J-----;::;=-.6--'"-"C"-----

Prosecutor:

---:;,,,,-==--rr-+-----

a female and qualifies for sex offender treatment, she will not be confined at the Adult Diagnostic and Treatment Center but a facility designated by the Commissioner of Corrections where she will receive similar sex offender treatment.

Revised Form Promulgated by Directive #01-18, (02/23/2018), CN 11081 page2 of2

SUPERIOR COURT OF NEW JERSEY
LAW DIVISION, CRIMINAL PART
HUNTERDON COUNTY, NEW JERSEY
INDICTMENT NO. 18-08-00305-I

A.D. # _____

STATE OF NEW JERSEY,)

) TRANSCRIPT

)

v.) OF

)

) PLEA HEARING

S.B.M.,)

)

Defendant.)

Place: Justice Complex

65 Park Avenue

Flemington, NJ 08822

Date: May 13, 2019

BEFORE:

THE HON. ANGELA F. BORKOWSKI, J.S.C.

TRANSCRIPT ORDERED BY:

KATHRYN A. SYLVESTER, ADPD (Office of the Public Defender)

APPEARANCES:

DAVID CULLEY, Assistant Prosecutor, Hunterdon County

Attorney for the State

ROBERT BIANCHI, ESQ. (Bianchi Law Group, LLC)

DAVID BRUNO, ESQ.

Attorneys for the Defendant

Transcriber, Colette Meheski

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2

I N D E X

PAGE

WITNESS

S.B.M.

Examination by the Court 4

3

1 THE COURT: All right. This is the matter of

2 State versus S.B.M., Indictment 18-08-305-I.

3 Appearances, please.

4 MR. CULLEY: Good afternoon, Your Honor.

5 David Culley, Assistant Prosecutor, for the State.

6 MR. BIANCHI: Robert Bianchi on behalf of

7 S.B.M.

8 MR. BRUNO: David Bruno on behalf of S.B.M.

9 THE COURT: All right. And this matter was

10 on for a pretrial conference. I understand that it's

11 going to be a plea. So, sir, I'm going to ask that you

12 be sworn.

13 S. B. M., DEFENDANT, SWORN

14 COURT CLERK: Please state your name and

15 spell your last name for the record.

16 THE WITNESS: S.B.M.

17 THE COURT: All right. And, Prosecutor,

18 before we continue there are -- there is at least a

19 victim in this matter.

20 MR. CULLEY: Yes, Your Honor.

21 THE COURT: Is the victim in agreement?

22 MR. CULLEY: There is one victim. She is

23 here present in courtroom with her family. This day

24 comes pursuant to a global resolution that we've also

25 reached with the federal government. They are aware

4

1 and supportive of that global resolution as long as

2 this plea goes forward today.

3 THE COURT: All right. So, sir, I'm going to

4 ask that you remain standing. I'm going to go through

5 the plea forms with you. If at any time you don't

6 understand something or you wish to speak to your

7 attorneys, please just advise me of that.

8 THE WITNESS: Okay.

9 EXAMINATION BY THE COURT:

10 Q Beginning with the fact that at the bottom of

11 each page there are initials, are they all your

12 initials?

13 A Yes.

14 Q And then there are several pages that call

15 for a signature of a defendant, are all those your

16 signatures?

17 A Yes, they are.

18 Q And did you review this document with your

19 attorneys?

20 A Yes, I did.

21 Q And how did you do it? Did you read it

22 together? Did he read it to you?

23 A He read it to me.

24 Q But the answers -- and you went through it

25 with him?

5

1 A Yes, I did.

2 Q And you followed along?

3 A Yes.

4 Q And the answers that are all circled here,

5 these are all your answers?

6 A Yes.

7 Q And did you answer all of these questions

8 truthfully?

9 A Yes.

10 Q Now, it says here you'll be pleading to Count

11 6 of Indictment 18-08-305-I, which is endangering the

12 welfare of a child, third degree, normally you face up

13 to five years incarceration in State Prison, is that

14 the offense to which you are pleading to?

15 A Yes.

16 Q And as to that offense, how do you plead,

17 guilty or not guilty?

18 A Guilty.

19 Q Are you pleading guilty because you are

20 guilty?

21 A Yes.

22 Q Yes?

23 A Yes.

24 Q Is anyone forcing you to plead guilty?

25 A No.

6

1 Q Has anyone made any promises in return for

2 your guilty plea?

3 A No.

4 Q Now, you are represented by an attorney, have

5 you had enough time to speak with him regarding your

6 decision today?

7 A Yes.

8 Q Has he answered all of your questions?

9 A He has.

10 Q Are you satisfied with his services?

11 A I am.

12 Q Are you under the influence of any substance

13 that would affect your judgment?

14 A No.

15 Q And did he go over all the evidence in the

16 case, as well as any possible defenses?

17 A Yes.

18 Q Are you satisfied with that information that

19 he gave you?

20 A Yes.
21 Q Are you a United States citizen?
22 A Yes.
23 Q Are you presently on probation or parole?
24 A No.
25 Q But you are facing charges elsewhere and
7
1 you've already pled guilty to them?
2 A Correct.
3 Q And you are facing a custodial sentence in
4 regards to that?
5 A Correct.
6 Q Correct, jail time --
7 A Yeah, right.
8 Q -- in regards to that? And you understand
9 that if the plea agreement was silent on the issue, the
10 Court may require that all sentences be made to run
11 consecutively?
12 A Yes.
13 Q All right. Now, do you understand that as a
14 result of this guilty plea you will have a criminal
15 record?
16 A Yes.
17 Q And do you understand that in return for your
18 guilty plea the prosecutor is going to recommend
19 dismissal of Counts 1 through 5 of the indictment and
20 recommend three years State Prison to run concurrent to
21 your federal sentencing, federal sentencing to take
22 place first, which is scheduled for May 21st?
23 A Correct.
24 Q And primary custodial sentence to be the
25 Federal Bureau of Prisons. So you'll be sentenced

8
1 first there. My understanding is you'll be sent to a
2 federal prison, and then ours would run concurrent.
3 MR. CULLEY: That's correct, Your Honor.
4 Q Megan's Law and parole supervision for life
5 to apply. Do you understand all that?
6 A Yes.
7 THE COURT: Is there any restitution being
8 asked for?
9 MR. CULLEY: No, Your Honor.
10 THE COURT: Okay.
11 Q Now, do you understand that this Court isn't
12 bound by that plea recommendation, if I felt that a
13 more severe sentence should be imposed, you can take
14 back your guilty plea and anything you say would not be
15 used against you?
16 A I understand.
17 Q And I see here, I'm looking at Paragraph 21,
18 it says no future prosecutions involving L.C. or E.C.
19 This plea agreement is conditioned on the acceptance of

20 the Federal Rule (L)(c)(1)(C) plea terms by District

21 Court Judge Brian --

22 MR. BRUNO: -- Martinotti.

23 Q -- Martinotti at the time of sentencing. If

24 Judge Martinotti -- is it Martinotti -- does not accept

25 the terms of the Federal Rule (L)(c)(1)(C) plea,

9

1 defendant may take back this plea and anything

2 defendant says in furtherance of his guilty plea cannot

3 be used at trial. Defendant to request waiver of

4 appearance at sentencing in accordance with Rule 3:21-

5 4(b).

6 So, a couple of things, my understanding is

7 that the Federal Rule (L)(c)(1)(C) plea is that if the

8 judge doesn't accept the terms of the plea, feels that

9 a more severe sentence should be imposed, then you can

10 take back your plea there.

11 MR. BRUNO: Correct, Judge.

12 Q And if you take back your plea here, the

13 prosecutor has agreed -- there, the prosecutor has

14 agreed you can take back your plea here --

15 MR. BRUNO: Correct.

16 A Correct.

17 Q -- correct? Is that your understanding, sir?

18 A That's my understanding.

19 THE COURT: Now, the other thing is regarding

20 the waiver of appearance of sentencing, and I raised

21 some concerns in chambers regarding that, specifically

22 regarding the fact that at time of sentencing,

23 especially when Megan's Law and PSL is involved, the

24 Court likes to address the defendant specifically so

25 they are aware of all the conditions.

10

1 However, so I haven't indicated one way or

2 the other whether I would accept your waiver. There's

3 alternatives that might be available if you're in

4 federal prison, perhaps you can appear by video with an

5 attorney there because you always have the right to

6 consult with your attorney. You have a right to speak

7 at sentencing, and the victims have a right to --

8 although I understand they are acceptable to the waiver

9 --

10 MR. CULLEY: Yes, Your Honor.

11 THE COURT: -- they have a right to speak at

12 sentencing and to be heard at sentencing. So all these

13 factors come into play.

14 MR. CULLEY: We understand the Court's

15 concern.

16 MR. BIANCHI: Right, we understand.

17 THE COURT: All right.

18 MR. BRUNO: So, Judge, first, what I will do

19 is see if the Federal Bureau of Prisons can accommodate

20 the video conferencing sentencing. That will be first.

21 If they can't, then myself and Mr. Culley will work

22 together to see legally if it's acceptable, and if not,

23 we'll come up with a way to proceed.

24 Q Okay. So, knowing all that, knowing that

25 that issue has not been totally resolved yet, do you

11

1 still wish to plead guilty today?

2 A Yes.

3 Q All right. So, there are certain other

4 things that I have to go over with you, one is that

5 there is a discretionary fine up to \$15,000 that may be

6 imposed, and there's certain mandatory obligations, \$50

7 VCCO penalty, a transaction fee of up to \$2 each time

8 you make a payment.

9 You must pay a \$75 Safe Neighborhood Services

10 Fund assessment. You must pay a fee of up to \$25 per

11 month if you are on probation, which isn't really a

12 factor here. You must pay a Law Enforcement Officers

13 Training and Equipment penalty of \$30, and you'll be

14 required to provide a DNA sample. Do you understand

15 all of those responsibilities?

16 A Yes, I do.

17 Q Now, going to the additional pages, do you

18 understand that you're pleading guilty to an offense

19 that will require you to register with certain public

20 agencies?

21 A Yes.

22 Q And do you understand if you change

23 residence, you must notify a law enforcement agency

24 where you are registered, must re-register with the

25 chief law enforcement officer of the municipality in

12

1 which you will reside, or the superintendent of State

2 Police if they don't have a chief law enforcement

3 officer, no less than ten days before you intend to

4 reside at the new address?

5 A I understand.

6 Q Do you understand that if you change

7 employment or school enrollment status, you must notify

8 the appropriate law enforcement office agency no later

9 than five days after the change?

10 A Understood.

11 Q And do you understand that if you fail to do

12 so, a change of address or status, you may be charged

13 with a third degree crime and may receive a sentence of

14 imprisonment of up to five years, do you understand

15 that?

16 A I understand.

17 Q Do you understand that if you fail to

18 register or re-register, you may be charged with a

19 third degree crime and receive a sentence of

20 imprisonment of up to five years?

21 A I do.

22 Q And do you understand that you must provide
23 the appropriate law enforcement agency with information
24 about your routine access to or use of a computer or
25 device with Internet capability?

13

1 A I do.

2 Q And do you understand that if you fail to do
3 so or there's a change in such use or access and you
4 fail to notify them, you may be charged with a third
5 degree crime and may receive a sentence of imprisonment
6 of up to five years?

7 A Understood.

8 Q And do you understand if you provide false
9 information concerning your residence or fail to verify
10 your address, you may be charged with a third degree
11 crime and receive a sentence of imprisonment of up to
12 five years?

13 A Yes.

14 Q Do you understand that the requirement of
15 registration may result in notification to law
16 enforcement, community organizations or the public at
17 large of your release from incarceration or presence in
18 the community?

19 A Yes.

20 Q And since this offense occurred after 2004
21 you're -- you will be required to be placed under
22 parole supervision for life because you having pled
23 guilty to endangering the welfare of a child by
24 engaging in sexual conduct, do you understand that?
25 A Yes.

14

1 Q Do you understand that being sentenced to
2 parole supervision for life means that upon release
3 from incarceration or immediately upon imposition of a
4 suspended sentence, you will be supervised by the
5 Division of Parole for at least 15 years, and will be
6 subject to provisions and conditions of parole,
7 including conditions appropriate to protect the public
8 and foster rehabilitation, such as, but not limited to
9 counseling, Internet access or use and other
10 restrictions, which may include restrictions on where
11 you can live, work, travel or persons you can contact?

12 A Yes.

13 Q And do you understand that those restrictions
14 could be also that you cannot reside in a home with
15 minor children?

16 A Yes.

17 Q And do you understand that if you violate
18 conditions of parole supervision for life, your parole
19 may be revoked and you can be sentenced -- sent to

20 prison for 12 to 18 months for each revocation that
21 occurs while you are being supervised and that the
22 prison term you receive cannot be reduced by
23 commutation or work credits?

24 A I understand.

25 Q And do you understand that if you violate
15

1 conditions of parole supervision for life after July
2 1st, 2014 and are indicted and convicted for that
3 violation, you will receive a sentence of imprisonment
4 of up to five years?

5 A Yes.

6 Q Do you understand that as a result of your
7 conviction, your name, age, race, sex, date of birth,
8 height, weight, eye color, any distinguishing scars or
9 tattoos you have, your photograph, the make, model,
10 color, year and license plate number of any vehicle you
11 operate, the street address, zip code, municipality and
12 county in which you reside, and a description of the
13 offense for which you are pleading guilty may be
14 publically available on the Internet?

15 A Yes.

16 Q And do you understand that if you are
17 convicted and your conduct was found to be
18 characterized as a pattern of repetitive and compulsive
19 behavior, those aforementioned factors that I just
20 listed may be publically available on the Internet?

21 A Yes.

22 Q Do you understand that if the crime occurred
23 on or after May 1st, 2001, as a result of your guilty
24 plea, you will be required to pay a penalty of \$800 for
25 each offense for which you are pleading guilty?

16

1 A Yes.

2 Q And do you understand that if you are
3 convicted of any offense for which the Court makes a
4 specific finding on the record that based on the
5 circumstances of the case the offense should be
6 considered a sexually violent offense, you may upon
7 completion of your term of incarceration be civilly
8 committed to another facility for up to the life if the
9 Court finds after a hearing that you are in need of
10 involuntary civil commitment?

11 A I understand.

12 Q And do you understand that if you are
13 pleading guilty -- it doesn't look like that's
14 applicable, it's an endangering, so the surcharge is
15 not applicable, however, the sex offender supervision
16 penalty is, and so you will be required to pay \$30 per
17 month?

18 A Okay.

19 Q And in regards to the Sex Crime Victim

20 Treatment Fund penalty, do you understand that you will
21 be required to pay the mandatory Sex Crime Victim
22 Treatment Fund penalty of up to \$750 in a case of a
23 third degree crime?

24 A Yes.

25 Q Now, because you are pleading guilty to
17

1 endangering the welfare of a child by engaging in
2 sexual conduct, do you understand that you will be
3 required to submit to a psychological examination by
4 the Department of Corrections, the purpose of which is
5 to determine if your conduct in committing the offense
6 was characterized by a pattern of repetitive and
7 compulsive behavior, and if it was, whether you are
8 amenable to, which means willing to benefit from sex
9 offender treatment and you are willing to participate
10 in such treatment?

11 A Yes.

12 Q And do you understand if the examination
13 reveals that you -- that you're characterized by a
14 pattern of repetitive and compulsive behavior and you
15 are amenable to sex offender treatment and willing to
16 participate in such treatment, the judge shall, upon
17 recommendation of the Department of Corrections,
18 sentence you to confinement at the Adult Diagnostic and
19 Treatment Center for sex offender treatment. However,
20 if the sentence imposed is greater than seven years,
21 you will first be confined at a facility other than the
22 Adult Diagnostic and Treatment Center?

23 A Understood.

24 Q And do you understand again if your conduct
25 is characterized by a pattern of repetitive and

18

1 compulsive behavior and you are not amenable to sex
2 offender treatment, or if you are amenable, but you are
3 not willing to participate in such treatment, the Court
4 will sentence you to a term of incarceration to be
5 served in another facility, which will not provide for
6 sex offender treatment, and in such an event you will
7 not receive commutation time for good behavior or earn
8 work credit for time served in such other facility?

9 A Understood.

10 Q And do you understand you will be able to
11 challenge the findings of the Department of Corrections
12 in a hearing and that hearing -- at that hearing you
13 will have the right to confront the witnesses against
14 you and to cross examine them and then present evidence
15 on your behalf?

16 A I do.

17 Q Do you understand that if you are sentenced
18 to the Adult Diagnostic and Treatment Center, that any
19 future parole will not be guided by the normal parole

20 guidelines?

21 A I understand.

22 Q And that you will be eligible for release

23 when the State Parole Board after receiving a

24 recommendation from a special classification review

25 board finds you have achieved a satisfactory level of
19

1 progress in sex offender treatment and that you will

2 then be released on parole, unless the State Parole

3 Board determines by a preponderance of the evidence

4 that you have failed to cooperate in your

5 rehabilitation or there is reasonable expectation that

6 you will violate conditions of parole?

7 A I understand.

8 Q And that you could spend more time in

9 treatment than you would spend if sentenced to State

10 Prison?

11 A Yep.

12 Q And do you understand that if you are

13 determined to be repetitive, compulsive sex offender

14 who is amenable to treatment, but you are not willing

15 to participate in such treatment and are confined to a

16 facility other than Adult Diagnostic and Treatment

17 Center, you will also be subject to the same parole

18 eligibility terms as I just described?

19 A I understand.

20 Q Do you understand that?

21 A Yes.

22 Q Do you understand that if your conduct again

23 is not characterized by a pattern of repetitive and

24 compulsive behavior or you're not amenable to sex

25 offender treatment, you will not become primarily

20

1 eligible for parole until you have served any mandatory

2 minimum term imposed by the Court or one third of the

3 sentence imposed where no mandatory minimum term is

4 fixed, and neither term will be reduced by commutation

5 time for good behavior or work credits?

6 A I understand.

7 Q All right. Now, do you understand also that

8 when you plead guilty you give up your right to a trial

9 in which the prosecutor would have to prove beyond a

10 reasonable doubt that you are guilty of these offenses?

11 A I understand.

12 Q You are also giving up the right to have your

13 attorney cross examine witnesses, present witnesses on

14 your behalf, you're giving up the right to remain

15 silent or to testify at that trial, do you understand

16 all those rights you're giving up?

17 A I do.

18 Q So, knowing everything I just went over with

19 you, first, do you have any questions?

20 A No.

21 Q Second, do you still wish to plead guilty?

22 A Yes.

23 Q Then before I can accept your guilty plea,

24 you will need to tell me -- and I understand that

25 there's an amendment to Count 6 regarding the date to
21

1 be August 2017, is that correct?

2 MR. CULLEY: No objection.

3 MR. BRUNO: Correct, Judge.

4 Q All right. So, so noted that the amendment

5 is made, that on or about August of 2017 in the

6 Township of Readington, in the County of Hunterdon,

7 what did you do on that day which makes you guilty of

8 endangering the welfare of a child, third degree?

9 A Touched her breasts for --

10 Q All right. So, there was an individual

11 identified as Jay Doe in the indictment, is that

12 correct?

13 MR. BRUNO: That's L.C., Judge.

14 THE COURT: All right. It says Jay Doe, but

15 it's L.C.?

16 MR. BRUNO: Yeah, yeah, but for the record

17 stipulate L.C.

18 Q Okay. And you know who L.C. is?

19 A Yes.

20 Q All right. And L.C. was less than 18 years

21 of age at the time?

22 A Correct.

23 Q In August of 2017?

24 A Yes.

25 Q All right. And you were in the Township of

22

1 Readington, County of Hunterdon, and what did you do to

2 L.C.?

3 A I touched her breasts for purposes of self■4 gratification.

5 Q All right. So -- and you agree or admit that

6 touching her breasts -- how old was she at the time?

7 MR. BRUNO: Under the age of 18.

8 THE COURT: Correct, but I'm -- do you have

9 --

10 MR. CULLEY: Your Honor, that's part of the

11 issue here. We're stipulating to the general date. I

12 don't think that the actual age of the victim is

13 relevant to the guilty plea, other than the fact that

14 she was under the age of 18. That's our sticking

15 point.

16 THE COURT: All right. So --

17 MR. BRUNO: Correct. That's our position.

18 Q So, she is under the age of 18 at the time?

19 A Yes.

20 Q All right. And you agree that touching her

21 breasts, a child under the age of 18, that you engaged
22 in sexual conduct?

23 A Yes.

24 Q And you did that for your own sexual
25 gratification?

23

1 A Yes.

2 Q And do you also agree that as a result of
3 your conduct that you impaired or debauched the morals
4 of L.C.?

5 A Yes.

6 MR. CULLEY: I'm satisfied, Your Honor.

7 Thank you very much.

8 MR. BRUNO: No further question from defense.

9 THE COURT: The Court is also satisfied that
10 your testimony does constitute an adequate factual
11 basis, that you're aware of the consequences of
12 pleading guilty and knowingly and voluntarily do, and
13 so I will order a evaluation by the Department of
14 Corrections. You will receive notice at a later date,
15 correct, but I will order same, and then a date of
16 sentencing which has to be after that May date,
17 correct?

18 COURT CLERK: July 12th.

19 MR. BRUNO: That's correct. Your Honor, the
20 purpose of this is for him to actually surrender on the
21 federal sentence and then the state court sentence.
22 That's why I wanted to waive his presence at
23 sentencing.

24 THE COURT: But he will be required to attend
25 the evaluation.

24

1 MR. BRUNO: Understood, Understood. So, we
2 will push back the surrender date on the federal
3 sentence, so that he could actually do the
4 psychological examination at Avenel.

5 THE COURT: Okay.

6 MR. BRUNO: So that's really the first thing
7 that has to happen before he surrenders. Then he'll
8 surrender, and then the state court sentence has to
9 take place thereafter. So I would appreciate the
10 Court's flexibility, so that I alert the Court as to
11 when he surrenders, so we could schedule that sentence
12 thereafter.

13 THE COURT: But it will be shortly after the
14 evaluation?

15 MR. BRUNO: Yes, yes, because I feel that I'm
16 going to have to push back the federal surrender date
17 to allow for the examination as it is.

18 THE COURT: All right.

19 MR. BRUNO: So, it's going to happen quickly.

20 Those three things, Avenel, federal surrender, and

21 state court sentencing, should happen fairly close
22 together.

23 THE COURT: All right. All right.

24 COURT CLERK: Your Honor, we would schedule
25 it for July 12th, but we may not have the Avenel
25

1 evaluation back by then.

2 MR. BRUNO: Right.

3 COURT CLERK: So that's just a tentative
4 date.

5 MR. BRUNO: Yep.

6 MR. CULLEY: Whenever we get the evaluation
7 back, we'll be --

8 MR. BRUNO: We'll get a date, and then we
9 will alert the Court when that -- all those things have
10 taken place and that we're ready to move forward with
11 sentencing.

12 THE COURT: All right.

13 MR. CULLEY: Very good, Your Honor.

14 THE COURT: All right.

15 COURT CLERK: If he can go downstairs to
16 criminal case management for the interview for the PSI.

17 MR. BRUNO: Yes.

18 COURT CLERK: I'll also call this afternoon
19 to Avenel while he's here, and if somebody is available
20 to schedule it, I can schedule it for you.

21 MR. BRUNO: Yeah, if you could expedite that,
22 that would be --

23 COURT CLERK: Okay.

24 MR. BRUNO: -- great.

25 THE COURT: All right. All right. Thank

26

1 you.

2 MR. BRUNO: Thank you, Judge.

3 MR. CULLEY: Thank you, Your Honor.

4 THE WITNESS: Thank you.

5 THE COURT: Thank you.

6 * * * * *

7

8 C E R T I F I C A T I O N

9

10 I, COLETTE MEHESKI, the assigned transcriber,
11 do hereby certify the foregoing transcript of
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21 /s/ Colette Meheski
22 COLETTE MEHESKI AOC #628
23 J&J COURT TRANSCRIBERS, INC. DATE: November 30, 2020
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UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF NEW JERSEY
UNITED STATES OF AMERICA
-vs■STEVEN BRADLEY MELL,
Defendants.

CRIMINAL NUMBER:

3:18-cr-00757-BRM-1

RETRACTED PLEA AND
SENTENCING

Martin Luther King Building & U.S. Courthouse
50 Walnut Street, Room 4015
Newark, New Jersey 07102

June 17, 2019

10:48 a.m.

11 B E F O RE: THE HONORABLE BRIAN R. MARTINOTTI
UNITED STATES DISTRICT JUDGE

12

13 APPEARANCES:

14 OFFICE OF THE UNITED STATES ATTORNEY

BY: DANIELLE ALFONZO WALSMAN, ASST. UNITED STATES ATTORNE

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Newark, NJ 07102

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For the Defendant

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25 Proceedings recorded by mechanical stenography; transcript
produced by computer-aided transcription.
United States District Court
District of New Jersey
OZOZ/vO/ZT
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THE DEPUTY COURT CLERK: All rise.
(Open court begins at 10:48 a.m.)

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2
3 THE COURT: Counsel, your appearances for the record,
4 please.
5 MS. WALSMAN: Good morning, Your Honor. Assistant
6 United States Attorney Danielle Alfonzo Walsman on behalf of
7 the Government, and with me at counsel table is FBI special
8 agent Amy Veivia.
9
10

MR. BIANCHI: Robert Bianchi on behalf of Mr. Mell.
MR. BRUNO: David Bruno from the Bianchi Law Group on
11 behalf of Mr. Mell.
12 MR. KORBANICS: Michael Korbanics on behalf of Mr.
13 Mell.
14 THE COURT: Thank you. Can we swear in the
15 defendant, please.
16 THE DEPUTY COURT CLERK: Sir, raise your right hand
17 and place your left hand on the Bible.
18 (STEVEN BRADLEY MELL, HAVING BEEN DULY SWORN/AFFIRMED,
19 TESTIFIED AS FOLLOWS:)
20 THE DEPUTY COURT CLERK: Please state and spell your
21 last name for the record.
22 THE DEFENDANT: Bradley Mell, M-E-L-L.
23 THE COURT: Thank you. Good morning. You can be
24 seated.
25 I just want to summarize where we are today.
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District of New Jersey
OZOZ!vO/ZI

1 Originally, this Court took a guilty plea on December 20th,
2 2018, reserving sentence subject to reviewing the probation
3 officer's report.
4 Subsequent thereto, there was a probation report and a
5 defense presentence memo dated 15 May, 2019. There were
6 letters and forensic reports attached to the Government's

7 letter. There was an objection by the defense dated May 16,
8 2019 to the calculations set forth in the probation report.
9 There was a letter dated 16 May, 2019 withdrawing the
10 objections to the offense level 37 in the probation report,
11 and in that report there was an agreement for a stipulated
12 sentence of 60 months of incarceration.
13 The Court held a phone conference on 17 May, 2019 where
14 the Court advised counsel that it was rejecting the plea. And
15 the plea, as I previously set forth, is the parties stipulated
16 to a sentence of 60 months imprisonment, five years supervised
17 release, which is below the agreed upon range of 210 to 262
18 months. The parties and the Government were agreed on that
19 sentence and the Court rejected same.
20 So before we get started, for purposes of the record,
21 sir, do you understand that before this Court, before today,
22 was an agreed upon sentence of 60 months with five years
23 supervision?
24 THE DEFENDANT: I do.
25 THE COURT: Do you understand, sir, that the Court
United States District Court
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1 rejected that sentence?

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THE DEFENDANT: I do.

THE COURT: Sir, do you understand that you had a
4 right to withdraw your guilty plea?

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THE DEFENDANT: I do.

THE COURT: And proceed to a trial or proceed to an
7 indictment or a trial, had you wished to do that?

8

9

THE DEFENDANT: Yes.

THE COURT: You've talked to your lawyers about the
10 ramifications of this Court rejecting that plea; is that
11 correct?

12

13

THE DEFENDANT: Yes.

THE COURT: Now, sir, you were in court back on

4

14 December 20th, 2018, where the Court asked you questions about
15 your guilty plea and about the facts leading up to that plea;
16 is that correct?

17

18

THE DEFENDANT: Correct.

THE COURT: And you answered all those questions

19 truthfully, correct?

20

21

THE DEFENDANT: Correct.

THE COURT: Okay.

22 Sir, do you understand that you have a right to proceed

23 to a trial on this matter?

24 THE DEFENDANT: Yes, I do.

25 THE COURT: Now, subsequent -- let me rephrase the

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1 question. Do you have any questions of your lawyer today

2 about the ramifications of this Court rejecting the original

3 guilty plea of 60 months?

4

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THE DEFENDANT: No, I don't.

THE COURT: Do you wish to proceed today?

THE DEFENDANT: Yes.

THE COURT: Okay.

8 Do you have any questions of the Court regarding the

9 rejection of the 60 month plea?

10

11

THE DEFENDANT: No, no, I do not.

THE COURT: Counsel, any exceptions to the -- albeit

12 brief -- voir dire this Court engaged with your client?

13 MR. BIANCHI: No, Judge. It was pursuant to 11

14 (c) (1) (C), and Your Honor had indicated you wanted to see the

15 probation report before accepting it. So other than that,

16 everything you've indicated is accurate and has been explained

17 to my client.

18 THE COURT: Thank you. Government like to be heard

19 as to that?

20

21

22

23

MS. WALSMAN: Yes, Your Honor.

The Government has proposed an additional

THE COURT: No, no. Just as to the original

MS. WALSMAN: No, Your Honor. Nothing to add from

24 the Government.

25 THE COURT: Thank you. Now we move on.

5

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1 Since that time, there was a phone conference on June
2 6th, not on the record, where the Court was inquiring as to
3 the status of this matter, and I was advised that there was a
4 revised plea. And that plea was dated May 31st, 2019; is that
5 correct?

MS. WALSMAN: Yes, Your Honor.

THE COURT: Okay.

6

7

8 And it's my understanding that that plea is again
9 pursuant to 18 U.S.C. (1) (C). The defendant will be pleading to a
10 two-count information. Specifically, the defendant will plead
11 guilty to offense number one, which is interstate travel to
12 engage in illicit sexual conduct in violation of 18 U.S.C. 2423
13 (b). And Count 2, receipt of child pornography in violation
14 18 U.S.C. 2252(a) (2) (A), Count 2; is that correct?

15 MS. WALSMAN: Yes, Your Honor.

16 THE COURT: Is that correct, sir?

17 MR. BIANCHI: Yes, Your Honor.

18 THE COURT: That's my understanding of what we are
19 here for, and that was a revised plea entered into, again,
20 pursuant to 18 U.S.C. (1) (C) between the Government and the
21 defendant; is that correct?

MS. WALSMAN: Yes, Your Honor.

MR. BIANCHI: Yes, Judge.

22

23

24 THE COURT: Okay. That being said, sir, you could be
25 seated, if you prefer.

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1 I know we asked these questions last time. I do feel

2 it's necessary to proceed in this fashion today.

3 Sir, again, what's your name and age, please?

4

5

THE DEFENDANT: Steven Bradley Mell, 53.

THE COURT: Sir, could you give me the benefit of
6 your educational background?

7

8 1988.

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10

11

12

THE DEFENDANT: Graduated from Boston University in

THE COURT: Okay.

Sir, do you read and write English?

THE DEFENDANT: Yes.

THE COURT: Sir, have you ever been treated for any

13 mental illness or addiction to any narcotic of any kind?

14

15

THE DEFENDANT: No.

THE COURT: Have you had any drugs, including any

16 medication, within the last 24 hours?

THE DEFENDANT: Yes.

THE COURT: And what is that, sir?

THE DEFENDANT: Prozac.

7

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20 THE COURT: Okay. Sir, does that affect your ability

21 to understand this proceeding?

22 THE DEFENDANT: No.

23

24

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THE COURT: Do you understand what's happening here?

THE DEFENDANT: Yes.

THE COURT: And you're able to proceed?

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1 THE DEFENDANT: Yes.

2 THE COURT: Okay. Sir, as you sit here this morning,

3 are you under the influence of any drugs, medication, or

4 alcoholic beverage of any kind?

5 THE DEFENDANT: No.

6 THE COURT: Counsel, are you satisfied your client

7 can proceed today?

8

9

MR. BIANCHI: Yes, Your Honor.

THE COURT: Thank you.

10 Sir, the oath that you took a few moments ago obligates

11 you to provide me with truthful answers to any questions that

12 I ask. If I ask you a question that you do not understand,

13 please tell me you don't understand it. I'll try to rephrase

14 it for you or you can talk to your lawyer and he will instruct

15 you on how to proceed. Is that okay, sir?

16 THE DEFENDANT: Yes.

17 THE COURT: Okay.

18 Sir, have you received a copy of the information

19 against you in this matter?

20 THE DEFENDANT: I have, yes.

21 MS. WALSMAN: I may have missed it, but was the

22 defendant sworn in?

23

24

25

THE COURT: Yes. Right, Dana?

THE DEPUTY COURT CLERK: Yes.

MS. WALSMAN: Thank you.

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1 THE COURT: And, sir, you understand that the

2 information are the written charges against you; do you

3 understand that?

4

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THE DEFENDANT: I do.

THE COURT: Okay.

6 Sir, do you understand that you have a right to be

7 charged by an indictment rather than an information?

8

9

THE DEFENDANT: I do.

THE COURT: Do you further understand, sir, unless

10 you waive your right to be charged by an indictment, you could

11 not be charged with these offenses unless a Grand Jury finds

12 by a return of an indictment that there is probable cause that

13 a crime has been committed and that you committed that crime;

14 do you understand that?

15

16

THE DEFENDANT: I do.

THE COURT: Now, sir, if you do not waive your right

17 to an indictment, the Government may present the case to the

18 Grand Jury and request that you be indicted; do you understand

19 that?

20

21

THE DEFENDANT: Yes, sir.

THE COURT: Sir, do you understand, as I explained to

22 you the last time, or are you aware that a Grand Jury is

23 composed of at least 16 and not more than 23 persons and at

24 least 12 grand jurors must find probable cause to believe that

25 you committed the crime to which you are charged before you

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1 can be indicted; do you understand that?

2

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THE DEFENDANT: Yes, I do.

THE COURT: Sir, do you understand that the Grand

4 Jury may or may not indict you for this offense or for some

5 other offenses?

6

7

THE DEFENDANT: I do.

THE COURT: Sir, now if you waive your right to a
8 Grand Jury, this case can proceed against you by the

10

9 information just as if you'd been indicted. By waiving your
10 right to a Grand Jury indictment, do you understand that the
11 information will have the same force and effect as if it were
12 an indictment?

13

14

THE DEFENDANT: I do.

THE COURT: Sir, you've discussed the waiver of an
15 indictment with your lawyer; is that correct?

16

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THE DEFENDANT: Correct.

THE COURT: And you understand that you have a right
18 to be indicted by a Grand Jury?

19

20

THE DEFENDANT: Correct.

THE COURT: Has anyone made any threats or promises
21 to you to induce you to waive the indictment?

22

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THE DEFENDANT: No.

THE COURT: Do you wish to waive your right to an
24 indictment?

25 THE DEFENDANT: Yes.

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1 THE COURT: Okay.

2 Counsel, any issues regarding the waiver of the
3 indictment?

4 MR. BIANCHI: No, Your Honor.

5 THE COURT: Would the Government like to be heard as
6 to the waiver of the indictment?

7 MS. WALSMAN: No, Your Honor.

8 THE COURT: The Court finds the defendant has waived
9 his right to an indictment. It is obvious to me that he has
10 understood the questions I put to him. He has answered them
11 responsively. I have no doubt at this time that the waiver of
12 the indictment is done intelligently, knowingly, and
13 voluntarily waived.

14 Likewise, I am satisfied that the defendant understood
15 the impact that this Court's decision it may had by rejecting
16 the prior plea. He's been represented by his counsel who has
17 explained to him his rights by the Court by rejecting that

18 plea and, nonetheless, is proceeding in this fashion with a
19 new plea negotiated between his counsel and the Government.
20 Sir, I know we've gone through these questions last
21 time. I just think it's appropriate to re-ask them in light
22 of the new agreement between you and the defendant.
23 Sir, do you understand that you have a right to plead
24 not guilty to any offense charged against you?
25 THE DEFENDANT: Yes.
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1 THE COURT: Sir, do you understand that if you
2 persisted with a not guilty plea, you would have the right to
3 a trial by jury and during that trial you'd have the right to
4 the assistance of counsel for your defense?
5
6
THE DEFENDANT: I do.
THE COURT: Sir, do you understand that you would the
7 right to see and hear all the witnesses and have them
8 cross-examined in your defense?
9
10
THE DEFENDANT: I do.
THE COURT: Sir, do you understand that throughout
11 the course of the trial your lawyers would have the ability to
12 reject the evidence being offered by the Government?
13
14
THE DEFENDANT: I do.
THE COURT: Do you also understand, sir, that you
15 would the right on your own part to decline to testify unless
16 you voluntarily elected to do so in your own defense?
17
18
THE DEFENDANT: Yes.
THE COURT: Sir, do you understand that you would
19 have the right to the issuance of subpoena or compulsory
20 process to compel the attendance of any witnesses to testify
21 in your defense?
22
23
THE DEFENDANT: Yes.
THE COURT: Sir, do you understand that at your trial
24 you would have the presumption of innocence and I would
25 instruct the jury that you are presumed innocent? And that
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1 presumption would continue during the entire trial, through
2 jury deliberations, and until such point in time, if it ever
3 arrived, when the jury voted unanimously to convict you of the
4 charges contained in an indictment; do you understand that?

5

6

THE DEFENDANT: Yes, sir.

THE COURT: Do you understand, sir, that the jury
7 could not convict you of any offense unless they were
8 satisfied that the Government had proven your guilt beyond a
9 reasonable doubt?

10 THE DEFENDANT: I do.

11 THE COURT: Sir, as I said a moment ago, do you
12 understand that you would have no duty to testify or even
13 introduce any evidence in your defense, and I would instruct
14 the jury that they could not hold those facts against you or
15 consider them in any way?

16 THE DEFENDANT: I do.

17 THE COURT: Sir, at that trial, you would have no
18 burden of proving anything. The sole burden of proof would
19 fall upon the Government to prove each and every essential
20 element of the crime or crimes charged beyond a reasonable
21 doubt, and that burden never shifts to you. Are you aware of
22 that?

23

24

THE DEFENDANT: Yes.

THE COURT: Sir, do you understand that you would
25 have the right to the appointment of counsel, and if you could
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1 not afford one for the trial and/or appeal, if necessary, you
2 could request that counsel be appointed to represent you?

3

4

THE DEFENDANT: Yes.

THE COURT: Sir, do you further understand by
5 entering a plea of guilty, if that plea is accepted by me,
6 there will be no trial?

7

8

THE DEFENDANT: Correct.

THE COURT: And, sir, are you aware that, as I said a
9 moment ago, having waived your right to a trial, you would
10 have also waived all the other rights associated with a trial
11 that I just described; do you understand that?

12

13

14

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THE DEFENDANT: Yes.

THE COURT: Sir, are you a United States citizen?

THE DEFENDANT: Yes.

THE COURT: I understand that and I believe you.

16 Notwithstanding that, do you understand, sir, that if you were

17 not a citizen of the United States, your guilty plea to the

18 charged offense would likely result in you being subject to

19 immigration proceedings and being removed from the United

20 States?

21

22

23 lawyer?

24

25

THE DEFENDANT: I understand that.

THE COURT: Okay. Did you talk about that with your

THE DEFENDANT: Yes.

THE COURT: Okay. And there are no immigration

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1 consequences of your plea; is that correct?

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THE DEFENDANT: Correct.

THE COURT: Okay. Thank you, sir.

4 We do have a revised plea bargain letter; is that

5 correct?

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MS. WALSMAN: Yes, Your Honor.

THE COURT: Counsel, do you have a copy of that?

MR. BIANCHI: Yes, Your Honor.

THE COURT: I believe that letter is dated 31 May,

10 2019; is th-at correct?

11

12

MR. BIANCHI: Yes, Judge.

THE COURT: Thank you.

13 Sir, do you have that letter in front of you which is

14 entitled "plea agreement"?

15

16

THE DEFENDANT: I do.

THE COURT: If you look to that letter, sir, there's

17 a signature page on page 8; is that correct?

THE DEFENDANT: Yes, sir.

15

18

19 THE COURT: Okay. And is that your signature on that

20 page?

21

22

THE DEFENDANT: It is.

THE COURT: And, counsel, is that your signature on

23 that page?

24 MR. BIANCHI: That was signatures from both counsel,

25 Judge, from my office, yes. Mine is much sloppier.

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1 THE COURT: Okay. Nonetheless, you affirm that

2 you've agreed to the plea agreement?

3 THE DEFENDANT: Absolutely.

4 THE COURT: Sir, have you had an opportunity to read

5 and discuss the plea agreement with your lawyer before you

6 signed it?

7

8

9 read it?

10

11

THE DEFENDANT: Yes.

THE COURT: Prior to signing the agreement, did you

THE DEFENDANT: Yes.

THE COURT: Okay. May I impose upon the Government

12 to please summarize the plea agreement on the record?

13 MS. WALSMAN: Yes, Your Honor. The parties have

14 agreed that the defendant will plead guilty pursuant to Rule

15 11(c) (1) (C), and if the plea is entered and he is sentenced to

16 a term of 84 months imprisonment and five years supervised

17 release, the Government has represented that there will be no

18 further criminal charges against the defendant for May of 2017.

19 through December of 2017 for knowingly receiving,

20 distributing, and producing child pornography as Minor Victim

21 1. Engaging in interstate travel from July of 2017 through

22 November of 2017 for the purpose of engaging in elicit sexual

23 conduct with Minor Victim 1 or engaging in the production of

24 child pornography with Minor Victim 2.

25 There is forfeiture of the devices that were seized at

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1 the time the defendant's home was searched in May 2018. He

2 has agreed to the sex offender registration requirements of

3 these offenses. And the Schedule A is a factual stipulation

4 that the parties have agreed to and those include: That from

5 at least as early as July 2017 through December of 2017, the

6 defendant knowingly received images of child pornography from

7 Minor Victim 1. That with respect to Minor Victim 1, the
8 defendant engaged in a pattern of activity involving the
9 sexual abuse or exploitation of a minor. That the offense
10 involved the use of a computer or an interactive computer
11 service for the possession, transmission, receipt or
12 distribution of the material or for accessing with intent to
13 view the material.
14 The parties have also agreed that from at least as
15 early July 2017 through December of 2017, and on more than one
16 occasion, the defendant knowingly travelled in interstate
17 commerce for the purpose of engaging in illicit sexual conduct
18 of Minor Victim 1 including illegal sexual acts and the
19 production of child pornography.
20 And then the defendant has agreed to waive any
21 appellate rights, as long as he is sentenced to a term of 84
22 months imprisonment and five years supervised release. The
23 only thing that he doesn't waive is ineffective assistance of
24 counsel.
25 THE COURT: Okay. Counsel, is that an accurate
United States District Court
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1 summary of the plea agreement between your client and the
2 Government?

MR. BIANCHI: It is, Your Honor.

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4 THE COURT: Okay. Sir, did you hear a summary of the
5 plea agreement set forth on the record by the Assistant United
6 States Attorney?

7

8

THE DEFENDANT: Yes.

THE COURT: Is it an accurate summary of that
9 agreement?

10

11

THE DEFENDANT: It is.

THE COURT: Now, sir, do you feel with the
12 explanation and advice of your lawyer you fully understand the
13 terms of the plea bargain?

14

15

THE DEFENDANT: Yes.

THE COURT: Sir, is it your understanding that the
16 plea bargain is to set forth all of the bargains and benefits
17 flowing to you in exchange for your willingness to plead
18 guilty to the information?

19

20

THE DEFENDANT: Yes.

THE COURT: Do you have any questions about what the

21 plea agreement letter means or what any of the words or
22 phrases in that letter mean?
23 THE DEFENDANT: No.
24 THE COURT: Do you understand the terms of the plea
25 agreement?
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1 THE DEFENDANT: I do.

2 THE COURT: Sir, has anyone made any other different

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promises or assurances to you of any kind in an effort to
induce you to enter a plea of guilty in this case?

THE DEFENDANT: No.

THE COURT: Has anyone attempted in any way to force
you to plead guilty in this case?

THE DEFENDANT: Nope.

THE COURT: Sir, are you pleading guilty of your own
10 free will because you are, in fact, guilty?

11

12

THE DEFENDANT: Yes.

THE COURT: Sir, do you understand that the offense
13 to which you are pleading guilty is a felony offense?

14

15

THE DEFENDANT: Yes.

THE COURT: Actually, offenses. Do you understand
16 that your plea, if it's accepted by me, will be adjudicated
17 guilty of those offenses?

18

19

THE DEFENDANT: Yes.

THE COURT: Sir, do you understand that such an
20 adjudication may deprive you of such valuable civil rights
21 such as the right to vote, the right to hold public office,
22 the right to serve on a jury, and the right to possess any
23 kind of a firearm; do you understand that?

24 THE DEFENDANT: Yes.

25 THE COURT: Sir, if the Court accepts your guilty

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1 plea, all that will be left is sentencing; do you understand
2 that?

3 THE DEFENDANT: Yes, sir.

4 THE COURT: Sir, do you understand that part of your
5 plea is that if you are placed on supervised release and
6 subsequently violate any of the conditions of supervised
7 release before the expiration of its term, you may be
8 sentenced to not more than five years imprisonment in addition
9 to any prison term previously imposed upon you and in addition
10 to the maximum terms of imprisonment set forth by the
11 Government, notwithstanding the fact that that will be capped
12 at 84 months; do you understand that?

13

14

THE DEFENDANT: Yes, sir.

THE COURT: Sir, do you understand that pursuant to
15 18 U.S.C. 3582(k), you are required to register under the Sex
16 Offender Registration and Notification Act? Do you understand
17 that?

18 THE DEFENDANT: Yes.

19 THE COURT: Sir, if you commit a criminal offense
20 under chapter 109A, 110, 117 or section 1201 or 1591 for which
21 imprisonment for a longer term of one year can be imposed, the
22 Court will revoke your term of supervised release and require
23 you to serve the term of imprisonment pursuant to 18 U.S.C.
24 3583, subsection (e) (3), without regard to exceptions
25 contained therein; do you understand that?

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THE DEFENDANT: Yes, sir.

THE COURT: That term shall not be less than five
3 years; do understand that?

4

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THE DEFENDANT: Yes, sir.

THE COURT: Sir, do you also understand pursuant 18

21

6 U.S.C. 3663, the Court will be ordering you to pay restitution
7 to any victims of the offense?

8

9

THE DEFENDANT: Yes.

THE COURT: Likewise, under 18 U.S.C. 3555, the Court
10 will order you to give notice to any victim of the offenses;
11 do you understand that?

12

13

THE DEFENDANT: Yes, sir.

THE COURT: Okay.

14 Sir, now, pursuant to the Sentencing Reformat Act of
15 1984, the United States Sentencing Commission has issued
16 guidelines for judges to follow in determining a sentence in a
17 criminal case. However, because of the nature of this plea,
18 specifically II(c) (1) (C), this Court finds that the strictures
19 contained therein and U.S. versus Booker do not apply because
20 the Court has agreed to impose the sentence previously set
21 forth. Is there any exception or would counsel like to be
22 heard on that regarding the Booker colloquy, if you will?

23

24

MR. BIANCHI: No, Your Honor.

THE COURT: Is the Government satisfied that the
25 Booker colloquy need not apply here because of the nature of
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1 the sentence?

2

3

4

MS. WALSMAN: Yes, Your Honor.

THE COURT: Okay.

Now, sir, your plea agreement does contain something
5 entitled a Waiver of a Right to Appeal. Are you aware of
6 that?

7

8

THE DEFENDANT: Yes.

THE COURT: Sir, do you understand that in the
22

9 absence of this waiver, the law permits you to file an appeal
10 of a conviction or sentence if you believe there has been an
11 error?

12

13

THE DEFENDANT: Yes.

THE COURT: Sir, do you understand in the absence of
14 a waiver, you have a right, if you believe there has been an
15 error, to file a collateral challenge to your conviction or
16 sentence under 28 U.S.C. 2255?

17

18

THE DEFENDANT: Yes.

THE COURT: Sir, do you understand as set forth in
19 your plea agreement, you cannot file an appeal, petition,
20 writ, motion, collateral attack challenging your sentence or,
21 for that matter, withdrawing your plea if I impose a sentence
22 of 84 months of imprisonment and five years of supervised
23 release; do you understand that?

24 THE DEFENDANT: I do.

25 THE COURT: Sir, do you understand that neither you

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1 nor the Government can appeal claiming that I should not have
2 accepted your stipulations set forth in the plea agreement?

3

4

THE DEFENDANT: Yes.

THE COURT: Sir, do you understand that no provision
5 of the plea agreement shall preclude you from pursuing in an
6 appropriate forum, when permitted by law, an appeal,
7 collateral attack, writ or motion claiming that you received
8 constitutionally ineffective assistance of counsel; do you
9 understand that?

10

11

12

13

THE DEFENDANT: I do.

THE COURT: Yes, sir?

THE DEFENDANT: Yes, sir.

THE COURT: Okay. Did you discuss the effect of the
14 waiver of an appeal and the waiver of your right to file for
15 postconviction relief with your lawyer?

16

17

THE DEFENDANT: Yes.

THE COURT: Are you satisfied with the explanations
18 provided by your lawyers?

19

20

21 time?

22

23

24

25

THE DEFENDANT: Yes.

THE COURT: Do you have any questions of them at this

THE DEFENDANT: I do not.

THE COURT: They've answered all your questions?

THE DEFENDANT: Yes.

THE COURT: Okay.

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1 Sirr do you understand that a presentence report has
2 been prepared in this matter?

3

4

THE DEFENDANT: Yes.

THE COURT: And there are certain factual findings
5 made in that presentence report; do you understand that?

THE DEFENDANT: Yes.

24

6

7 THE COURT: And at the time of sentencing, which will
8 happen momentarily, there may be some issues regarding the
9 factual allegations set forth in that report; do you
10 understand that?

11

12

THE DEFENDANT: Yes.

THE COURT: Do you understand the Court will make a
13 decision as to whether the Court finds the probation report
14 persuasive or your counsel's argument containing any factual
15 issues and they are persuasive; do you understand that?

16

17

THE DEFENDANT: Yes.

THE COURT: Do you understand that you cannot appeal
18 that decision claiming that I should have ruled in your favor
19 or erred by ruling in a different manner; do you understand
20 that?

21

22

23

24

25

THE DEFENDANT: Yes.

THE COURT: Counsel, are you in agreement with that?

MR. BIANCHI: Yes, Your Honor.

THE COURT: Counsel, are you in agreement with that?

MS. WALSMAN: Yes, Your Honor.

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25

1 THE COURT: Would you like to talk about that with
2 your lawyers regarding that limited factual issue that may be
3 in the probation report?

4 THE DEFENDANT: No.

5 THE COURT: Now, according to the plea agreement,
6 you're going to plead guilty. I'm going to ask that the
7 Government please read the charges into the record for the
8 Court.

9 MS. WALSMAN: You're talking about the violation,
10 Your Honor?

11 THE COURT: Please.

12 MS. WALSMAN: Count 1 is a violation of interstate
13 travel to engage in illicit sexual conduct. That time period
14 was from July 2017 through in or around December 2017 in that
15 he knowingly traveled for the purpose of engaging in illicit

16 sexual conduct of Minor Victim 1 who had not obtained the age
17 of 18 years. Specifically, the production of child
18 pornography and vaginal penetration in New York state prior to
19 Minor Victim 1's 17th birthday.
20 Count 1 is a violation of Title 18 United States Code
21 Section 2423(b) and Section 2. Count 2 charges that from in
22 or around June 2017 through in or around December 2017, the
23 defendant knowingly received child pornography and that that
24 was in violation of Title 18 United States Code Section 2252
25 A(a) (2) (A) and Section 2.
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1 THE COURT: Counsel, any exceptions to the charges
2 set forth on the record by the AUSA?

3
4
5
6
7

MR. BIANCHI: Can I just ask the AUSA a question?

THE COURT: Sure.

(Counsel conferred off the record.)

MR. BIANCHI: Okay, Judge.

THE COURT: Thank you.

8 May I impose upon the Government to set forth the
9 elements of the offenses.

10 MS. WALSMAN: Yes, Your Honor. The elements for
11 Count 1 are that, one, the defendant crossed the state line
12 and that, two, he did so with the intent to engage in illicit
13 sexual conduct where the victim is older than 12 but younger
14 than 16 and the defendant was at least four years older than
15 the victim.

26

16 In Count 2 the elements of receipt of child pornography
17 that the defendant knowingly received or distributed child
18 pornography and that such items of child pornography had been
19 transported in interstate commerce by any means, including by
20 computer, and that the defendant knew that such items
21 constituted or contained child pornography as defined in 18
22 U.S.C. 2256 Section 8.

23 Let me go back for one second. When I talked about the
24 elements for Count 1, I talked about the age restrictions for
25 illegal sexual conduct in the state of New Jersey. Because
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1 part of the allegation is for illegal sexual conduct in the
2 state of New York, it would be the defendant crossing state
3 lines and engaging in New York with -- illicit sexual conduct

4 where the victim is younger than 17 years old.

5 THE COURT: Counsel, any issues or exceptions to the
6 elements set forth on the record by the Assistant United
7 States Attorney?

8 MR. BIANCHI: Can I just make a note for the record?

9 In the plea form, the factual basis for the plea, paragraph 4,
10 it says July 2017. It should be June 2017, as the AUSA
11 indicated.

12 THE COURT: Thank you.

13 Sir, do you understand that the Government would be
14 required to prove each and every essential element of the
15 offenses to which you are pleading guilty had you elected to
16 go to trial?

17 THE DEFENDANT: Yes.

18 THE COURT: Now, sir, the Court will only accept a
19 guilty plea if there is a basis in fact for the crimes. At
20 this point, the Assistant United States Attorney is going to
21 ask you some questions. Please listen to those questions and
22 answer them truthfully.

23 MS. WALSMAN: In August of 2017, did you travel in
24 interstate commerce from New Jersey to New York for the
25 purpose of engaging in· elicit sexual conduct with Minor Victim
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1 1? Specifically, vaginal penetration of Minor Victim 1.

2 THE DEFENDANT: Yes.

3 MS. WALSMAN: Also in August of 2017, while in the
4 state of New York, did you produce a full body nude image of
5 Minor Victim 1 with your cell phone?

6 THE DEFENDANT: Yes.

7 MS. WALSMAN: Did you do so knowing that Minor Victim

8

9

10

1 had not yet attained 17 years of age?

THE DEFENDANT: Yes.

MS. WALSMAN: From at least as early as June 2017
11 through December of 2017, did you request and knowingly
12 receive images of child pornography of Minor Victim 1 from
13 Minor Victim 1?

14

15

THE DEFENDANT: Yes.

MS. WALSMAN: Did your receipt of child pornography
16 involve the use of a computer or the internet?

17

18

THE DEFENDANT: Yes.

MS. WALSMAN: Did you perform the above-described
19 acts knowingly, intentionally, and willfully?

20

21

THE DEFENDANT: Yes.

MS. WALSMAN: Are you pleading guilty to Counts 1 and
22 2 of the information because you are, in fact, guilty of those
23 offenses?

24

25

THE DEFENDANT: Yes.

MS. WALSMAN: And Your Honor, even in the absence of
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1 the defendant's responses to those questions, if this case
2 were to proceed to trial, the Government would be able to
3 prove all of those elements beyond a reasonable doubt using
4 documents, testimony, and experts.

5 THE COURT: Thank you.

6 Counsel, do you wish to be heard as to the elements,
7 the answers that your client provided on the factual basis, or
8 the Government's representation as to meeting its burden?

9

10

MR. BIANCHI: No, Your Honor.

THE COURT: Okay. Now, sir, do you understand that
11 if I accept your guilty plea, I must sentence you to 84 months
12 in prison and five years of supervised release?

13

14

THE DEFENDANT: Yes.

THE COURT: And, sir, as we said in the beginning,
15 and somewhere in the middle of this proceeding, you are aware,
16 are you not, that I did reject the prior plea under Rule 11
17 (c) (1) (C); you understood that, correct?

18

19

THE DEFENDANT: Yes.

THE COURT: You understood, sir, that at that point
20 you could have gone to trial, correct?

21

22

THE DEFENDANT: Yes.

THE COURT: But your lawyers and the Government
23 continued to negotiate and entered into this plea, correct?

24

25

THE DEFENDANT: Correct.

THE COURT: So, again, I hate to burden the record,
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1 but do you understand if I accept the plea I must sentence you
2 to 84 months imprisonment and five years, correct?

3 THE DEFENDANT: Yes.

4 THE COURT: Of supervision. I'm sorry. That being
5 said, would the Government like to be heard any further?

6 MS. WALSMAN: Nothing further from the Government,
7 Your Honor.

8 THE COURT: Counsel, would you like to be heard any
9 further?

10

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18

talk to

guilty?

MR. BIANCHI: No, Your Honor. Thank you.

THE COURT: Sir, would you like an opportunity to
your lawyer at this point in the proceeding?

THE DEFENDANT: No.

THE COURT: I'm going to ask to you please stand up.

Sir, how do you plead to the charges, guilty or not

THE DEFENDANT: Guilty.

THE COURT: It is the finding of this Court that the
19 defendant is fully competent and capable of entering an
20 informed plea. The Court finds the defendant is aware of the
21 nature of the charges and the consequences of this plea.
22 I find the defendant has entered into this plea
23 voluntarily and knowingly. The defendant has been represented
24 by counsel. Counsel has answered all of his questions. He is
25 satisfied with counsel's legal advice. I find the defendant
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1 Hall, Michael Simon Scott.

2 I've also reviewed the evaluations by Dr. Catherine
3 Barbara, Dr. Richard Krueger. A subsequent one dated April
4 9th, 2019 by Dr. Krueger and Dr. Daniel Watter as well as
5 reports from Joel Sickler and Federal Bureau of Prisons
6 Security Classification. And I did look at the New Jersey
7 judiciary plea form and, in fact, did talk about those. So
8 I'll get into that in a moment with counsel.

9 Anything subsequently submitted by the defendants?

10 Understanding that there was an objection to the guideline
11 calculation, but that objection was withdrawn.

12

13

14

15

MR. BIANCHI: That's right, Judge.

THE COURT: Nothing further was submitted?

MR. BIANCHI: Nothing further was submitted.

THE COURT: Thank you.

32

16 I've also reviewed the victim impact statements as well

17 as the Government's revised sentencing memorandum dated June

. 18 14th, 2019, and there was a prior memorandum that the Court

19 did review, which, in essence, was the exact same but for the

20 term of imprisonment.

21 Anything further submitted by the Government?

22

23

MS. WALSMAN: No, Your Honor.

THE COURT: Okay.

24 Of course I've reviewed the presentence report

25 submitted by the probation officer.

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1 Are there any objections to the guideline calculation

2 set forth in the probation -- in the presentence report?

3

4

5 Honor.

6

MR. BIANCHI: No, Your Honor.

MS. WALSMAN: Not on behalf of the Government, Your

THE COURT: Okay. So it's my understanding that the

7 total offense level is 37. Criminal history is 1. Guideline

8 provision, custody 210 to 262 months. Supervised release on

9 Count 1 five years to life. Count 2 five years to life.

10 Probation ineligible. A fine of \$40,000 to \$100,000. There's

11 a restitution claim of \$35,250, which we'll talk about

12 momentarily. A special assessment of \$100 on each count, and

13 a \$5,000 JVT assessment.

14 Any objection to the guideline provisions set forth on

15 the record by the Court, save the restitution issue?

16

17

18

19

MS. WALSMAN: No, Your Honor.

MR. BIANCHI: No, Your Honor.

THE COURT: Okay.

That being said, are there any non-guideline issues set

20 forth in the PSR? Government?

21

22

23

24 there's

25

MS. WALSMAN: No, Your Honor.

THE COURT: Defense counsel?

MR. BIANCHI: Judge, with respect to the restitution,

THE COURT: I'll hear your argument with an

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1 opportunity for you to speak later on as to this issue.

2 MR. BIANCHI: Thank you, Judge.

3 THE COURT: Do you want to argue now or do you want to

4 wait until after?

5

6

7

8

MR. BIANCHI: On the restitution, Judge?

THE COURT: Yes.

MR. BIANCHI: I prefer to wait.

THE COURT: Okay.

9 Just for the record, defense counsel, the Court, and

10 the Government did discuss the fact that there is an issue

11 regarding the restitution. However, defense counsel reserves

12 his right to argue as to the appropriate quantum of

13 restitution after there was an argument on the record as to

14 why there should be restitution. Is that a fair statement of

15 what we discussed?

16

17

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MR. BIANCHI: Yes.

MS. WALSMAN: Yes, Your Honor.

THE COURT: Thank you.

Are there any departure motions?

MS. WALSMAN: No, Your Honor.

THE COURT: Okay.

Any variance motions?

MS. WALSMAN: I mean, pursuant to (c) (1) (C) it's not

24 really a variance or departure. We're just asking for the 84

25 months, Your Honor.

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MR. BIANCHI: Agreed, Judge.

THE COURT: Okay. Thank you.

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1

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3 The fact that there are no departure motions, variance
4 motions, and there's only an issue as to the quantum of
5 restitution. Counsel, I'll hear your argument, defense
6 counsel's argument. Reserve your general argument. Then I'll
7 hear from the defendant. Then I'll hear from the victim.

8 Then I'll hear from the Government. Then you can have an
9 opportunity to address the restitution issue thereafter.

10 MR. BIANCHI: Okay. So I will do restitution now as
11 well, generally?

12 THE COURT: Sure.

13 MR. BIANCHI: Thank you. Judge, there really isn't
14 much of a need, in my opinion, to go very deeply into the
15 sentencing given the aspect of the II(c) (1) (C). I want to
16 thank the U.S. Attorney and the FBI agents for their
17 accommodations with regard to, well, laying out the case and
18 what they have. This was an extremely heavily negotiated case
19 not just here, but there's also a state court charge that
20 we're dealing with as well. So it's been very intricate, and
21 I appreciate the Court's review of the II(c) (1) (c) and even
22 the willingness of the Court to accept -- even though
23 initially it was rejected -- the new modified version of 84
24 months.

25 Judge, I think that that strikes the appropriate
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1 balance based upon the facts of the case. I won't go too
2 deeply into them. In fact, I'm not going to go into them at
3 all. It's been extensively briefed before Your Honor. You
4 have the probation report, which is very thorough, and
5 essentially at this point in time my client is choosing not to
6 speak for sentencing. And the only issue that I have is after
7 the Government is done and the victims are done allocuting to
8 the Court, I would like to discuss more particularly the
9 restitution issues that apply, especially as it relates to the
10 bodyguard and the boarding school.

11 I would just note on paragraph 59 of the PSR, even the
12 probation officer indicated, which is we completely agreed
13 that the boarding fees do not -- and I'm quoting -- fit the
14 criteria of the fees to be covered. But I'll speak more
15 extensively about that after the Government has had its
16 opportunity.

17 THE COURT: Okay. The defendant is not speaking; is
18 that correct?

19

20

21

MR. BIANCHI: That's right, Your Honor.

THE COURT: Okay.

MS. WALSMAN: This crime, Your Honor, obviously at

22 sentencing the victims have an opportunity to be heard, and we

23 would ask for your indulgence to allow Minor Victim 1 and

24 Minor Victim 1's mother to come up and read statements.

25 THE COURT: Sure. Thank you.

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1 THE WITNESS: Hello. I am the mother of two amazing

2 and beautiful daughters. Unfortunately, one of them is the

3 sexual assault victim of the defendant in this case, Brad

4 Mell. I would like you to understand that the beautiful young

5 woman you see here today is not the girl that these horrible

6 things happened to. She was a young, 15 year old girl, sweet,

7 sensitive, smart, hard-working, kind, and trusting. It was

8 her kind and trusting personality that in part brought us here

9 today.

10 Brad Mell was mistakenly thought of as a good friend

11 and kind person by our family and most of our community whom

12 my daughter would have had no reason to think anything

13 different. She trusted him and believed he cared for her

14 mostly due to his constant attesting to this fact. I can't

15 count how many times he told us how much he cared for our

16 family and loved all of us. His constant stating of his

17 caring for us and his love for our family we know now was

18 part of his plan, his manipulation to get what he really

19 wanted. Brad Mell is a master manipulator, and I have to

20 we were manipulated terribly by him.

21 We never imagined our good family friend, respected

22 businessman, girls' hockey coach was actually after our 15

all

say

23 year old daughter. And that is one of the most painful parts

24 as parents is that we didn't see it. Please don't let him

25 manipulate you into believing his and his attorneys disgusting

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1 lies and bail letters that our young, 15 year old daughter,

2 who had only been kissed one time in her life by one boy, had

3 wanted his sexual behaviors towards her. She absolutely did

4 not want the sexually explicit texts he wanted to send her.

5 So much so that we later learned she was physically ill,

6 throwing up upon receiving them. She absolutely does not want

7 a disgusting explicit video of Brad Mell masturbating from his

8 bathroom in his Nantucket summer house. Upon receiving that,
9 she felt panic and sick and was never able to view that
10 disgusting video. She never wanted any of this and she told
11 him that repeatedly.
12 When she would get upset by his disgusting actions, he
13 would be so sorry, embarrassed, and upset that she would end
14 up trying to make him feel better but for his horrible
15 behavior. That is how a predator like Brad Mell works. He
16 manipulated my sweet daughter by using her kind heart. This
17 all came from him.
18 I guess we shouldn't have been surprised when upon
19 being caught for his disgusting behavior he was not in any way
20 remorseful or willing to accept responsibility for his
21 actions. Instead, he began an all out attack of harassing
22 lies on my daughter and my family. He continued to approach
23 and harass my daughter even when being instructed not to. He
24 wrote horrible texts calling us white trash, gold diggers,
25 pathological liars, bringing her to tears, threatening her
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1 that we were going to be living in a trailer when he was
2 finished with us and many other things.
3 We as a family decided to do everything in our power to
4 protect our daughter and try to keep what was happening as
5 private as possible, as is the right of every child and person
6 that has been sexually assaulted.
7 We would not get into a war of words with a man who has
8 sexually assaulted our daughter to defend ourself against the
9 lies he was spreading. We would not speak to people about
10 what we are going through trying to let our daughter have some
11 dignity and privacy. He did the exact opposite. He began
12 writing letters and texts and talking to many people in our
13 community about what happened but saying that we were to blame
14 and that he was the victim. He went so far as to fly to my
15 oldest daughter's college and harass her there actually
16 breaking into her dorm. We were told by the college that Brad
17 Mell is the first parent in the history of the college to be
18 banned from the campus.
19 By spreading this information, he chose to re-victimize
20 my daughter and our family again and again causing very
21 serious emotional trauma. We lived in fear for many months to
22 the point that we had to hire a bodyguard for protection.
23 Now, thanks to him and the brazenness of one of his
24 disgusting charges where he put my daughter's life in danger
25 and what made for, I guess, sensational headlines, we are not
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1 only harshly judged in our own community but from places
2 around the world. With the recent spread of her story on
3 various news outlets, we get to read comments about what
4 terrible parents we are and horrible comments about our
5 daughter.
6 I have no way to explain that I did trust my daughter
7 on an app on my phone and knew her whereabouts at all times.
8 I did not know that he had bought her a second phone and
9 convinced her to leave her phone hidden at a friend's house
10 while he took her somewhere else so that when I checked my app
11 it showed her at her girlfriend's house. No way to tell them
12 that he figured out there was a hotel above a movie theater
13 and tells my daughter to tell me she was going to a movie with
14 friends but actually had booked a room at the hotel in the
15 theater so when I checked, it showed her at the movie theater.
16 And no way to explain the way a predator manipulates a child,
17 with slow and careful, thought out manipulation of a child who
18 is absolutely not complicit.
19 Through the sexual abuse and attacks on my family, my
20 daughter was not doing well. She had even spoken about
21 killing herself during some of the worst times. I don't think
22 she will ever be the same happy-go-lucky optimistic girl she
23 was.
24 I won't go into all the ways that my daughter's life
25 and actually the lives of all my daughters have been
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1 drastically changed forever, but there are many. He took my
2 daughter's innocence and her virginity. I know people say you
3 have to work to get through it, and I can tell you that no one
4 has worked or is working as hard as my daughters and our
5 family. No matter how much therapy you go to, there will
6 always be scars, and that's the truth. They come to the
7 surface at times when you do expect them and sometimes when
8 you least expect them.
9 Of course her life will go on. We're hoping she will
10 go to school and make new friends and have new wonderful
11 experiences. Hopefully get married and maybe have children if
12 that's what she wants for her future. But unfortunately, you,
13 Brad Mell, and what you did to her will be with her in every
14 relationship she has for the rest of her life. And not in a
15 good way. In the worst way possible. This is not something
16 that goes away no matter how strong you are.
17 Only Brad Mell really knows what his betrayal did to
18 our family. We were always kind and caring friends to him.
19 Never asking or wanting anything in return. It was he that
20 always wanted and needed emotional support, friendship, and
21 understanding, and we gave it to him from the kindness of our
22 hearts only to let somebody we trusted truly destroy the most
23 important thing in the world to us: our daughter.

24 We are so grateful that Brad Mell was caught for what
25 he did and is facing consequences as we are sure he believed
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1 he would never get caught or get in trouble for it. And we
2 are also so grateful for the knowledge that he won't be able
3 to do it to any other young girls which we are sure would've
4 been his path.
5 Your Honor, I just hope that you can see who Brad Mell
6 really is and truly understand the scope of damage he has done
7 to my daughter and our whole family. He is not remorseful at
8 all for what he has done. He believes he is the victim
9 forever angry at us for having been caught. He is a dangerous
10 person. I know I can't ask for more jail time, but I would
11 ask for protection for my daughter and my whole family from
12 any contact with him for the rest of our lives. He has a sick
13 personality and the financial means to do us great harm when
14 he is released from prison and perhaps even while he is in
15 prison. We are afraid of him and ask for as much protection
16 as possible. Thank you.

17 MINOR VICTIM 1: In the spring of 2017 it was the
18 beginning. On a flight home from visiting with my older
19 sister and Brad's daughter after college, Brad let me sit in a
20 pilot seat to see what it was like to fly.

21

22

THE COURT: Can you pull the microphone down?

MINOR VICTIM 1: Yes. Sorry.

23 Flying was something that I found extremely interesting
24 and was something I always thought about pursuing, but it
25 wasn't until this experience that I knew I actually wanted to
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1 begin taking lessons.
2 During the flight, Brad and I were talking and I told
3 him how much I was enjoying learning about all the different
4 instruments and mechanisms involved. Once he landed, he
5 suggested to my mom and I that I start taking lessons. Of
6 course we both agreed saying that would be so cool. Neither
7 of us thought it was a bad idea.
8 However, a week or so -- after a week or so, he texted
9 my mom to see if this was something I was still serious about.
10 He soon helped me flying out -- signing up for lessons at
11 Somerset Airport, which is just five minutes from my house,
12 and would constantly offer me extra flying to time with him so
13 to gain more experience.
14 At the time I believed he was being generous and trying

15 to give me this most amazing opportunity, but I now realize
16 this was just -- this was really just a way for him to be
17 alone with me and using this to his advantage.
18 Growing up talking to my parents and hearing stories on
19 the news I learned about the term pedophile. I imagined it
20 was a creepy old man who would ask young girls on the street
21 if they needed a ride home. I thought with this knowledge I
22 would be able to detect whether someone was preying on me.
23 However, one thing I did not understand was the true power of
24 manipulation.
25 Brad was a highly respected businessman, father, and
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1 family man in our community. He was a girl's coach at our
2 hockey club and every weekend going to visit his kids at their
3 schools and was known for doing kind acts for his family and
4 friends.
5 I never fathomed that this man was capable of doing
6 this. Even after one of our first sexual encounters where he
7 decided to start having sex with me after telling him
8 previously that this was something I did not want to do, I
9 never believed that someone with this much respect and
10 authority would do something so horrible. I convinced myself
11 that this was something normal and that it was a thing most
12 girls my age go through.
13 This was the beginning of my deep unhappiness, and I
14 made it clear that this was something I was very upset about.
15 However, after the first experience, Brad apologized countless
16 number of times and then would say things about how upset he
17 was with himself that I began to feel bad for him. I truly
18 believed that he regretted what he did to me. However, he
19 continued to do this for the next six months.
20 As time went on, my depression only grew and I talked
21 to him a lot about the different emotions and feelings I had.
22 My friends started to become suspicious as I was always hiding
23 my phone from them and they could sense that something was off
24 about me. Sadly, this is not something I could open up to
25 them about, but Brad was always there to listen when I needed
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1 him and tried to give me advice. Again, I thought he actually
2 cared about me, but it was all just to have the power over me
3 and the attention of a young 15 year old.
4 Eventually it turned into a situation where I was so
5 unhappy and the only person who knew the source of my
6 unhappiness was Brad, so I greatly depended on him to help me
7 through this hard time. While this was occurring I only saw

8 that he was being nice to me, but looking back I realized that
9 he was trying to separate me from my family and friends in
10 order to gain as much control over me as possible.
11 For example, when my mom was trying to protect me and
12 figure out where I was at the time by tracking me on my phone,
13 Brad repeatedly told me that it's not what a good mom would do
14 and that a 15 year old deserves freedom. After constantly
15 hearing this from him I began hating my mom because I thought
16 she was trapping me.
17 Furthermore, he began making me leave my phone at my
18 friend's house so it would appear to my mom that I was with my
19 friends while I was actually with Brad and texting her off of
20 my computer.
21 My mom began realizing that something was off with me.
22 When I told Brad about my mom's concerns, he said that she was
23 being a bad mom. At the same time, he would tell me how good
24 of a person she is. It was hard for me to decipher what was
25 manipulation versus the truth.

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1 She is the best mother I could ever ask for and seeing
2 the amount of guilt she carries because of this devastates me.
3 There is absolutely nothing more she could have done to stop
4 me because Brad knew all the tricks to get around her. And
5 because of him, my mom has lost a majority of her friends from
6 the area and spends most of her time hiding away in our house,
7 which is so unlike her. Just like me, she always needs to be
8 doing something. Just seeing her watch TV as often as does or
9 just sit in a chair staring at the wall, I know that she is
10 still experiencing a tremendous amount of pain which may be
11 the hardest part to all of this.
12 Even after the investigation of this case started, I
13 continued to be controlled by Brad's manipulation. When my
14 whole world was crumbling down around me, I felt that Brad's
15 life was falling apart at the same time. I had lost my two
16 lifelong best friends since kindergarten. I had to transfer
17 to a boarding school for my last year of high school. I had
18 to stop doing the majority of activities I loved, hockey and
19 flying because Brad could possibly be there and he showed up
20 like many times. And I have to live the rest of my life with
21 this horrible story and the guilt of what it did to my family.
22 With all of this, it wasn't until Brad's daughter
23 harassed my older sister and so I could finally see who Brad
24 truly is. Shortly after this, Brad came and saw me at the end
25 of one of my flying lessons where he threatened me by saying

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1 that if we press charges against his daughter, my family would
2 end up in a trailer home.
3 For the rest of the spring until the day of his arrest
4 he spent every second harassing me and my older sister and my
5 parents. Fortunately, he left my younger sister out of this,
6 but she also experienced one of the hardest times in her life.
7 As people began finding out, she lost a good amount of her
8 closest friends, which is a huge deal for a young 13 year old
9 girl. I also ended up having to go to boarding school, which
10 was something she was not interested in doing.
11 Brad's most common form of harassment towards my
12 parents was through texts, calls, and emails. They ranged
13 from calling my parents white trash or bigots, pathological
14 liars, and that they were extorting \$10,000,000 from him.
15 Please keep in mind that neither of them spoke to Brad until
16 the police became involved, which was December 4th, 2017.
17 Brad also spread lies about them through our community
18 by saying that my dad has a gambling problem, that Brad was
19 sexually with my mom, and that Brad paid for all of mine and
20 my sister's schooling. All the rumors were so disrespectful
21 to my parents and could have ruined them, but luckily this
22 hard time has actually made their marriage much stronger.
23 Thankfully, I've learned that karma is real and that
24 people get what they deserve. When Brad decided to buy two
25 handguns to kill a coyote that was supposedly attacking his
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1 dog, he got arrested the next day. There was points that I
2 didn't think me or my family would be able to survive it.
3 They're still experiencing a lot of pain, but it has made all
4 of us and my family members much stronger.
5 As for his family, I am sorry that this unfortunate
6 experience has brought so much pain to them. As for you, I
7 know that the next seven years may be the hardest you'll ever
8 go through, but I hope during this time you will truly learn
9 that your actions have caused consequences on other people and
10 that you have to follow rules for a reason. It has been made
11 clear that everyone in your family doesn't understand this
12 concept considering another one of your family members have
13 committed immoral acts towards underage girls and has gotten
14 away with them, which is not okay. But I hope at this time it
15 will make you realize what you have done and will hopefully
16 change you for the better.
17 I would never wish what my family went through on my
18 worst enemy, so my hope is that you will never do something
19 like this in the future.
20 I hope once you get out of prison you will respect the
21 terms of your release and have nothing to do with me and my
22 family ever again.
23

24

THE COURT: Thank you. Anyone else wish to be heard?

MS. WALSMAN: Your Honor, defense counsel stated that
25 there wasn't much to be said because the terms of the -- the
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1 term of imprisonment was agreed upon by everybody, but on
2 behalf of the Government there is much to be said and that is
3 because this is a crime that is very difficult to detect and
4 that many sometimes underestimate the seriousness and
5 importance of its prosecution.
6 One of the things that struck me was some of the
7 letters of support that the defendant submitted to Your Honor
8 that I do want to remark about because he was described,
9 obviously, favorably by his friends and family as a family man
10 and someone they'd never expect this of. His brother wrote a
11 letter saying we're not talking about a guy sitting in a room
12 on a computer trying to lure little children, but in fact
13 that's exactly what the defendant was and what the defendant
14 did.
15 There was another supporter that said that Brad gave no
16 excuses, just context, and that's something that I really
17 think I want to spend a little bit of time on because there's
18 not context with this. Minor Victim 1's mother talked about
19 the fact that Minor Victim 1 didn't want any of this.
20 On behalf of the Government, we never focus on what the
21 victim wanted or didn't want. Even if the victim -- a
22 hypothetical victim willingly engaged in this, the reason it's
23 a crime is because these parties are not equally matched.
24 When 16 year olds have relationships with 16 year olds and
25 maybe don't tell the parents the details of it, that's
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1 completely different than a 51-year-old man taking a
2 15-year-old girl and introducing her to every sexual act he'd
3 like to commit.
4 That is what happened here. He took naive and
5 unsophisticated young person who had 15 years of life
6 experience and didn't understand what was happening. There's
7 only one guilty party here and that is Brad Mell.
8 As we made clear in our memo, another terrible thing is
9 the facts of this case and the defendant's behavior even when
10 law enforcement was involved. And that is why the 84 months
11 imprisonment is so important, the five years of supervised
12 release is so important, and why he's also pled guilty to and
13 will be sentenced for the state crime. What happened here was
14 not a blip. It was not a mistake. It was not something that

15 anyone was responsible besides the defendant, Bradley Mell.
16 I do think based on the evidence that we've reviewed in
17 investigating this case that this defendant has attempted to
18 try this in the court of public opinion in their community. I
19 do hope that the defendant's term of imprisonment will give
20 him time to reflect on his own guilt and that everything that
21 came from this relationship was caused by what he did wrong
22 and that there is no guilt on behalf of the victim here.
23 I've described in the defendant's memorandum this
24 defendant was very wealthy. He had lots of power and he used
25 it. He used it to entice a minor with gifts of flying
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1 lessons, with the ability to fly her in his private plane in a
2 moment's notice and that's how he got control of her. That's
3 how he separated her from her parents and we saw it in the
4 text messages. It's not a disputed fact that he helped her
5 evade detection by her parents so that her parents couldn't
6 know what he was doing to their daughter.
7 I understand that there's this disputed restitution.
8 We did put forward that the defendant is objecting, as Your
9 Honor heard, to the restitution claim that was made by the
10 victim's family, and that's for a total of, I believe, \$35,250
11 of restitution for fees that they have had to incur. A
12 portion of that is for mental health treatment. A portion of
13 that is for bodyguard fees and \$20,500 is the boarding school
14 tuition due to the changing of schools, as the victim's family
15 just described, because of all that came up not only from it
16 becoming public of what happened but also the campaign that
17 the defendant went on to make sure everyone heard his side of
18 the story. There's only one side to be told to this story and
19 that is the defendant prayed and sexually abused this minor
20 victim.
21 So for all of those reasons, Your Honor, we're asking
22 you impose a sentence of 84 months imprisonment, five years
23 supervised release, and the language that was proposed in the
24 PSR that restricts the defendant during his term of supervised
25 release which is, obviously, the only time that you're able to
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1 impose those conditions that he not contact the victim or any
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member

party,
looking
of her family, either directly or through a third
and give them at least that peace that they've been
for. Thank you.

THE COURT: Counsel, as to the restitution component?

MR. BIANCHI: Judge, we heard about this encounter at
7 the airport and the need for a bodyguard. I referenced the
8 Court to paragraph 58. I don't have information about a lot
9 of what was just stated, so I can only go on that the
10 bodyguard fees were -- and I'm quoting for time periods
11 where Mell was either in jail or on house arrest with location
12 monitoring and they would leave it up to the Court as to the
13 fees.

14 So I can only glean from that, Judge, since, again, I
15 don't have a lot of information about this particular incident
16 or encounter, knowing that if he was in a location other than
17 his lawyer's office or a medical appointment going directly to
18 and from, then there would have been a violation. In fact,
19 there was, in fact, a violation of his bail conditions on one
20 occasion because he left my office and stopped at a
21 drive-through pharmacy to pick up a prescription medication
22 and, therefore, violated, was the argument the Government
23 made.

24 So when the probation department leaves it up to the
25 Court, I think the probation department is essentially saying,
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1 perhaps, maybe it doesn't make sense given the fact that he
2 was in jail or on house arrest.
3 Moreover, on paragraph 59, I think the probation
4 officer is right and it's those two -- I'll just cite the case
5 -- Lagos versus United States 138 Supreme Court 1684 2018
6 decision talking about the narrow construction with respect to
7 restitution amounts. And in paragraph 59, with respect to the
8 boarding fees -- and I'm quoting -- for Minor Victim I's new
9 school, according to the Government, in definition under
10 victim's losses 18 U.S.C. paragraph 2259(3), And believes that
11 the boarding fees do not fit the criteria for the fees to be
12 covered. And we would agree with that. We have the
13 psychological counselling, and we have no objection to that,
14 Judge. But we agree with the probation department's
15 assessment clearly with regard to paragraph 59 and with
16 respect to paragraph 58.
17 Again, they felt this way. I don't dispute the fact
18 that they feel the way that they felt, so I think given the
19 case law and given the statute that these are appropriate
20 areas for restitution.

21 MS. WALSMAN: Briefly in response, Your Honor, it
22 isn't all of the bodyguard fees that were during the time

23 period that Mr. Mell was in custody. They had asked for a
24 total of 66 hours at \$75 per hour. That's referenced in
25 paragraph 56 of the presentence report. And there was 41 of
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1 the hours that were from time periods that he was either in
2 jail or on house arrest with the location monitoring.
3 So the Government doesn't really take a position on
4 victim's claims for restitution. What we do is we present
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5 them to the Court. And so what we're presenting to Your Honor
6 are the claims that were made. You heard from the victims
7 themselves the reasons why they incurred the things that they
8 did. And we put forward to you the 18 U.S.C. 2259
9 subparagraph 3 and paragraph 59 of the presentence report,
10 there's a catchall provision for, quote, any other relevant
11 losses incurred by the victim. And so for Your Honor to
12 determine whether those fees fall into that amount. I'm not
13 familiar with the case that was just cited by the defendant.
14 I don't think that was brought to our attention before now.
15 But I think Your Honor has all the information you need to
16 make the determination. Thank you.
17 THE COURT: Counsel, anything further?
18 MR. BIANCHI: No, Your Honor. Thank you.
19 THE COURT: Counsel, anything further?
20 MS. WALSMAN: No, Your Honor.
21 THE COURT: Would anyone else like to be heard before
22 the Court moves on?

23

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MR. BIANCHI: No, Judge.

THE COURT: Before this Court is the sentencing which
25 this Court is required to follow the restrictions of 11
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1 (c) (1) (C) at this juncture. There was a prior agreement that
2 this Court spoke about on the record and under that prior
3 agreement the defendant would have been sentenced to 60 months
4 plus five years supervised release.
5 The Court, as I indicated earlier at the original
6 hearing, reserved until I had an opportunity to look at the
7 presentence report. And I did look at the presentence report.
8 And in looking at that report, I utilized the factors set
9 forth in 18 U.S.C. 3553(a) to adjudicate or judge that
10 sentence vis-a-vis what the guideline range was.
11 And so that everyone is familiar with those factors,
12 they are utilized so that the sentence must be not greater
13 than necessary to reflect the seriousness of the offense, to

14 promote respect for the law, to provide just punishment for
15 the offense; to afford an adequate deterrent to criminal
16 conduct; to protect the public from further crimes of the
17 defendant; provide the defendant with needed educational or
18 vocation training, medical care, or other correctional
19 treatment in the most effective manner pursuant to 18 U.S.C.
20 3553(a)(2).

21 In determining that sentence, this Court must consider
22 the nature and circumstances of the offense and the history
23 and characteristics of the defendant; the kinds of sentences
24 available; the guideline and the guideline range; the
25 guideline policy statement; the need to avoid unwarranted
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1 sentencing disparities among def en.dants with similar records
2 who have been found guilty of similar conduct; the need to
3 provide restitution to any of the victims of the offense.
4 3553 (a) (7).

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5 Finally, the Court must give a rational and meaningful
6 consideration to those factors and make an individualized
7 assessment based on the facts presented. United States v.
8 Tomco 560 F.3d 558 Third Circuit 2009.

9 This Court reviewed all the information that was
10 provided. Upon reviewing the information, this Court saw
11 submissions who tried to portray a man who was devoted to his
12 family, philanthropic, charitable, ready, willing, and able to
13 help everyone, including tangential individuals during their
14 time of grief. Specifically, by flying people for family and
15 individuals at his own expense. Again, attempted to be
16 portrayed generous, both personal and financially, and was
17 involved in many charitable organizations.

18 However, I saw someone who's manipulative, predatory,
19 narcissistic, deceitful, careless, and dangerous, causing harm
20 not only to the young victim but to her family. So much so
21 that they needed to hire protection because they perceived
22 they were in harm's way.

23 And I agree with counsel. I think some of the comments
24 in those letters could not do this defendant any favors. I
25 think they glossed over what occurred, and I didn't see
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1 remorse many times in those letters. I didn't see "sorry" in
2 those letters. That was my impression. Maybe it was said. I
3 didn't see it. Candidly, as sit here today and I looked at
4 the defendant's body motions and facial expressions while the
5 mother of the victim and the victim were testifying, I didn't
6 see remorse. I saw a smirk once or twice. I saw rolling of

7 the eyes. I saw a deep breath, but I didn't see that when I
8 was reviewing the prior plea. Notwithstanding that, I did
9 have the benefit of those letters and the presentence report
10 and the victim's impact statement. And the Court rejected the
11 plea.

12 Now we're here today and the Court has accepted this
13 plea and will be sentencing the defendant pursuant to
14 18(c) (1) (C) to 84 months in jail and five years supervised
15 release and doing that because there's a bigger picture before
16 this Court not necessarily addressing the defendant, the
17 defendant's conduct and what is an appropriate sentence for
18 the defendant, but considering all of what's going on here.
19 This Court must address these victims and the 84 months,
20 albeit under what the guideline is, it was accepted by this
21 Court because this Court and the victims have consented to
22 this, albeit indicating that it was not what they had hoped
23 but wanting to put this behind them and move on with their
24 life. There may be more harm than good to this family and
25 these victims to face the trauma of a public trial. That's
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1 why I accepted the revised plea. That's why I rejected the
2 initial plea.

3 Now there is an issue regarding restitution. The Court
4 heard from the victim and the victim's mother. The Court saw
5 them emotionally upset. Cowering is probably a strong word,
6 but clearly still afraid of the defendant. As a matter of
7 fact, as the victim was talking, the victim's mother kept
8 glancing over at the defendant. The defendant wasn't looking
9 at them. The defendant was looking down. Almost seemed to
10 still be afraid of him in court.

11 To hire a bodyguard and to seek the sanctuary and
12 safety of a boarding school is, in this Court's mind, rational
13 and reasonable, especially since it comes with an additional
14 consequence to a victim not being able to engage in those
15 school years with those friends that she had and engage in the
16 activities that she may have wanted to. Clearly she didn't
17 want to go to boarding school, in my opinion. They didn't
18 need a bodyguard. They didn't want a bodyguard. Accordingly,
19 this Court will enter an award for restitution of \$35,250, all
20 that is sought by the victims in this case.

21 This defendant stands before the Court after pleading
22 guilty to interstate travel to engage in illicit sexual
23 conduct and receipt of child pornography. Prior to 2017,
24 Minor Victim 1 was a 15-year-old female. They knew each
25 because the defendant's youngest daughter was in the same
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1 grade and friends with Minor Victim I's older sister.
2 The defendant began communicating via text message,
3 telephone, and Snapchat. The communications soon became
4 sexual when the defendant asked for the victim if she knew how
5 to perform oral sex. The defendant invited her to spend time
6 in his residence at Far Hills coordinating personal meetings
7 with Minor Victim 1.
8 They had numerous sexual encounters.in his residence,
9 in the cockpit, the victim's home, and in New York. Asked the
10 victim to send him nude images, which she did. Had her
11 FaceTime him while she was in the shower. Most astonishing
12 was in a plane, taking her without her parents' knowledge,
13 engaged in oral and vaginal sex while the plane was on
14 autopilot, which could have caused harm to hundreds of
15 individuals had something gone awry.
16 The Court again is here for an II(c) (1) (C) sentencing
17 which calls for a sentence of 84 months in prison and for the
18 reasons I previously set forth will honor that.
19 I really -- I've been a judge for almost 20 years.
20 I've never quite seen a case like this. Nonetheless, it's
21 this Court's obligation and charge to sentence within its
22 discretion. Again, not belaboring the record, but I did
23 reject the original plea. I am abiding by the subsequent
24 plea. I've made my decision on the restitution, and, sir, I'm
25 going to sentence you now. Please stand up.

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1 Sir, pursuant to the Sentencing Reform Act of 1984,
2 rule II(c) (1) (C) of the criminal rules of procedure 18 U.S.C.
3 3553(a), it is the judgement of this Court that you are hereby
4 committed to the custody of the Bureau of Prisons to be
5 imprisoned for a term of 84 months on Counts 1 and 2 to run
6 concurrently.
7 Sir, upon release from imprisonment, you will be placed
8 on supervised release for a term of five years on each Counts
9 land 2 to run concurrently.
10 Sir, within 72 hours of release from custody you must
11 report in person to the probation office in the district to
12 which you are released.
13 Sir, while you are on supervised release, you must not
14 commit another federal, state, or local crime; must not
15 possess a firearm or other dangerous device; must not possess
16 an illegal controlled substance; must comply with the other
17 mandatory and standard conditions that have been adopted by
18 this Court, which I will talk about in a minute.
19 Sir, you must submit to at least one drug test within
20 15 days of commencement of supervision. At least two tests
21 thereafter as determined by the probation officer.
22 Sir, at the commencement of supervision you must

23 register with state sex offender registration agency in the
24 state of New Jersey and any other state where you reside or
25 are employed, carry on a vocation or are a student as directed
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1 by the U.S. Probation Office.
2 Sir, I am imposing special conditions upon you. In
3 imposing these conditions I have considered the nature and
4 circumstances of the offense; your history and
5 characteristics, deterrence, protection of the public,
6 providing the needed correctional treatment to you. I find
7 these conditions involve no greater deprivation of your
8 liberty than are reasonably necessary.
9 Sir, you must comply with the following special
10 conditions. Your lawyer knows the specifics. They are drug
11 testing and treatment, computer monitoring, new debt
12 restrictions, financial disclosure, mental health treatment,
13 restricted contact with minors, polygraph examination,
14 self-employment business disclosure, sex offensive specific
15 assessment and treatment. No contact with the victim. That
16 one I'm going to explain to you, sir. You must not
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17 communicate or otherwise interact with Minor Victim 1, Minor
18 Victim I's family, either directly or indirectly without first
19 obtaining the permission of the U.S. Probation Office. Sir,
20 this includes but is not limited to contact to third persons,
21 personal visits, letters, communication devices, audio or
22 visual devices or social networking sites. Do you understand
23 that condition, sir?

24

25

THE DEFENDANT: Yep.

THE COURT: Yep. Thank you.

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1 It is further ordered that you must pay restitution in
2 the total amount of \$35,250. Payment should be made payable
3 to U.S. Treasury and forwarded to the Clerk of the Court in
4 Trenton for distribution to the following victims in .the
5 following descending order of priority: Minor Victim I's
6 father on behalf of Minor Victim 1 of \$32,444. Horizon Blue
7 Cross and Blue Shield of New Jersey, claim number
8 78026183457628300, \$2,806. That goes to P.O. Box 820, Newark,
9 New Jersey. Your restitution is due immediately and must be
10 paid in total within 30 days of sentencing.
11 You must notify the United States Attorney for this
12 district within 30 days of any change of mailing or residence
13 address that occurs while any portion of the restitution

14 remains unpaid.

15 Sir, it is further ordered that you are to pay the
16 United States a total fine of \$40,000 as follows: On Count 1,
17 20,000. On Count 2, \$20,000. That fine is due immediately
18 and must be paid in full within 30 days of sentencing.
19 Sir, you must notify the United States for this
20 district within 30 days of any changes of mailing or residence
21 address that occurs while any portion of the fine remains
22 unpaid.
23 It is further ordered that you must pay the United
24 States a total special assessment of \$200, \$100 on Count 1 and
25 \$100 on Count 2, which is due immediately.
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1 For Count 2, it is further ordered you must pay the
2 United States a Justice for Victim of Trafficking Act, JVT
3 assessment of \$5,000. That assessment is due immediately and
4 must be paid in full within 30 days of sentencing.
5 Sir, you must notify the United States Attorney for
6 this district within 30 days of any change of mailing or
7 residence address that occurs while any portion of the JVT
8 remains unpaid.
9 Counsel, I'll hear you as to the designation and date
10 of reporting.
11 MR. BIANCHI: Your Honor, I know there has been an
12 agreed upon date of July 1st which may be a quick turnaround,
13 but I spoke to the AUSA and if in fact he has not been
14 designated, we would enter, I guess, into a consent order.
15 But the designated facility, Judge, Allenwood, Pennsylvania,
16 please.
17
18

THE COURT: The Government concurs, correct?

MS. WALSMAN: I take no position to whatever facility
19 he's asking for. I'm just asking for a July 1 surrender date,
20 and if he's not designated yet we'll ask Your Honor for any
21 continuance that may be necessary.

22 THE COURT: I grant the Government's application.
23 July 1 surrender date with the understanding that may be
24 modified if the designation is not made by that point and the
25 Court orders an application as set forth on the record.

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1 MR. BIANCHI: Judge, would that be on the judgment --
2 reflected on your judgement as well?
3 THE COURT: Dana, will it be reflected on the
4 judgment?

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THE DEPUTY COURT CLERK: Yes.

MR. BIANCHI: Judge, for purposes of house cleaning,

7 our prison consultant is advising us if we can get the order

8 between 24-to-48 hours they may be able to make that July 1st

9 turnaround.

10 THE COURT: How long is it going to take to get the

11 order? It will be done tomorrow, on the docket the following

12 day. By Wednesday it will be on the docket.

13

14

MR. BIANCHI: Thank you, Your Honor.

THE COURT: Forfeiture is an issue. I know the Court

15 entered a forfeiture order the last time. Are we going to

16 amend that?

17 MS. WALSMAN: Well, it's not amending. I'd just ask

18 you to incorporate the preliminary order of forfeiture that

19 was entered on the docket December 21st, 2018, and that's for

20 the forfeiture of the devices. And our office will submit the

21 final order of forfeiture for your signature.

THE COURT: Is that okay, counsel?

MR. BIANCHI: That's fine, Judge.

22

23

24 THE COURT: Sir, you do have the right to appeal this

25 sentence pursuant to 18 U.S.C. 3742. However, that's subject

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1 any pre-existing appellate waiver that may limit that right.

2 If you are not able to pay, you may request the clerk of the

3 court to file a notice of appeal on your behalf.

4 Anything further from the Government?

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MS. WALSMAN: Nothing, Your Honor.

THE COURT: Anything further from the defense?

MR. BIANCHI: No. Thank you for your time, Judge.

PROBATION OFFICER: Sorry, Judge.

THE COURT: Yes, sir.

PROBATION OFFICER: I have a consent order for Your

11 Honor. It is amended with new conditions for the defendant to

12 appear in three places. It is a storage unit to return

13 business records, Bank of America to change bank information,

14 and Verizon Wireless. He has to be personally there at these

15 three locations. The Government has to consent to those

16 amendments and Pretrial has also consented too.

17 THE COURT: So ordered. Sir, I just remind you, you
18 better stay within the confines of that order and all other
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pretrial conditions remain in full force and effect.

Anything further?

MR. BIANCHI: Thank you, Your Honor.

THE COURT: Thank you.

MS. WALSMAN: Thank you, Your Honor.

THE COURT: Good luck.

(Court concludes at 12:18 p.m.)

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FEDERAL OFFICIAL COURT REPORTER'S CERTIFICATE.

4 I certify that the foregoing is a correct transcript from
5 the record of proceedings in the above-entitled matter.

6

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11 /S/ Megan McKay-Soule, BMR, CRR

12 Court Reporter

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March 19, 2020

Date

District court United States of New Jersey District of

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U.S. Department of Justice
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May 31, 2019

Robert Bianchi, Esq.

RECEIVED

JUN 17 2019

The Bianchi Law Group, LLC
4 York Avenue, 2nd Floor
West Caldwell, New Jersey 07006

Re: Plea Agreement with STEVEN BRADLEY MELL

Dear Mr. Bianchi:

This letter sets forth the plea agreement between your client, STEVEN BRADLEY MELL, and the United States Attorney for the District of New Jersey ("this Office"). The Government's offer to enter into this plea agreement will expire on June 3, 2019, if a signed copy of the plea agreement is not received by this Office on or before that date.

Charges

Conditioned on the understandings specified below, this Office will accept a guilty plea from STEVEN BRADLEY MELL, pursuant to Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure to a two-count Information, which charges 1) receipt of child pornography, in violation of 18 U.S.C. § 2252A(a)(2), and 2) travel with intent to engage in illicit sexual conduct, in violation of 18 U.S.C. § 2423(b).

If STEVEN BRADLEY MELL enters a guilty plea and is sentenced on these charges to a term of 84 months' imprisonment and 5 years' supervised release, and otherwise fully complies with all of the terms of this agreement, this Office will not initiate any further criminal charges against STEVEN BRADLEY MELL for a) from May 2017 through December 2017, knowingly receiving, distributing and producing child pornography of Minor Victim 1, b) engaging in interstate travel from July 2017 through November 2017 for the purpose of engaging in illicit sexual conduct with Minor

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Victim 1, or c) engaging in the production of child pornography with Minor Victim 2.

However, in the event that a guilty plea in this matter is not entered for any reason or the judgment of conviction entered as a result of this guilty plea does not remain in full force and effect, defendant agrees that any dismissed charges and any other charges that are not time-barred by the applicable statute of limitations on the date this agreement is signed by STEVEN BRADLEY MELL may be commenced against him, notwithstanding the expiration of the limitations period after STEVEN BRADLEY MELL signs the agreement.

Should the Court at any time reject the plea under Federal Rule of Criminal Procedure 11(c)(1)(C) or act contrary to its terms, either party may elect to be relieved of the terms of this plea and the parties will be returned to the status prior to the entry of the plea. This Office will advise the Court and the Probation Department of information related to sentencing, and such information may be used by the Court in determining STEVEN BRADLEY MELL's sentence. In the event that the Court declines to accept the plea until the court has reviewed the presentence report, neither party will move to withdraw from this agreement unless or until the Court ultimately determines to reject the proposed plea.

Sentencing

Count One - Receipt of Child Pornography

The violation of 18 U.S.C. § 2252A(a)(2) to which STEVEN BRADLEY MELL agrees

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to plead guilty carries a statutory maximum sentence of 20 years' imprisonment, a statutory mandatory minimum sentence of five (5) years, and a statutory maximum fine equal to the greatest of: (1) \$250,000; (2) twice the gross amount of any pecuniary gain that any persons derived from the offense; or (3) twice the gross amount of any pecuniary loss sustained by any victims of the offense. Fines imposed by the sentencing judge may be subject to the payment of interest.

Pursuant to 18 U.S.C. § 2252A(b)(1), if the Court determines that STEVEN BRADLEY MELL has a prior sex offense conviction under Chapter 110, section 1591, Chapters 71, 109A, or 117, or under section 920 of title 10 (article 120 of the Uniform Code of Military Justice), or under the laws of any state relating to aggravated sexual abuse, sexual abuse, or abusive sexual conduct involving a minor or ward, or the production, possession, receipt, mailing, sale, distribution, shipment, or transportation of child pornography, or sex trafficking of children, the violation of 18 U.S.C. § 2252A(a)(2) to which STEVEN BRADLEY MELL agrees to plead instead carries a mandatory minimum sentence of fifteen (15) years and a statutory maximum prison sentence of forty (40) years.

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Count Two Interstate Travel to Engage in Illicit Sexual Conduct

The violation of 18 U.S.C. § 2423(b) to which STEVEN BRADLEY MELL agrees to plead guilty carries a statutory maximum sentence of 30 years' imprisonment and a statutory maximum fine equal to the greatest of: (1) \$250,000; (2) twice the gross amount of any pecuniary gain that any persons derived from the offense; or (3) twice the gross amount of any pecuniary loss sustained by any victims of the offense. Fines imposed by the sentencing judge may be subject to the payment of interest.

Pursuant to 18 U.S.C. § 2426(a), if the Court determines that STEVEN BRADLEY MELL has a prior sex offense conviction, the violation of 18 U.S.C. § 2423(b) to which STEVEN BRADLEY MELL agrees to plead instead carries a maximum prison sentence of sixty (60) years.

Further, in addition to imposing any other penalty on STEVEN BRADLEY MELL, the sentencing judge: (1) will order STEVEN BRADLEY MELL to pay an assessment of \$100 per count pursuant to 18 U.S.C. § 3013, which assessment must be paid by the date of sentencing; (2) must order STEVEN BRADLEY MELL to pay restitution pursuant to 18 U.S.C. § 2259; (3) must order forfeiture, pursuant to 18 U.S.C. § 2253; and (4) pursuant to 18 U.S.C. § 3583 must require STEVEN BRADLEY MELL to serve a term of supervised release of at least five (5) years and up to a maximum term of life on supervised release, which will begin at the expiration of any term of imprisonment imposed. Should STEVEN BRADLEY MELL be placed on a term of supervised release and subsequently violate any of the conditions of supervised release before the expiration of its term, STEVEN BRADLEY MELL may be sentenced to not more than five (5) years' imprisonment in addition to any prison term previously imposed, regardless of the statutory maximum term of imprisonment set forth above and without credit for time previously served on post-release supervision, and may be sentenced to an additional term of supervised release.

However, pursuant to 18 U.S.C. § 3583(k), should STEVEN BRADLEY MELL be placed on a term of supervised release and subsequently commit an offense while on release in violation of chapters 109 A, 110, or 117, or section 1201 or 1591 of the United States Code, for which imprisonment for a term longer than one (1) year can be imposed, STEVEN BRADLEY MELL must be sentenced to at least five (5) years' imprisonment in addition to any prison term previously imposed, regardless of the statutory maximum term of imprisonment set forth above

and without credit for time previously served on post-release supervision, and may be sentenced to an additional term of supervised release.

In addition, pursuant to the Justice for Victims of Trafficking Act of 2015, upon conviction, unless the Sentencing Court finds the defendant to be indigent, an additional mandatory special assessment of \$5,000 must also be imposed.

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Pursuant to Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure, this Office and STEVEN BRADLEY MELL agree that a sentence of 84 months' imprisonment and 5 years' supervised release is the appropriate disposition of this case. Accordingly, if the Court accepts this plea agreement, STEVEN BRADLEY MELL will be sentenced to a term of 84 months' imprisonment and 5 years' supervised release.

Rights of This Office Regarding Sentencing

Except as otherwise provided in this agreement, this Office reserves its right to take any position with respect to the appropriate sentence to be imposed on STEVEN BRADLEY MELL by the sentencing judge, to correct any misstatements relating to the sentencing proceedings, and to provide the sentencing judge and the United States Probation Office all law and information relevant to sentencing, favorable or otherwise. In addition, this Office may inform the sentencing judge and the United States Probation Office of: (1) this agreement; and (2) the full nature and extent of STEVEN BRADLEY MELL's activities and relevant conduct with respect to this case.

Stipulations

This Office and STEVEN BRADLEY MELL agree to stipulate at sentencing to the statements set forth in the attached Schedule A, which hereby is made a part of this plea agreement. These stipulations are offered as recommendations to the Court pursuant to Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure. To the extent that the parties do not stipulate to a particular fact or legal conclusion, each reserves the right to argue the existence of and the effect of any such fact or conclusion upon the sentence. Moreover, this agreement to stipulate on the part of this Office is based on the information and evidence that this Office possesses as of the date of this agreement. Thus, if this Office obtains or receives additional evidence or information prior to sentencing that it determines to be credible and to be materially in conflict with any stipulation in the attached Schedule A, this Office shall not be bound by any such stipulation. A determination that any stipulation is not binding shall not release either this Office or STEVEN BRADLEY MELL from any other portion of this agreement, including any other stipulation. If the sentencing court rejects a stipulation, both parties reserve the right to argue on appeal or at post-sentencing proceedings that the sentencing court was within its discretion and authority to do so. These stipulations do not restrict this Office's right to respond to questions from the Court and to correct misinformation that has been provided to the Court.

Waiver of Appeal and Post-Sentencing Rights

As set forth in Schedule A, this Office and STEVEN BRADLEY MELL agree that, provided the District Court imposes a sentence in accordance with this Rule 11(c)(1)(C) plea agreement, neither party will appeal that sentence. STEVEN BRADLEY MELL further agrees that, in exchange for the concessions the United States made in entering into this Rule 11(c)(1)(C) plea agreement, he will not challenge his conviction for any reason by any means, other than ineffective assistance of counsel, and he will not challenge or seek to modify any

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component of his sentence for any reason by any means, other than ineffective assistance of counsel. The term "any means" includes, but is not limited to, a direct appeal under 18 U.S.C. § 3742 or 28 U.S.C. § 1291, a motion to vacate the sentence under 28 U.S.C. § 2255, a motion to reduce the sentence under 18 U.S.C. § 3582(c)(2), a motion for early termination of supervised

release under 18 U.S.C. § 3583(e)(I), or any other motion, however captioned, that seeks to attack or modify any component of the judgement of conviction or sentence.

Forfeiture

STEVEN BRADLEY MELL agrees, as part of his acceptance of responsibility and pursuant to 18 U.S.C. § 2253, to forfeit to the United States (1) all computer and computer accessories on which law enforcement, in or about May 2018, discovered visual depictions described in Sections 2251, 2251 A, 2252, 2252A, 2252B, and 2260 of Title 18 of the United States Code; (2) all visual depictions described in Sections 2251, 2251 A, 2252, 2252A, 2252B, and 2260 of Title 18 of the United States Code that were produced, transported, shipped, or received in violation of chapter 109A of Title 18, United States Code; (3) all property, real and personal, constituting or traceable to gross profits or other proceeds obtained from the offenses charged in the Information; and (4) all property, real and personal, used or intended to be used to commit or to promote the commission of the offenses charged in the Information and all property traceable to such property (the "Forfeitable Property").

STEVEN BRADLEY MELL further agrees to waive all interest in the Forfeitable Property in any administrative or judicial forfeiture proceeding, whether criminal or civil, state or federal. STEVEN BRADLEY MELL agrees to consent to the entry of orders of forfeiture for the Forfeitable Property and waives the requirements of Rules 32.2 and 43(a) of the Federal Rules of Criminal Procedure regarding notice of the forfeiture in the charging instrument, announcement of the forfeiture at sentencing, and incorporation of the forfeiture in the judgment. STEVEN BRADLEY MELL understands that the forfeiture of Forfeitable Property is part of the sentence that may be imposed in this case and waives any failure by the court to advise him of this pursuant to Rule 11 (b) (1)(J) of the Federal Rules of Criminal Procedure at the guilty plea proceeding.

STEVEN BRADLEY MELL hereby waives any and all claims that this forfeiture constitutes an excessive fine and agrees that this forfeiture does not violate the Eighth Amendment.

Immigration Consequences

The defendant understands that, if he is not a citizen of the United States, his guilty plea to the charged offenses will likely result in his being subject to immigration proceedings and removed from the United States by making him deportable, excludable, or inadmissible, or ending his naturalization. The defendant understands that the immigration consequences of this plea will be imposed in a separate proceeding before the immigration authorities. The defendant wants and agrees to plead guilty to the charged offenses regardless of any immigration

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consequences of this plea, even if this plea will cause his removal from the United States. The defendant understands that he is bound by his guilty plea regardless of any immigration consequences of the plea. Accordingly, the defendant waives any and all challenges to his guilty plea and to his sentence based on any immigration consequences, and agrees not to seek to withdraw his guilty plea, or to file a direct appeal or any kind of collateral attack challenging his guilty plea, conviction, or sentence, based on any immigration consequences of his guilty plea.

Registration Consequences

STEVEN BRADLEY MELL understands that his guilty plea to the charged offenses will likely result in a requirement that he register as a sex offender under federal and state law, and he will be subject to the registration law's requirements and penalties. STEVEN BRADLEY MELL wants and agrees to plead guilty to the charged offenses regardless of any registration consequences of that plea. STEVEN BRADLEY MELL understands that he is bound by his guilty plea regardless of any registration consequences of the plea. Accordingly, STEVEN BRADLEY MELL waives any and all challenges to his guilty plea and to his sentence based on any registration consequences, and agrees not to seek to withdraw his guilty plea, or to file a direct appeal or any kind of collateral attack challenging his guilty plea, conviction, or sentence,

based on any registration consequences of his guilty plea.

Adam Walsh Child Protection and Safety Act

STEVEN BRADLEY MELL has been advised, and understands, that under the Sex Offender Registration and Notification Act, a federal law, he must register and keep the registration current in each of the following jurisdictions: where STEVEN BRADLEY MELL resides; where he is an employee; and where he is a student. STEVEN BRADLEY MELL understands that the requirements for registration include providing his name, his social security number, the address of any place where he resides or will reside, the names and addresses of any places where he is or will be an employee or a student, and the license plate number and a description of any vehicle owned or operated by him, among other information. STEVEN BRADLEY MELL further understands that the requirement to keep the registration current includes informing at least one jurisdiction in which he resides, is an employee, or is a student not later than three business days after any change of his name, residence, employment, or student status. STEVEN BRADLEY MELL has been advised, and understands, that failure to comply with these obligations subjects him to prosecution for failure to register under federal law, 18 U.S.C. § 2250, which carries a statutory maximum prison sentence of 10 years and a statutory maximum fine equal to the greatest of: (1) \$250,000; (2) twice the gross amount of any pecuniary gain that any persons derived from the offense; or (3) twice the gross amount of any pecuniary loss sustained by any victims of the offense.

Other Provisions

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This agreement was reached without regard to any civil or administrative matters that may be pending or commenced in the future against STEPHEN BRADLEY MELL. This agreement does not prohibit the United States, any agency thereof (including the Internal Revenue Service), or any third party from initiating or prosecuting any civil or administrative proceeding against STEPHEN BRADLEY MELL.

No provision of this agreement shall preclude STEPHEN BRADLEY MELL from pursuing in an appropriate forum, when permitted by law, an appeal, collateral attack, writ, or motion claiming that STEPHEN BRADLEY MELL received constitutionally ineffective assistance of counsel.

No Other Promises

This agreement constitutes the plea agreement between STEPHEN BRADLEY MELL and this Office and supersedes any previous agreements between them. No additional promises, agreements, or conditions have been made or will be made unless set forth in writing and signed by the parties.

Very truly yours,

CRAIG CARPENITO

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APPROVED:

Deputy Chief, Criminal Division

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I have received this letter from my attorney, Robert A. Bianchi, Esq. I have read it. My attorney and I have discussed it and all of its provisions, including those addressing the charges, sentencing, stipulations, waiver, forfeiture, immigration consequences, and registration consequences, as well as the impact that Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure has upon this agreement. I understand this letter fully. I hereby accept its terms and conditions and acknowledge that it constitutes the plea agreement between the parties. I understand that no additional promises, agreements, or conditions have been made or will be made unless set forth in writing and signed by the parties. I want to plead guilty pursuant to this plea

agreement.

AGREED AND ACCEPTED:

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Date: 5- 3). 19

I have discussed with my client this plea agreement and all of its provisions, including those addressing the charges, sentencing, stipulations, waiver, forfeiture, immigration consequences, and registration consequences, as well as the impact that Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure has upon this agreement. My client understands this plea agreement fully and wants to plead guilty pursuant to it.

Date: 5 • 3 \ - \1

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Plea Agreement with STEVEN BRADLEY MELL

Schedule A

1. This Office and STEVEN BRADLEY MELL agree to stipulate to the following facts:

- a. From at least as early as July 2017 through December 2017, the defendant knowingly received images of child pornography from Minor Victim I.
- b. With respect to Minor Victim I, the defendant engaged in a pattern of activity involving the sexual abuse or exploitation of a minor.
- c. The offense involved the use of a computer or an interactive computer service for the possession, transmission, receipt, or distribution of the material, or for accessing with intent to view the material.
- d. From at least as early as July 2017 through December 2017, and on more than one occasion, the defendant knowingly traveled in interstate commerce for the purpose of engaging in illicit sexual conduct with Minor Victim I, including illegal sexual acts and the production of child pornography.

2. To the extent that the parties do not stipulate to a particular fact or legal conclusion, each reserves the right to argue the existence of and the effect of any such fact or conclusion upon the sentence.

3. In accordance with the above, and pursuant to Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure, the parties agree that a sentence of 84 months' imprisonment and 5 years' supervised release for the charges contained in the Information is reasonable under 18 U.S.C. § 3553(a), and neither party will argue for a sentence below or above 84 months' imprisonment and 5 years' supervised release. Furthermore, should the Court reject this agreement, either party may elect to be relieved of the terms of this plea and the parties will be returned to the status prior to the entry of the plea.

4. STEVEN BRADLEY MELL knows that he has and, except as noted below in this paragraph, voluntarily waives, the right to file any appeal, any collateral attack, or any other writ or motion, including but not limited to an appeal under 18 U.S.C. § 3742 or a motion under 28 U.S.C. § 2255, which challenges the sentence imposed by the sentencing Court if the sentence imposed is 84 months' imprisonment and 5 years' supervised release. This Office will not file any appeal, motion or writ which challenges the sentence imposed by the sentencing Court if the sentence imposed is 84 months' imprisonment and 5 years' supervised release. Furthermore, if the sentencing court accepts the stipulations set forth in Schedule A, both parties waive the right to file an appeal, collateral attack, writ, or motion claiming that the sentencing Court erred in doing so.

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Pursuant to 18 U.S.C. § 2252A(b)(1), if the Court determines that STEPHEN BRADLEY MELL has a prior sex offense conviction under Chapter 110, section 1S91, Chapters 71, 109A, or 117, or under section 920 of title 10 (article 120 of the Uniform Code of Military Justice), or under the laws of any state relating to aggravated sexual abuse, sexual abuse, or abusive sexual

conduct involving a minor or ward, or the production, possession, receipt, mailing, sale, distribution, shipment, or transportation of child pornography, or sex trafficking of children, the violation of 18 U.S.C. § 2252A(a)(2) to which STEPHEN BRADLEY MELL agrees to plead instead carries a mandatory minimum sentence of fifteen (1 S) years and a statutory maximum prison sentence of forty (40) years.

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Count Two - Interstate Travel to Engage in Illicit Sexual Conduct

The violation of 18 U.S.C. § 2423(b) to which STEPHEN BRADLEY MELL agrees to plead guilty carries a statutory maximum sentence of 30 years' imprisonment and a statutory maximum fine equal to the greatest of: (1) \$250,000; (2) twice the gross amount of any pecuniary gain that any persons derived from the offense; or (3) twice the gross amount of any pecuniary loss sustained by any victims of the offense. Fines imposed by the sentencing judge may be subject to the payment of interest.

Pursuant to 18 U.S.C. § 2426(a), if the Court determines that STEPHEN BRADLEY MELL has a prior sex offense conviction, the violation of 18 U.S.C. § 2423(b) to which STEPHEN BRADLEY MELL agrees to plead instead carries a maximum prison sentence of sixty (60) years.

Further, in addition to imposing any other penalty on STEPHEN BRADLEY MELL, the sentencing judge: (1) will order STEPHEN BRADLEY MELL to pay an assessment of \$100 per count pursuant to 18 U.S.C. § 3013, which assessment must be paid by the date of sentencing; (2) must order STEPHEN BRADLEY MELL to pay restitution pursuant to 18 U.S.C. § 2259; (3) must order forfeiture pursuant to 18 U.S.C. § 2253; and (4) pursuant to 18 U.S.C. § 3583 must require STEPHEN BRADLEY MELL to serve a term of supervised release of at least five (5) years and up to a maximum term of life on supervised release, which will begin at the expiration of any term of imprisonment imposed. Should STEPHEN BRADLEY MELL be placed on a term of supervised release and subsequently violate any of the conditions of supervised release before the expiration of its term, STEPHEN BRADLEY MELL may be sentenced to not more than five (5) years' imprisonment in addition to any prison term previously imposed, regardless of the statutory maximum term of imprisonment set forth above and without credit for time previously served on post-release supervision, and may be sentenced to an additional term of supervised release.

However, pursuant to 18 U.S.C. § 3583(k), should STEPHEN BRADLEY MELL be placed on a term of supervised release and subsequently commit an offense while on release in violation of chapters 109A, 110, or 117, or section 1201 or 1591 of the United States Code, for which imprisonment for a term longer than one (1) year can be imposed, STEPHEN BRADLEY MELL must be sentenced to at least five (5) years' imprisonment in addition to any prison term previously imposed, regardless of the statutory maximum term of imprisonment set forth above and without credit for time previously served on post-release supervision, and may be sentenced to an additional term of supervised release.

In addition, pursuant to the Justice for Victims of Trafficking Act of 2015, upon conviction, unless the Sentencing Court finds the defendant to be indigent, an additional mandatory special assessment of \$5,000 must also be imposed.

Pursuant to Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure, this Office and STEPHEN BRADLEY MELL agree that a sentence of 60 months' imprisonment and 5 years'

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supervised release is the appropriate disposition of this case. Accordingly, if the Court accepts this plea agreement, STEPHEN BRADLEY MELL will be sentenced to a term of 60 months' imprisonment and 5 years' supervised release.

Rights of This Office Regarding Sentencing

Except as otherwise provided in this agreement, this Office reserves its right to take any position with respect to the appropriate sentence to be imposed on STEPHEN BRADLEY MELL by the sentencing judge, to correct any misstatements relating to the sentencing proceeding, and to provide the sentencing judge and the United States Probation Office all law and information relevant to sentencing, favorable or otherwise. In addition, this Office may inform the sentencing judge and the United States Probation Office of: (1) this agreement; and (2) the full nature and extent of STEPHEN BRADLEY MELL's activities and relevant conduct with respect to this case.

Stipulations

This Office and STEPHEN BRADLEY MELL agree to stipulate at sentencing to the statements set forth in the attached Schedule A, which hereby is made a part of this plea agreement. These stipulations are offered as recommendations to the Court pursuant to Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure. To the extent that the parties do not stipulate to a particular fact or legal conclusion, each reserves the right to argue the existence of and the effect of any such fact or conclusion upon the sentence. Moreover, this agreement to stipulate on the part of this Office is based on the information and evidence that this Office possesses as of the date of this agreement. Thus, if this Office obtains or receives additional evidence or information prior to sentencing that it determines to be credible and to be materially in conflict with any stipulation in the attached Schedule A, this Office shall not be bound by any such stipulation. A determination that any stipulation is not binding shall not release either this Office or STEPHEN BRADLEY MELL from any other portion of this agreement, including any other stipulation. If the sentencing court rejects a stipulation, both parties reserve the right to argue on appeal or at post-sentencing proceedings that the sentencing court was within its discretion and authority to do so. These stipulations do not restrict this Office's right to respond to questions from the Court and to correct misinformation that has been provided to the Court.

Waiver of Appeal and Post-Sentencing Rights

As set forth in Schedule A, this Office and STEPHEN BRADLEY MELL agree that, provided the District Court imposes a sentence in accordance with this Rule 11(c)(1)(C) plea agreement, neither party will appeal that sentence. STEPHEN BRADLEY MELL further agrees that, in exchange for the concessions the United States made in entering into this Rule 11(c)(1)(C) plea agreement, he will not challenge his conviction for any reason by any means, other than ineffective assistance of counsel, and he will not challenge or seek to modify any component of his sentence for any reason by any means, other than ineffective assistance of counsel. The term "any means" includes, but is not limited to, a direct appeal under 18 U.S.C. § 4

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3742 or 28 U.S.C. § 1291, a motion to vacate the sentence under 28 U.S.C. § 2255, a motion to reduce the sentence under 18 U.S.C. § 3582(c)(2), a motion for early termination of supervised release under 18 U.S.C. § 3583(e)(1), or any other motion, however captioned, that seeks to attack or modify any component of the judgment of conviction or sentence.

Forfeiture

STEPHEN BRADLEY MELL agrees, as part of his acceptance of responsibility and pursuant to 18 U.S.C. § 2253, to forfeit to the United States (1) all computer and computer accessories on which law enforcement, in or about May 2018, discovered visual depictions described in Sections 2251, 2251A, 2252, 2252A, 2252B, and 2260 of Title 18 of the United States Code; (2) all visual depictions described in Sections 2251, 2251A, 2252, 2252A, 2252B, and 2260 of Title 18 of the United States Code that were produced, transported, shipped, or received in violation of chapter 109A of Title 18, United States Code; (3) all property, real and personal, constituting or traceable to gross profits or other proceeds obtained from the offenses charged in the information; and (4) all property, real and personal, used or intended to be used to commit or to promote the commission of the offenses charged in the information and all property traceable to such property (the "Forfeitable Property").

STEPHEN BRADLEY MELL further agrees to waive all interest in the Forfeitable Property in any administrative or judicial forfeiture proceeding, whether criminal or civil, state or federal. STEPHEN BRADLEY MELL agrees to consent to the entry of orders of forfeiture for the Forfeitable Property and waives the requirements of Rules 32.2 and 43(a) of the Federal Rules of Criminal Procedure regarding notice of the forfeiture in the charging instrument, announcement of the forfeiture at sentencing, and incorporation of the forfeiture in the judgment. STEPHEN BRADLEY MELL understands that the forfeiture of Forfeitable Property is part of the sentence that may be imposed in this case and waives any failure by the court to advise him of this pursuant to Rule 11(b)(9)(J) of the Federal Rules of Criminal Procedure at the guilty plea proceeding.

STEPHEN BRADLEY MELL hereby waives any and all claims that this forfeiture constitutes an excessive fine and agrees that this forfeiture does not violate the Eighth Amendment.

Immigration Consequences

The defendant understands that, if he is not a citizen of the United States, his guilty plea to the charged offenses will likely result in his being subject to immigration proceedings and removed from the United States by making him deportable, excludable, or inadmissible, or ending his naturalization. The defendant understands that the immigration consequences of this plea will be imposed in a separate proceeding before the immigration authorities. The defendant wants and agrees to plead guilty to the charged offenses regardless of any immigration consequences of this plea, even if this plea will cause his removal from the United States. The defendant understands that he is bound by his guilty plea regardless of any immigration consequences of the plea. Accordingly, the defendant waives, any and all challenges to his guilty plea and to his sentence based on any immigration consequences, and agrees not to seek to withdraw his guilty plea, or to file a direct appeal or any kind of collateral attack challenging his guilty plea, conviction, or sentence, based on any immigration consequences of his guilty plea.

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consequences of the plea. Accordingly, the defendant waives, any and all challenges to his guilty plea and to his sentence based on any immigration consequences, and agrees not to seek to withdraw his guilty plea, or to file a direct appeal or any kind of collateral attack challenging his guilty plea, conviction, or sentence, based on any immigration consequences of his guilty plea.

Registration Consequences

STEPHEN BRADLEY MELL understands that his guilty plea to the charged offenses will likely result in a requirement that he register as a sex offender under federal and state law, and he will be subject to the registration law's requirements and penalties. STEPHEN BRADLEY MELL wants and agrees to plead guilty to the charged offenses regardless of any registration consequences of that plea. STEPHEN BRADLEY MELL understands that he is bound by his guilty plea regardless of any registration consequences of the plea. Accordingly, STEPHEN BRADLEY MELL waives any and all challenges to his guilty plea and to his sentence based on any registration consequences, and agrees not to seek to withdraw his guilty plea, or to file a direct appeal or any kind of collateral attack challenging his guilty plea, conviction, or sentence, based on any registration consequences of his guilty plea.

Adam Walsh Child Protection and Safety Act

STEPHEN BRADLEY MELL has been advised, and understands, that under the Sex Offender Registration and Notification Act, a federal law, he must register and keep the registration current in each of the following jurisdictions: where STEPHEN BRADLEY MELL resides; where he is an employee; and where he is a student. STEPHEN BRADLEY MELL understands that the requirements for registration include providing his name, his social security number, the address of any place where he resides or will reside, the names and addresses of any places where he is or will be an employee or a student, and the license plate number and a description of any vehicle owned or operated by him, among other information. STEPHEN BRADLEY MELL further understands that the requirement to keep the registration current includes informing at least one jurisdiction in which he resides, is an employee, or is a student not later than thirty business days after any change of his name, residence, employment, or student status. STEPHEN BRADLEY MELL has been advised, and understands, that failure to

comply with these obligations subjects him to prosecution for failure to register under federal law, 18 U.S.C. § 2250, which carries a statutory maximum prison sentence of 10 years and a statutory maximum fine equal to the greatest of: (1) \$250,000; (2) twice the gross amount of any pecuniary gain that any persons derived from the offense; or (3) twice the gross amount of any pecuniary loss sustained by any victims of the offense.

Other Provisions

This agreement is limited to the United States Attorney's Office for the District of New Jersey and cannot bind other federal, state, or local authorities. However, this Office will bring this agreement to the attention of other prosecuting offices, if requested to do so.

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This agreement was reached without regard to any civil or administrative matters that may be pending or commenced in the future against STEPHEN BRADLEY MELL. This agreement does not prohibit the United States, any agency thereof (including the Internal Revenue Service), or any third party from initiating or prosecuting any civil or administrative proceeding against STEPHEN BRADLEY MELL.

No provision of this agreement shall preclude STEPHEN BRADLEY MELL from pursuing in an appropriate forum, when permitted by law, an appeal, collateral attack, writ, or motion claiming that STEPHEN BRADLEY MELL received constitutionally ineffective assistance of counsel.

No Other Promises

This agreement constitutes the plea agreement between STEPHEN BRADLEY MELL and this Office and supersedes any previous agreements between them. No additional promises, agreements, or conditions have been made or will be made unless set forth in writing and signed by the parties.

APPROVED:

MARYE. TOSCANO

Deputy Chief, Criminal Division

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Very truly yours,

By: DANIELLE A O

Assistant United States

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I have received this letter from my attorney, Robert A. Bianchi, Esq. I have read it. My attorney and I have discussed it and all of its provisions, including those addressing the charges, sentencing, stipulations, waiver, forfeiture, immigration consequences, and registration consequences, as well as the impact that Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure has upon this agreement. I understand this letter fully. I hereby accept its terms and conditions and acknowledge that it constitutes the plea agreement between the parties. I understand that no additional promises, agreements, or conditions have been made or will be made unless set forth in writing and signed by the parties. I want to plead guilty pursuant to this plea agreement.

AGREED AND ACCEPTED:

~ME:L

Date:) 1.. • i'o■ I have discussed with my client this plea agreement and all of its provisions, including those addressing the charges, sentencing, stipulations, waiver, forfeiture, immigration consequences, and registration consequences, as well as the impact that Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure has upon this agreement. My client understands this plea agreement fully and wants to plead guilty pursuant to it.

~r~ ~TA. BIANCHI Date: 12.1.18

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I.

following facts:

Plea Agreement with STEPHEN BRADLEY MELL

Schedule A

This Office and STEPHEN BRADLEY MELL agree to stipulate to the

- a. From at least as early as July 2017 through December 2017, the defendant knowingly received images of child pornography from Minor Victim 1.
- b. With respect to Minor Victim 1, the defendant engaged in a pattern of activity involving the sexual abuse or exploitation of a minor.
- c. The offense involved the use of a computer or an interactive computer service for the possession, transmission, receipt, or distribution of the material, or for accessing with intent to view the material.
- d. From at least as early as July 2017 through December 2017, and on more than one occasion, the defendant knowingly traveled in interstate commerce for the purpose of engaging in illicit sexual conduct with Minor Victim 1, including illegal sexual acts and the production of child pornography.

2. To the extent that the parties do not stipulate to a particular fact or legal conclusion, each reserves the right to argue the existence of and the effect of any such fact or conclusion upon the sentence.

3. In accordance with the above, and pursuant to Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure, the parties agree that a sentence of 60 months' imprisonment and 5 years' supervised release for the charges contained in the Information is reasonable under 18 U.S.C. § 3553(a), and neither party will argue for a sentence below or above 60 months' imprisonment and 5 years' supervised release. Furthermore, should the Court reject this agreement, either party may elect to be relieved of the terms of this plea and the parties will be returned to the status prior to the entry of the plea.

4. STEPHEN BRADLEY MELL knows that he has and, except as noted below in this paragraph, voluntarily waives, the right to file any appeal, any collateral attack, or any other writ or motion, including but not limited to an appeal under 18 U.S.C. § 3742 or a motion under 28 U.S.C. § 2255, which challenges the sentence imposed by the sentencing Court if the sentence imposed is 60 months' imprisonment and 5 years' supervised release. This Office will not file any appeal, motion or writ which challenges the sentence imposed by the sentencing Court if the sentence imposed is 60 months' imprisonment and 5 years' supervised release. Furthermore, if the sentencing court accepts the stipulations set forth in Schedule A, both parties waive the right to file an appeal, collateral attack, writ, or motion claiming that the sentencing Court erred in doing so.

Tab D-4
Tab D-4
Sentencing Memorandum — State v. Steven Bradley Mell,
Hunterdon County, June 26, 2019

June 26, 2019
Via E-file
The Honorable Angela Borkowski, J.S.C.
Hunterdon County Superior Court
65 Park Ave.
P.O. Box 756
Flemington, NJ 08822-0756
RE: State v. Steven Bradley Mell, (a.k.a Brad Mell)
Complaint No. W-2018-000117-1022
Dear Judge Borkowski:

We respectfully submit this Memorandum on behalf of our client Steven Bradley Mell in connection with his sentencing proceeding scheduled for June 28, 2019.

On May 13, 2019, this Court received Mr. Mell's plea of guilty, where Mr. Mell pled guilty to the following offense: (1) 2C:24-4a(1), Endangering the Welfare of a Child a crime in the 3rd degree.

The Defendant's sentence is to run concurrent with the Defendant's Federal sentence under (3:18-Cr-00757-BRM) of 84 months in prison with 5 years of supervised release, and the New Jersey State sentence of 3 years must be stayed until after the Mr. Mell voluntarily surrenders to his Bureau of Prisons designated facility.

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PRELIMINARY STATEMENT

Mr. Mell's decision to cooperate and take full responsibility for his own conduct reflects his personal resolve, notwithstanding past errors, to re-point his internal compass true north toward a productive, ethical and thoroughly law-abiding life.

We now turn to the additional factors relating to sentencing. Our comments below, respectfully, are intended to be taken in the above-expressed spirit, in which Mr. Mell has agreed to accept responsibility. He accepts full responsibility for the offense conduct, and we, as counsel, submit the below considerations in this context.

Mr. Mell's Personal History and Characteristics

Mr. Mell was born on December 15, 1965 at Morristown Memorial Hospital in New Jersey. He has two siblings, Courtney and William, who are 54 and 55 respectively. His mother, Diana age 81, thankfully is still alive in South Carolina; and his father, William Harvey, passed away in December of 2008.

Mr. Mell was raised in a loving and compassionate family. He demonstrated to them early on that he had the drive and focus to succeed, and that he was determined to dedicate all his time and energy to his family, his charity, his work, his employees, and his hobbies. Indeed, it is his care and compassion for others that has impacted the lives of so many people, as stated by his mother, Diana Mell.

My son is a warm, considerate, thoughtful and generous person and has never given his family one ounce of trouble or hardship...He is loved by his loved his brothers and children, who stand behind him and support him unconditionally.

Brad is a well-respected businessman and individual, always putting the needs of others before his own. [Exhibit A1]

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Mr. Mell's academic career began in New Jersey at Far Hills day school from K-9th grade,

Tilton Prep School in New Hampshire for High School, and Boston University for college where he graduated in 1988 with a major in psychology.

Early on, Mr. Mell struggled in school barely making C's and D's. Fortunately, Headmasters of Far Hills Day School, Russ Ball and Chuck Scranton, recognized Mr. Mell was suffering from dyslexia. When he was diagnosed with an extreme case of dyslexia, he worked tirelessly to overcome his obstacles. Indeed, it paid off. In seventh-grade, Mr. Mell went from C's and D's to an improvement so drastic that he received the Headmaster's Award.

After attending Far Hills Day School, he enjoyed the opportunity to attend Tilton Prep School in New Hampshire. He excelled at Tilton, participating in three sports including the varsity hockey team. Along with his performance as an athlete and scholar, he also found time to participate in theater and in his senior year he was honored with the Theater Award for his work on the productions of the school's plays.

As a teen, Mr. Mell became passionate about flying. His desire to always put his focus and energy into everything he did was never more apparent than his love for flying. He received his pilot's license at the age of 16, and in 2008, he received his fixed wing and helicopter rating. His love of flying, along with the peace, serenity, and joy he got from being in the air became the source of his greatest memories.

In 1984, Mr. Mell moved to Boston where he attended college at Boston University. Mr. Mell was always actively looking to serve, so in 1987 he became an auxiliary police officer in Boston. In 1988, Mr. Mell graduated college with a M.A. in Psychology. During the next few years, Mr. Mell worked as a trader for the State Street Bank in Boston and began to develop a

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talent for finance. It was also during this time that he found his greatest love- Kimberly Ruggles, whom he married in 1992.

Mr. Mell and his wife moved back to New Jersey, where Mr. Mell began his new career with his father at W.H. Mell Associates. He started out as a municipal broker dealer making less than \$20,000 per year. He hoped that he would be able to grow W.H. Mell Associates into the business through his tireless work and aptitude, but Mr. Mell being who he is did not just grow into the business; he helped transform the company from the ground up. In 1996, Mr. Mell took over as company President, and as President of W.H. Mell, Mr. Mell was responsible for the continued employment and support of over 15 associates and their families. His employees have always been like family to Mr. Mell, and he continued to grow the business of the firm to staggering heights.

Gratefully, it was during this time that Mr. Mell also built his life as a proud family man.

Mr. Mell's first daughter, Emily, was born in 1996. She graduated from Bucknell University with a degree in education the weekend after his arrest. Mr. Mell was forced to miss the graduation due to his detention which will be a regret until the day he dies. In 1998, Mr. Mell's second daughter, Eliza, was born. She is now attending Colby College as a pre-med veterinary student, and, in 2003, Mr. Mell's son, William, was born. He is a high school student at Westminster School in Connecticut.

Mr. Mell loves and is proud of all his children. Even while running an organization of multiple companies, Mr. Mell always had time for his children. He has been integral in the education of his children, constantly being present and active for every event, play, graduation, conference and game. Mr. Mell became an active member of school boards and hockey teams. He enjoyed three years with Eliza taking her around the country playing travel hockey with the

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Colonials. He was a coach of the hockey team for over 10 years at the Essex Hunt Club. And for 15 years, Mr. Mell served as a board member at Westminster School, the last two years of which he also served as Chair of the Investment Committee.

Incredibly, Mr. Mell also devoted time and service on the Far Hills Day School board for 10 years as a way to give back to the school that helped him overcome his extreme dyslexia. He served for over 10 years as the Chairman for Building and Grounds. In 2017, Mr. Mell was celebrated with a special dedication for his work during his 10-year volunteer service to the school. Wendy Cutler, friend of Brad since childhood acknowledges this event, "He received the "Unsung Hero Award" at Far Hills Country Day School for quietly and anonymously donating his time and financial resources to the school." [Exhibit A2]

Life seemed to be going great for Mr. Mell. He had a wonderful family, a successful business, and an active community life. It seemed that nothing could ever go wrong, until October 1, 2011: Mr. Mell was scheduled to attend a golf outing with friend Will Ellsworth, and two others in New York. Will, who he considered his best friend, planned to travel via helicopter to the Pine Valley Golf Club and return the same evening, but it was a last-minute work circumstance that caused Mr. Mell to back out of the trip and ask his friend Tighe Sullivan to take his place.

Tragically, Will Ellsworth and Tighe Sullivan while traveling in one of Mr. Mell's helicopters crashed the very same day just outside of Mount Pocono, both his friends died in the crash. The survivor's guilt sent Mr. Mell into a spiral of depression. He was burdened with the thought of their families and guilt for the suffering his own family avoided.

Mr. Mell sought the help of a therapist. Coping with the loss of friends – two of whom died on that helicopter- has been an arduous process. But it was in therapy that Mr. Mell was able to see how much he was doing for so many people, and how the burden of his responsibility to so

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many people was taking its toll on him emotionally. He had supported his father and mother through his father's alcoholism and continued to pay all the bills for his parents as well as some of his siblings. His responsibility to his family was enormous, and Mr. Mell never balked at the opportunity to give to so many.

Mr. Mell has not only been generous with his family and his employees, but he knows that providing and caring for others who are not as fortunate as himself is vital to the community.

William, his brother, writes about the selfless philanthropic nature of his brother.

Another great example of this is that Brad does Air Lifeline which is now known as Angel Life flights for people that need better medical care in a different part of the county so he either flies them himself to wherever or, at this own expense, has a pilot use his plane to get the patient to wherever they need to go. [Exhibit A3]

While Mr. Mell helped to build a successful business, organized numerous charitable programs, and achieved numerous awards as a student, coach, board member and businessman, he prefers not to live in the spotlight but rather to let his actions as a husband, father, business owner, and volunteer be the story of his life. As a humble man, Mr. Mell has not announced the accolades he has received in his lifetime. Instead, his family and friends proudly proclaim the impact Mr. Mell's actions and service has had on all of them.

Lifetime Contacts and Charitable Foundation

Mr. Mell has a lifetime of contacts in the New Jersey area, many of whom are well-respected professionals. He has always been well known in the community as an upstanding professional holding several licenses in finance, including his series 63, 7, 52, 24 and 53. He is longstanding board member on the Essex Hunt Club, Tilton Prep School, Somerset Hills Country Club and was a member Far Hills Day School Board from 2004-2014.

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Mr. Mell started his own charitable foundation, Air Lifeline (merged with Angel Flights in 2009), that has donated to families of children with medical needs, the ability to fly anywhere in the country in order to receive medical treatment.

Alan Sobel, certified public accountant and friend of Mr. Mell for over twenty years recalls that, "...Brad was a dedicated husband, father, and friend. Family and friends were the most important things in his life. He was incredibly charitable in his giving, both time and money, to the community he lived in and the schools his children attended." [Exhibit A4]

Mr. Mell is a donor to the Mooreland Foundation, Morristown Memorial Hospital, NJ Visiting Nurse Association, Far Hills Day School, Westminster School, Red Cross, and Brady Life Camp (a Newark inner-city kids camp). He has given to countless other charities choosing to remain anonymous in his generosity.

Mr. Mell's incredible generosity and love for his friends shines through in a letter from Perry Hall, a friend of Mr. Mell's since childhood:

My father died in July 2012 and we planned the funeral shortly thereafter. It was in the middle of summer and many of my friends were on vacation and busy with their own young families.

Entirely on his own, Mr. Mell arranged to fly about 8 of my closest friends to attend the service and return them back to their own families the same day so as not to disrupt family vacations. While Mr. Mell knows these folks through mutual friends, these were my closest college friends – not his. He knew how much the effort would mean to me at a very difficult time. He didn't ask anyone to help pay and wasn't doing it for any kind of personal gain, but rather because he knew how great it would be for me to have such a strong support network. [Exhibit A5]

Mr. Mell has up to this point in his life led a life free from criminal prosecution and is considered by his friends and family as an asset to his community. Mr. Mell has consistently demonstrated throughout his life his accountability and integrity to his family, his business, his

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employees, his clients, and the community. His invitation to sit on multiple school boards, local clubs and organizations, along with his 25-year stellar track record with his clients further shows that he is a man who is trusted by many respected members of our community.

Health

In 2004, Mr. Mell was diagnosed with a life-threatening illness of Sclerosing Cholangitis and Crohn's Disease. Sclerosing Cholangitis is a chronic liver disease of the bile duct and was a told he could expect another 8- 10 years of life. That was 16 years ago, and Mr. Mell reports living for 10+ years with the palpable sense that he could die at any time. He is grateful to have been blessed with the additional years and has tried to make each moment that he has spent with his family that much more lasting and memorable.

While his diagnosis, does not diminish the pain that he has caused so many others, he hopes that he will be able to have more moments with his children and family beyond this sentence.

Evaluations

Mr. Mell was previously evaluated by Dr. Catherine Barber, Ph.D. as appointed by United States Pre-Trial Department, on May 31, 2019 as well as Dr. Richard Krueger on September 19, 2018. Each doctor has determined that Mr. Mell is a low risk for re-offense and the circumstances related to the offense are not likely to reoccur.

...Mr. Mell's score of 0 places him in the "below average risk" range.

Among a sample of routine sex offenders (non-high risk), between 2.2 and 3.5 out of 100 offenders with a score of 0 would be expected to be charged or convicted of new sexual offense by five years post-release. [Exhibit B1]

Mr. Mell is not a pedophile and does not have any pattern of paraphilic or

hypersexual behavior. His risk of a future sexual crime is low or very low according to 5 instruments used to assess such risk. [Exhibit B2]
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Recently, on April 9, 2019, Mr. Mell was re-evaluated by Dr. Richard Krueger prior to his federal sentencing. This re-evaluation included another interview of Mr. Mell and additional objective testing. Dr. Krueger's opinion remains unchanged, "Mr. Mell is not a pedophile and does not have any pattern of paraphilic or hypersexual behavior. His risk of a future sexual crime is low or very low according to 6 instruments used to assess such risk and will be reduced by both therapy and supervision when he is in the community." [Exhibit B3]

Furthermore, in a report authored by Dr. Daniel Watter, who has been Brad's therapist since mid-August 2018 has agreed to author a report that details the circumstances that may have led to choices that Mr. Mell made and thus leading to current criminal action against him. "Mr. Mell's behavior was, by all accounts, uncharacteristic of any of his prior behaviors. This point is particularly salient when assessing the factors that were driving Mr. Mell's inappropriate sexual behaviors. It is for this reason, as well as his traumatic family history, that I characterize Mr. Mell as a trauma patient as opposed to a sex offender." [Exhibit B4].

Letters of Support and Acceptance of Responsibility

Despite being charged and pleading guilty to the crimes so charged, Mr. Mell has continued to receive support from his family and friends. Here contained are additional letters of support for Mr. Mell which acknowledge that the incident contained within the State's complaint is an aberration, inconsistent with the man that they have raised, grow-up with, and considered a friend. Lt. Col Hunter Kellogg and his wife write about Mr. Mell's acceptance of responsibility.

"We are aware of Brad's wrongdoings, and acknowledge their seriousness, but also his acceptance of responsibility. He has offered no excuses, only context." [Exhibit A3]

Additionally, Wendy Cutler discusses the man she has known and his contrition for this act. "Brad is so remorseful, so sad, so disheartened and so apologetic for his actions. He knows the damage he has caused to his family and that is going to be very difficult to make

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amends...please don't judge him solely on this one chapter of his life. Throughout his life, Brad has performed countless, selfless acts of kindness." [Exhibit A4]

Joy Frelinghuysen friend since middle school, gives an honest assessment of the choice Brad made as well as the love he has for his family and how he has their support and love.

These loving, supportive aspects of Brad's character found their true north when he had children. In fact, his most beautiful quality is his deep love for his children. Do I realize the irony of this statement give the circumstances of his case? I absolutely do. For all of us who know and love Brad, his poor judgement and choices in this matter will never make sense, but here is what I can tell you for sure. His three children do not have one doubt in their minds about his undying love for them. [Exhibit A7]

Additionally, Mr. Mell takes, "full responsibility for my conduct in this case. I am embarrassed and ashamed that I permitted myself to cross the line and violate the law. I am prepared to accept the Court's prison term, do my time in prison, and move forward making positive contributions to society and being the best possible father possible. I want to apologize to [Minor Victim 1] I am sorry for my actions and it is my hope that everyone can move forward with this difficult period of their lives."¹

Mr. Mell is blessed with family and friends who are aware of the ramifications of his guilty plea and the loss his children will experience without him around for the next 84 months. However, they know that he must atone for his actions and that when he is released, he will

continue to be the productive and giving man he was before this incident.

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June 19, 2019 Presentence Report, Hunterdon County – Attachment 1

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CONCLUSION

Accordingly, for all the reasons stated above, and based on all the sentencing factors the Defendant humbly requests that this Honorable Court accept the terms of Defendant's plea, and sentence Mr. Mell to a prison term of 3 years to run concurrent to the federal sentencing, with the primary custodial sentence be served within the Federal Bureau of Prisons designated facility.

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EXHIBIT A1

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The Bianchi Law Group, LLC
4 York Avenue, 2nd Floor
West Caldwell, New Jersey 07006

For Scanned/Emailed Letters:
rseanes@bianchilawgroup.com

Mrs. Diana Mell
72 Fletcher Hall
Kiawah, SC, 29455
March 18, 2019

The Honorable Brian R. Martinolli
United States District Judge for the District of New Jersey
Clarkson S. Fisher Federal Building & US Courthouse
402 East State Street
Trenton, New Jersey 08608

Re: United States of America Vs. Steven Bradley Mell

Dear Judge Martino,

I am Diana Donlin Mell and am Steven Bradley Mell's ("Brad") natural and biological mother. I have raised Brad from birth and continue to have a very close relationship with him. I am acutely aware of Brad's guilty plea and wish to provide Your Honor with my assessment of this as an aberration from the son that I know and love. My son is a warm, considerate, thoughtful and generous person and has never given his family one ounce of trouble or hardship. He has always been a very attentive son and has truly been a God-send to me. He is loved by his brothers and children, who stand behind him and support him unconditionally. Brad is a well respected businessman and individual, always putting the needs of others before his own. He is active in his community, has been on the boards of Westminster Schools, Far Hills Country Day Schools, and also coached girl's hockey at the Essex Hunt Club. Brad also founded Aero Care Life Flights, which is an organization that provides free air transportation for those that need medical treatment far away from their home and also transportation for other community services. He has often provided his own private aircraft for use by families who have lost loved ones.

I humbly request leniency and mercy from the Court in sentencing for my son and request that the Court follow the terms of the plea agreement which states that Brad will be sentenced to federal prison for 60 months. Thank you for your time and consideration.

/s: Diana Mell

Diana Donlin Mell

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Wendy Cutler
110 Bowery Road
New Canaan, CT 06840
March 21, 2019
The Honorable Brian R. Martinotti
United States District Judge for the District of New Jersey
Clarkson S. Fisher Federal Building & US Courthouse
402 East State Street
Trenton, New Jersey 08608
Re: United States of America vs. Steven Bradley Mell

Dear Judge Martinotti,

Brad has been an integral part of my life since we were toddlers. In fact, one of my mother's favorite pictures is of the two of us in diapers. Brad and I went to elementary school together through junior high. Most days, after school, Brad logged countless hours at my house. It is fair to say my mother was his "second mom" I think he was even given chores. After college, we were roommates in Boston and I was a bridesmaid at his wedding. Brad is more than my friend he is my "brother from another mother."

When I heard about what Brad had done, the only thing that came to mind was - out of character. I don't know what caused this behavior-- if it was a severe mid-life crisis, survivors' guilt from the helicopter crash that killed his best friend, or something else entirely but never, would I think Brad would find himself in this position. Brad always put family above all else. Over the last several months, Brad and I have spent a considerable amount of time together in person and on the phone. We have spent countless hours discussing his actions. The one thing I know with every fiber of my being: Brad is so remorseful, so sad, so disheartened and so apologetic for his actions. He knows the damage he has caused to his family and that it is going to be very difficult to make amends, but he is determined. He has told me his sole goal when he gets out of prison is to repair and refocus his family.

Despite what Brad has done recently, please don't judge him solely on this one chapter of his life. Throughout his life, Brad has performed countless, selfless acts of kindness. He has been on the board of trustees at Far Hills Country Day School (where we went to school together), Westminster School and Essex Hunt Club. He received the "Unsung Hero Award" at Far Hills Country Day School for quietly and anonymously donating his time and financial resources to the school.

Brad is the person you call at 2 am, in the pouring rain, to come help change your flat tire. In fact, the home where he is staying on house arrest is the home of a family that he helped.

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When Brad heard about their child needing urgent medical care, he dropped everything and flew their child to the best hospital to receive critical care. He did this without knowing the child or the parents previously. Brad was aware of how fortunate he was financially and donated time and resources to many organizations. He frequently used his plane to fly people free of charge to receive medical care.

As a parent, I can also state with confidence and all my heart, Brad is an incredible, highly involved father to his children - Emily, Eliza, and William. He is involved with their education, sports, and well-being. He has coached his children's ice hockey teams, driven to countless games at Westminster and Colby and encouraged them to be happy, well-rounded people. Please consider being lenient on Brad's sentence. He has been on house arrest for 9 months and he is sincerely remorseful about his acts. He takes full responsibility for his situation and

wants to "complete his time" so he can get out and begin to make amends. He desperately wants to continue to provide for his family as well as rebuild his relationships with them.

Please be kind.

Thank you so much for taking the time to consider this letter of support.

Respectfully,

w~

Wendy S. Cutler

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EXHIBIT A3

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Mr. William H. Mell II

13 School Street

Hopkinton, MA 01748

March 27, 2019

The Honorable Brian R. Martinotti

United States District Judge for the District of New Jersey

Clarkson S. Fisher Federal Building & US Courthouse

402 East State Street

Trenton, New Jersey 08608

Re: United States of America vs. Steven Bradley Mell

Dear Judge Martinotti,

My name is William H. Mell III and I am the older brother to Bradley Mell, so aside from our parents, I guess you could say I know him well and the longest too. Brad and I along with our other brother Courtney have had a lot of different experiences together ranging from grade school to being members at the same clubs and right on into living together for a period of time in college so I know him very well in a multitude of different situations and environments. Although we went in different directions career wise, naturally our lives are still intertwined to this day. In fact, Brad is the person my wife and I chose to be legal guardian of my 2 girls should anything ever happen to us and to this day that has not changed. We KNOW him and TRUST him!!

Needless to say, we are completely aware of everything and Brad's guilty plea and can emphatically tell you this is an aberration. Brad I've known the past 53 plus years. The Brad I know has always been a hard worker with integrity and determination to not only succeed at a job, but to do it the right way starting when he was 16 years old. At that age he started his own business with a friend washing and detailing the inside/outside of airplanes and cars. He did such a great job that it didn't take long for his business to grow by word of mouth and for the next 4 years or so that was his summer job. He has carried his work ethic and integrity through into the business world where he has made many friends and has earned everyone's respect! In fact, he is so highly respected that he was asked to be on the Board of Directors at a number of places, including the private clubs we belong to as well as private schools and charities.

Another great example of Brad's character is that Brad does Air Lifeline which is now known as Angel Life flights for people that need better medical care in a different part of the country so he either flies them himself to wherever or, at his own expense, has a pilot use his plane to get the patient to wherever they need to go. Brad has also helped raise money for the schools and charities to help others (i.e. Brady Camp for underprivileged kids from Newark, Mooreland Foundation, et al.). The list could go on and on but the bottom line is Brad is a man of strong character and integrity!

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A third and final example of the Bradley Mell I know is the size of his heart and helping people when they need it. There was a woman who started working for W.H. Mell back when our Father first started it and continued working there when Brad took over the business. By this time she

was more like family, but when her mother passed away, this woman and her family were so devastated that Bradley flew her and her whole family down to South Carolina with his plane and at his expense for 5 days so that they could just be together and hopefully have some good memories come out of the experience. The list could go on but you should get the picture at this point.

As for Brad's family, I want the courts to know that Brad has never been a problem to anyone and he adores his family more than you will EVER know! Brad truly is a good son and has been there for our Mother who is 81 and fighting cancer.

The only concern me or my family have ever had about Brad was the after effects on him when his helicopter went down killing a very close family friend as well as another passenger. This was an accident that completely devastated Brad and frankly, we didn't think the doctor treating him was helping. Thankfully he is now seeing one that most definitely is helping and treating him for PTSD as a result of the accident I have always been told that prison is supposed to rehabilitate someone from deviant behavior, but in this case, we're not talking about a guy sitting in a room 24/7 on a computer trying to lure little children or driving around in a van looking for children. We're talking about a guy who suffers from a proven illness (as diagnosed by the Psychiatrists on both sides of the table) brought on by a tragic event and engaged in conduct that was condoned by the family. Heck, after the facts came to light of the accusing family's criminal actions, even the prosecutor acknowledged she felt badly for Brad but has to do her job. The fact that the Prosecutor has now seen more evidence and has come to a plea agreement should also say something. If the Court truly wants to really help him, then do the right thing and put him on probation for 5 or 7 years and make it mandatory that he visit his therapist once or twice a week. Should you decide to send him to prison, I'll ask the Court to be as lenient and as merciful as possible in sentencing Brad and follow the terms of the plea agreement. which is, that Brad will be sentenced to federal prison for 60 months.

Thank you very much for considering my letter.

Respectfully,

William H. Mell III

William H. Mell III

William H. Mell III

William H. Mell III

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EXHIBIT A4

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SOBEL co. LLC

293 Eisenhower Parkway

Livinston, NJ 07019-1711

Phone: 973.994.9494

Fax: 973.994.9494

William H. Mell III

March 23, 2019

The Honorable Brian R. Martinotti

United States District Judge for the District of New Jersey

Clarkson S. Fisher Federal Building & US Courthouse

402 East State Street

Trenton, New Jersey 08608

Re: United States of America Vs. Steven Bradley Mell

Dear Judge Martinotti,

I am writing on behalf of my friend Steven Bradley Mell (Brad). I am a Certified Public Accountant in the State of New Jersey and have known Brad for over twenty years. We first met when Brad was working with his father in the Municipal Bond Broker/Dealer they owned,

WH Mell Associates. WH Mell was a client of our firm where we provided audit and tax compliance services as well as tax services to his family and other business ventures he was involved with.

Over the history of working together with Brad, I have had the privilege of getting to know him beyond the debits and credits of his business. I came to know Brad as both a businessman and as a friend; a friend with a good foundation of values and a strong commitment to his family and his community.

On a professional level, Brad and I discussed many complex business issues that required decisions, some that were crystal clear and others that were not so clear. My overwhelming experience with Brad's decision making was that he chose the course most in line with appropriate regulatory, legal and ethical considerations. Based on these experiences, I believe Brad to be a client that treated me with appropriate professional respect and one that tackled the issues we needed to address with strong and appropriate values.

Through our business relationship, I also got to know Brad on a personal level. Over twenty years you learn a lot about someone. What I learned is that Brad was a dedicated husband, father and friend. Family and friends were the most important things in his life and his business was merely the vehicle to help him provide the very best he could for them. He was incredibly charitable in his giving, both time and money, to the community he lived in and the schools his children attended. Though his kids attended out of state boarding high schools, Brad made every attempt to be there for their games and other important events.

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Honorable Brian R. Martinotti Page Two

Several years ago, Brad's friends were in a fatal crash on a helicopter that Brad owned. He was also supposed to be on that flight, but another business commitment prevented him from going. You can only imagine the personal devastation, loss and guilt that Brad experienced. Yet, even though he faced potential liability as the owner of the aircraft, Brad was there for his friends' families and ensured that they received as much financial consideration and personal support that was possible. It was the kind of person he was, and a testament to his strong character, that he did not hide from those responsibilities or run the other way.

As you deliberate on the sentence for Mr. Mell, I respectfully request you consider my personal experiences with Brad. It is my hope that you will weigh his guilty plea against the balance of his contributions to his family, community and friends and recognize all that he offered so far during his lifetime. He still has much to offer and I ask that you follow the terms of the plea agreement when you determine his sentence so he can return to society and make more positive contributions.

Thank you very much for your consideration of my letter.

Very truly yours,

SOBEL & CO, LLC

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~ SOBEL & CO} LLC

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EXHIBIT AS

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May 24, 2018

To Whom it may concern -

I recently heard that Brad Mell is being held in jail. I have not spoken to Brad in several months and have

no details of what he has been accused of doing. I am writing because I have known Brad for most of my life since we were childhood friends, and I wanted to share my observations of and personal interactions

with Brad in support of his character.

Brad and I grew up on the same street. While we were not extremely close friends, we attended the same school and played on the same sports teams. Brad has always been a person who stood up for people and treated everyone with respect regardless of their age and role. He was well-liked by everyone and would always stick up for the underdog and be a trusted friend. In middle school, Brad would occasionally invite

me to his house let me ride on his mini-bike or snowmobile that he had worked very hard to buy for himself.. Starting in grade school, Brad was very driven and always had a job of sorts, and yet was very generous with his coveted "toys" and loved to share the excitement of riding them.

Brad and I would see each other occasionally during our high school and college years. As adults, we both eventually moved back to the community in which we grew up in New Jersey to raise our families. In my observation, Brad has been a very involved father, dedicating time to his kids at their school and in sports.

I can't remember all the history, but Brad began to work in his Dad's business (which I recall as good, but in

somewhat of a decline before Brad became more involved). Similar to his childhood, Brad worked extremely hard, strengthened the business and built significant professional success. Brad has applied this

success to help others. He has been an active volunteer and board member for many local organizations. He gives generously of his time and money to help causes, organizations and people.

The most important thing I remember about Brad, and why I am writing this letter, is what Brad did for me when my father died. Brad knew my father and knew how close we were. Brad had a similar relationship with his father. My father died in July 2012 and we planned the funeral shortly thereafter. It was in the middle of summer and many of my friends were on vacation and busy with their own young families. Entirely on his own, Brad arranged to fly about 8 of my closest friends to attend the service and return them back to their own families the same day so as not to disrupt family vacations. While Brad knows these folks through mutual friends, these were my closest college friends - not his. He knew how much the effort would mean to me at a very difficult time. He didn't ask anyone to help pay and wasn't doing it for

any kind of personal gain, but rather because he knew how great it would be for me to have such a strong support network.

These are my personal experiences with Brad and I have always known him to have a great character.

Sincerely,

Perry Hall

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EXHIBIT A6

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LtCol & Mrs. Hunter R. Kellogg USMC (Ret.)

111 Hart St. Beverly, MA. 01915

The Honorable Brian R. Martinotti

United States District Judge for the District of New Jersey

Clarkson S. Fisher Federal Building & US Courthouse

402 East State Street

Trenton, New Jersey 08608

RE: United States of America Vs. Steven Bradley Mell

Dear Judge Martinotti,

3 April 2019

I write today in regards to the case referenced above; my wife and I know Mr. Mell by "Brad", and will refer to him as such herein. We are aware of Brad's wrongdoings, and acknowledge their seriousness, but also his acceptance of his responsibility. He has offered us no excuses, only context. We write to you in hopes of conveying a wider picture of who Brad Mell is as a person,

not to excuse his past transgressions.

My wife and I met Brad Mell eight years ago, as his eldest daughter, Emily, was dating our son; they were both students at Westminster School. Brad was serving as a beloved member on the Board of Trustees at Westminster and we met him when he came in for a trustees meeting. We knew Emily long before we met her father, and I cannot more deeply convey the level of her character, and that of Eliza and William, her two siblings, which Courtney and I feel is a direct testament to how Brad and Kim raised their children.

The Mell family had means beyond ours; serving in the military is less lucrative than the private sector. What struck us about Emily was how responsible she was. how caring she was and how, after meeting her, one would never know she came from a family with such means. Her sister Eliza was also at Westminster, and Courtney and I were impressed by how sincere she was as well. I emphasize this because at a small private school, one can often find students who flaunt their families' wealth, students who are entitled and elitist, and students who, without flinching, will tell you to which family they belong. Our son was the only active-duty student at the time and suffered no fools. He and Emily hit it off immediately, and went on to date for six years.

When Courtney and I see our children's peers, it's usually clear how they were raised. With pride, I submit that our children are respectful, socially active, global, no-nonsense children - and we are honored to see the adults they have become. Brad's children are likewise, demonstrating every characteristic you'd want in your own child: inquisitive, helpful, down-to-earth, caring, bright, thoughtful and responsible.

Incredible children don't "happen", they are the result of thoughtful guidance, gentle nudging, deep support and truly loving parenting. One out of three stellar children could be a fluke; three of three children being the kind of person you'd want your children to befriend, means their parents did it right. Brad was the father who answered every call, spent time with his children, and tried to attend every game his children played in, no matter life's demands; he is that devoted to his children, and they are the better for it.

Neither Courtney nor I condone what Brad has done: and in our many conversations with him, it is crystal clear he knows that he needs to right his wrong. He made a mistake and should be held responsible for his role. Months ago, Courtney and I were concerned about Brad's emotional well-being: the despair was clearly evident when we spoke to him. Today he seems at peace, knowing that there is an end in sight and he will pay his debt to society, as any offender should.

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LtCol & Mrs. Hunter R. Kellogg USMC (Ret.)

111 Hart St. Beverly, MA. 01915

One could learn of his story and cast judgment immediately - this is a scandalous story - 111 6 media would cover it with fanfare. But there are always two sides to every story, and a one-sided telling would prevent anyone from knowing who Brad really is. We are all human, and we are all flawed, just to varying degrees. Brad is a man who made a mistake. He's not a predator. He's not a monster. He acted without thinking about the larger picture. I plead with you Judge Martinolli to recognize that Brad made a mistake, and I ask for your level review, judgment and (hopefully) lenient sentencing. He has paid dearly for his mistake: he lost his family's business, his wife, the structure of his nuclear family and countless friends. I humbly ask that you consider following the terms of Brad's plea agreement, and sentence him to no more than 60 months.

I have never written a letter such as this, and I agreed without hesitation when asked. Brad is a man who is so much more than his mistake. I ask for your mercy Judge Martinolli, and I thank you for taking the time to read my letter.

Most respectfully,

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LtCol Hunter R. Kellogg, USMC (Ret.)

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EXHIBIT A7

Joy Frelinghuysen
PO. Box 2174
Middleburg, VA 20118
The Honorable Brian R. Martinotti
United States District Judge for the District of New Jersey
Clarkson S. Fisher Federal Building & U.S. Courthouse
402 East State Street
Trenton, New Jersey 08608
Re: UNITED STATES OF AMERICA VS. STEVEN BRADLEY MEL.L
Dear Judge Martinotti,
March 15, 2019

My name is Joy Frelinghuysen. I have been close friends with Brad Mell since we were children. Our families are friends and we saw each other often at family parties and through the Somerset Hills Country Club in Bernardsville, New Jersey and the Essex Hunt Club in Peapack, N.J.

I am aware of Brad's guilty plea and the gravity of his wrong actions in this case. With that in mind, I feel it is important to tell you that Brad Mell is the last person I ever thought I would be writing this type of letter for. The reason I say that is because what distinguished Brad from the rest of our peers was his sincere concern for everyone around him. While most of us were busy being self-involved teens, Brad always, always put the safety, happiness and well-being of his friends and family before himself.

As we moved from grade school into high school, Brad was the one among us who would be insisting on driving the kid home who may have had too many beers. If someone got broken up with, Brad was the one who would counsel them and help them through it. He has always hated to see anyone in pain. He has always wanted to lift people up and make them feel they can succeed. Brad has a big heart and "wears it on his sleeve." That's what we've always said about him. He is a person of few words but his big, brown eyes reflect his gentle, deep-feeling nature. He is always quietly there for you, never judging but rather actively listening and giving advice only when asked for it.

These loving, supportive aspects of Brad's character found their true no, i, h when he had children. In fact, his most beautiful quality is his deep love for his children. Do I realize the irony of this statement given the circumstances of his case? I absolutely do. For all of us who know and love Brad, his poor judgment and choices in this matter will never make sense, but here is what I can tell you for sure. His three children do not have one doubt in their minds about his undying love for them. He is their rock and their source of unconditional love. Ever since this deeply regrettable situation came to light, Brad's kids, Emily, Eliza and William, have been unwavering in their support of him. I think this speaks volumes about his true character. The bond between father and children, through this challenging time, has been something remarkable to witness. I'm not sure I have ever seen anything like it. Brad has never once broken down in front of his children because he is doing everything in his power to minimize
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the pain his actions have already caused them. I have spoken to him constantly in the last year and I can tell you that his regret over the torment he has caused his wife and children and the other parties has almost broken him several times. The one thing that has kept him going forward is his commitment to his children. He has tried to assure them that he is, and always will be, there for them and I believe he has succeeded.

Judge Martinotti, Brad is deeply remorseful and ready to serve his time for said actions with a complete understanding of why that needs to happen. I beseech you to follow the terms of the plea agreement and keep his time in federal prison to the 60 months he has been sentenced to. Some people come out of experiences like this with a renewed commitment and

zeal to being the best person, the best father, the best son, the best friend and the best citizen they can be. I am utterly certain that Brad will be one of those people.

Thank you so much for taking the time to read this letter.

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EXHIBIT BI

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NJ License No. 3393

May 31, 2018

Catherine M. Barber, Ph.D.

Clinical & Forensic Psychology

30 Washington Avenue, Suite B-1

Haddonfield, New Jersey 08033

Phone: (856) 427-6766

Fax: (866) 315-8220

The Honorable Cathy L. Waldor

U.S. Magistrate Judge for the District of New Jersey

Martin Luther King Building & U.S. Courthouse

50 Walnut Street

Newark, New Jersey 07101

Re: Steven Bradley Mell

Mag. No.18-7094 (CLW)

PA License No. PS-006085-L

Confidential report of psychological evaluation

Your Honor:

In response to the Court's recent Order, I have conducted a psychological evaluation and risk assessment of Mr. Steven Mell, who is presently detained at the Essex County Correctional Facility, facing three counts of Online Enticement of a Minor a.'ld one count of Travel with Intent to Engage in Illicit Sexual Conduct. In light of the serious nature of the allegations, an evaluation of Mr. Mell's risk of potential harm to himself or others was ordered, to weigh along with other factors in the Court's consideration of whether to grant Mr. Mell pretrial release on bail.

I conducted the evaluation of Mr. Mell on 5/22/18 at the Federal Courthouse in Newark, in the U.S. Marshals' holding area, as arranged through the U.S. Pretrial Services Agency. I conducted a psychosocial interview and mental status examination, supplemented by completion of several structured professional judgment tools for the assessment of risk of harm to self or others. I also reviewed and considered documents provided by the U.S. Pretrial Services Agency, including the Criminal Complaint with attachments; the Pretrial Services Report; and a copy of a New Jersey firearms purchase permit application Mr. Mell completed the day prior to his arrest.

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I discussed the purpose and scope of the evaluation with Mr. Mell, and informed him that a report of my findings would be furnished to the Court via the U.S. Pretrial Services Agency. He understood that the evaluation was Court-ordered, acknowledged the consequent absence of confidentiality, and readily agreed to cooperate. His demeanor was respectful and open. He appeared to be doing his best to give accurate and thoughtful responses to all inquiries.

Mental status examination findings

Steven Bradley Mell (date of birth 12/15/65) is currently 52-years old. He presented for the evaluation neatly dressed in his jail-issued uniform and demonstrating good attention to his personal grooming and hygiene. He was in no immediate apparent physical or mental distress. He remained fully alert and well oriented throughout the examination and interview. He made good eye contact and his demeanor was calm, open, talkative, and cooperative. No unusual motor behaviors suggesting neuropsychological impairment were noted. Speech was normal in

rate, rhythm, volume, tone and articulation. Attention, concentration, and memory (both short- and long-term) all were unimpaired. His thought content was reality-based and did not reflect paranoia or any other delusional ideas. No perceptual abnormalities such as auditory or visual hallucinations were reported or inferred from Mr. Mell's observable behavior. His thought processes and verbal expression were well organized and rational, and reflected excellent abstract reasoning capacity. Current judgment and impulse control appeared intact. General intellectual functioning appeared to be within the high average range. Mr. Mell reported no history of smoking cigarettes or using any illicit drugs, and stated he drank very little alcohol (one after-dinner drink approximately twice per month) prior to his incarceration.

Mr. Mell's affect (outward expression of inner mood states) ranged fully and was consistent with subjects under discussion as they arose during the interview. He appeared to have no current difficulties managing frustration or anger, and did not express or imply any hostility toward others, either generally or specifically. He was mildly tearful at a few points in the interview, but was able to readily regain his composure. He stated he did not consider himself depressed, either previously in his life, or situationally due to his current confinement and facing serious criminal charges. He expressed feeling that he has substantial support from family and friends, which helps in this regard (see also Current adjustment below). He has a history of treatment for anxiety following a significant life trauma (discussed further below), but he has never regarded this anxiety as a mental health problem per se.

Overall, the mental status examination yielded non-significant findings. There is mild to moderate situational anxiety noted, as well as mild to moderate sad mood, both related to current separation from family, missing family events, and concerns regarding the ongoing operations of his business during his absence. Symptoms are not sufficient in number or intensity to warrant diagnosis of a mood or anxiety disorder at this time. There are no signs of disturbance of the thought process, intellect is intact, and there are no indications of impaired self-control. Thus, on the basis of the mental status examination, there are no concerns raised about any condition(s) which might foreseeably impair Mr. Mell's judgment or impulse control relevant to risk.

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Relevant background

Background was obtained directly from Mr. Mell, without benefit of collateral information other than review of the Pretrial Services report. Mr. Mell gave every indication of being straightforward in the interview. He related he grew up in Far Hills, New Jersey. His parents were divorced. He stated he was diagnosed with dyslexia as a child, but did not require special education services and "worked around it." As a teenager he served as a volunteer EMT. He attended Boston University, and from the time he was a college junior, for approximately four or five years (1987-1992), he served as an auxiliary police officer in Brookline, Massachusetts. He reported he has been married to his wife, Kim, for 27 years. They have three children, two young adult daughters and a son in high school. Mr. Mell has worked in the financial industry for many years and achieved a high degree of success. He began working for his father and eventually took over leadership of the business.

Mr. Mell suffers from primary sclerosing cholangitis (bile duct disease), a serious and progressive liver disease with which he was diagnosed 17 years ago. His condition may eventually require a liver transplant. He receives care regularly for this condition in New York and at the Mayo Clinic. He also suffers from Crohn's disease, a chronic inflammatory bowel disease. He appears to be coping well with these chronic and serious health problems.

No other significant health concerns were noted, including any that could foreseeably impact Mr. Mell's psychological functioning. He reported he has lost nearly 40 pounds over the past two years, but denied this was associated with depression or any mental status changes. He noted he had a long-standing habit of drinking Coca-Cola, up to a case per day, for many years, but in the past two years reduced this to approximately two six-packs per day. He suffered caffeine withdrawal headaches temporarily but they have resolved.

Mr. Mell, a licensed airplane and helicopter pilot, experienced a major psychological trauma when his best friend, Will, died in a flight accident in 2008, aboard a helicopter owned by Mr. Mell's company. He explained that he would have been a member of the excursion himself, but was prevented from going on the trip (a golf outing with friends) at the last moment due to work constraints. He gave up his spot to another friend, who was seated in the front of the helicopter alongside Will at the time of the crash. Mr. Mell believes that if he had been on the trip, he might have been able to assist Will with whatever situation arose that led to the crash. In the aftermath of this loss, Mr. Mell was emotionally devastated. In 2010, he experienced his first panic attack, which he attributed to long-term effects of the shock trauma over the accident. His family physician prescribed Paxil (commonly used to treat both anxiety and depression), and Mr. Mell consulted a psychotherapist as well. At times his doctor also prescribed Xanax and Klonopin, both shorter-acting anxiolytic medications. He stated he has taken Xanax "as needed" over the past few years. Mr. Mell stated he had never had any prior mental health conditions, and feels in recent years his reaction to this traumatic loss has substantially resolved. He stated, "I'm at peace with everything. I'm still good friends with with

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Will's wife and family." In fact, Will's mother has volunteered to serve as his third-party guardian if he is granted bail.

Current adjustment

Mr. Mell described his arrest by the FBI as temporarily traumatizing; he stated, "they came and arrested me with an overwhelming show. It was a blur. There were five or six laser targets on me." He stated he experienced a "huge panic attack" at the time of his arrest, but this has not recurred. Upon his entry to the jail, he was initially placed in the regular population, but somehow word got out to other inmates about the nature of his charges, and his cellmate threatened him. Consequently he was placed in "isolation" for six or seven days. He stated, "I thought that would be extraordinarily stressful, but actually I coped with it okay." He related he was able to converse with the inmate in the cell adjoining his, and he found this "comforting." At the time of this interview, Mr. Mell stated, "I'm doing pretty well." He has been returned to an open cell block and stated he gets along well with his current cellmate. He is receiving medication (he could not recall the name) to help him cope with withdrawing from Xanax. He stated he has had no significant crying spells or panic attacks while in the jail. He added, "To this day, I don't feel depressed; I don't feel angry. I do miss my family."

With regard to his severely stressed marriage, Mr. Mell acknowledged, "I think it's done; I've got to give my wife her space." But he verbalized determination to work cooperatively and amicably with his wife, commenting, "My parents had an awful divorce, and I don't want that." He is clearly saddened by the impending loss of his marriage due to his actions, stating, "We were married for 27 years. We had marriage counseling at one point, then we drifted apart, but we were never separated before. With the business I'm in, it (the opportunity for an extramarital affair) could have happened 1,000 times, but never did. Our life was actually in a good place prior to this." He appeared overall to have a realistic appraisal of the situation. He stated, "I understand that my wife wants a divorce. I still love and care about her very much. I'd like to reconcile, but that's not going to happen."

In terms of coping not only with his criminal prosecution but with the turmoil his family is now experiencing, Mr. Mell related, "Our friends have been phenomenal, to both Kim and me. I'm very close to my three kids; they have been 'rock stars.' I missed my daughter's graduation from Bucknell on Sunday, and that hurt." He indicated he has asked his family "not to visit me in jail. I don't want them to see me here. I'm hoping for bail, but if I don't get bail they will be added to my visiting list." Mr. Mell stated that everyone important to him in his life was aware of his arrest and his charges, and he is receiving "a lot of support." His mother is posting his bond, and his two brothers are helping. He added that a number of people have already offered to serve as character witnesses for him. And, as noted above, the mother of his friend Will has

offered to serve as his third party guardian, if needed, should he be granted pretrial release.

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Risk assessment findings

Self-harm and suicide risk were evaluated using the Columbia-Suicide Severity Rating Scale (CSSRS) and the Suicide Assessment Five-step Evaluation & Triage (SAFE-T) procedure, measures endorsed by the U.S. Department of Health and Human Services' Substance Abuse and Mental Health Services Administration. My opinion, to a reasonable degree of psychological certainty, is that Mr. Mell currently and foreseeably presents with a low risk of suicidal or self-harming behavior, based on the following findings.

Mr. Mell reported he has had passive thoughts about dying in the past, in the aftermath of the helicopter accident that claimed the life of his friend, and in which he "should have been" a passenger himself, but for a work requirement that prevented him attending the outing. He stated it has been a long time since he these type of thoughts, and he asserted he has never wished to be dead, or formulated plans or seriously contemplated injuring himself or taking his own life.

There is recent family turmoil due to his conduct that eventuated in the current charges, but he appears to be handling this well and verbalizes a strong commitment to working through divorce proceedings with his wife in a civil and supportive manner. He stated, "I live for my family. I will be here to my very last breath to support them, including my wife." He is managing the current stress of incarceration and his legal situation well.

Mr. Mell has also demonstrated a long-standing commitment to his own health and well-being through his active engagement in treatment for his serious liver condition. As noted above, there are no current signs or symptoms of a mental disorder that might foreseeably distort Mr. Mell's thought process or judgment, or increase his impulsivity, in a manner that might increase his risk of self-harm. He does not currently exhibit or express loss of interest or pleasure in life; hopelessness; anxiety/panic; insomnia; or command hallucinations. There is no recent change in treatment.

A salient potential risk factor in this case was thoroughly addressed, that being Mr. Mell's failure to report, when asked during his Pretrial interview about access to weapons, that he had applied for a firearms permit the day prior to his arrest. He explained he was having a problem on his property, which encompasses 30 acres and adjoins an additional 1 000 acres of open land, with coyotes appearing near the home and posing a possible threat to the family's puppy. He discussed this with several friends, who encouraged him to purchase a shotgun to address it. He stated he applied for a permit to purchase two handguns at the advice of the clerk who provided him with the permit, who reportedly said this would prevent him from having to re-apply if he decided to purchase a handgun in the future (two being the limit for one permit); however, Mr. Mell stated he only intended to purchase a shotgun. He also stated that one of the friends who advised him about this problem had text messages in his phone that would fully corroborate his account. Further, he stated he had "no idea" he was to be arrested the following day. In fact, he thought just the opposite. The police were aware since December about this, but it had gone quiet. Nothing had happened except for the family taking civil action." He added, "The last thing I would do if I had any interest in self-harm would be to go to Bedminster and get a permit."

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With regard to the section of the application inquiring about mental health issues, Mr. Mell said he never considered his anxiety following the helicopter accident as a mental health problem, per se. His general practitioner prescribed medicine for him, which he utilized for a few years but had only taken as needed more recently, and he considered his consultation with a therapist following the accident to be a healthy thing to do to help himself cope with the loss of his friend and come to terms with his sense of personal accountability. He stated, "I didn't get it, that my anxiety was a mental health issue."

Although Mr. Mell may have been minimizing to himself the nature of the psychological problems he had, and certainly should have realized when directly asked about firearms during his Pretrial interview that he should disclose the fact he had just submitted an application for a purchase permit the previous day, I was satisfied after this lengthy conversation that his steps to obtain a firearm permit do not represent actions taken in pursuit of a means of either ending his own life or harming anyone else.

Proceeding to the issue of his potential risk of harm to others, this was evaluated based on the mental status examination and behavioral observations, supported by further reference to two structured professional judgment tools, the HCR-20, a general violence risk measure, and the Static-99R, which assesses risk factors specifically associated with sexual violence.

The HCR-20 facilitates the systematic assessment of 20 historical, clinical, and risk management factors empirically shown to be associated with violence, defined as "actual, attempted, or threatened infliction of bodily harm of another person ... The focus is on behaviors that cause or have the potential to cause physical or serious psychological harm. Serious psychological harm includes fear of physical injury, as well as other emotional, mental, or cognitive consequences that substantially interfere with health or well-being" (HCR-20 v.3 professional manual, pp. 2-3). None of the 20 factors of the HCR-20 were rated as present. No prior record of violent acts, including domestic violence, was detailed in the Pretrial Services Report or disclosed by Mr. Mell. He reported his wife "did call the police" due to a disagreement "within the past couple of months," but no charges came of it. He reported he was charged with one DWI offense while in college; he was held in jail for a few hours, then released, and as a consequence of the offense he lost his driver's license for several months. On the Static-99R, where scores range from -3 to 12, Mr. Mell's score of 0 places him in the "below average risk" range. Among a sample of routine sex offenders (non-high risk), between 2.2 and 3.5 out of 100 offenders with a score of 0 would be expected to be charged or convicted of a new sexual offense by five years post-release.

Mr. Mell appears highly motivated to succeed and to be fully compliant with all requirements imposed by the court if granted pretrial release. He stated, "I have a family, including my wife; a firm, and a life to live. I want to see our grandkids. I am not going anywhere; I've got to work. There is not a chance I will attempt to contact the victim. I need to get back to work to support my family. I don't want to jeopardize that if I am granted bail."

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Integrating all of the above findings with the mental status assessment, behavioral observations and my professional judgment, in conjunction with review of the documents provided it is my opinion, to a reasonable degree of psychological certainty, that Mr. Mell currently and forceably presents a low risk of harm to himself or others if released on bail pending resolution of his charges. This opinion refers to his foreseeable risk of suicidal or self-injurious conduct, and of general harm to others, as well as any risk of harm similar in nature to the conduct with which he is presently charged.

Respectfully submitted,
Catherine M. Barber, Ph.D.

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EXHIBIT B2

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____RICHARD B. KRUEGER, M.D.

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September 19th , 2018

Robert A. Bianchi, Esq.

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Re: Psychiatric and Risk Assessment of Mr. Steven Mell

Dear Mr. Bianchi:

I have evaluated Mr. Mell, with my report below:

Identifying Data & Chief Complaint: Mr. Mell is a 52-year-old white male who is a U.S. citizen. He was raised in the Catholic religion and attended church twice a month before he was placed under supervision by Federal Probation. He speaks only English. He is married x 1, but has been separated from his wife, who is 52, for 2 months and is in the process of a divorce. He has three children, a daughter, 22 a daughter, 20 (both of whom are away at college), and a son, 15, who is living with his mother in their eight-bedroom house in Far Hills, New Jersey, where they have lived for nine years. Mr. Mell two months ago following his arrest for sexual abuse of a minor moved to a one-bedroom apartment located over a garage in Far Hills. Mr. Mell's chief complaint was, "I am seeing you for an evaluation."

Sources of Information: Included the following interviews:

i. I interviewed Mr. Mell for 4 hours on August 29th , 2018 and a follow-up telephone call on September 18th , 2018

It also included a review of the following materials, provided by your office:

1. The U.S. Complaint

2. The Search Warrant Inventory

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3. The Hunterdon County Complaint

4. The Hunterdon County Discovery, 1-496

5. Memorandum in Support of Release of Exhibits

6. Lilly Cannon-2 videos-recorded statements

7. Laura Cannon recorded statement

8. Anthony Cannon recorded statement

9. Recorded statements of Kajal Mehta

10. Recorded Statement of Sarah Smith

11. Forensic Interview of Lilly Cannon-parts 1 and 2

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12. Statement summary of Lilly Cannon's Statement of December 21 st, 2017

13. Statement summary of Laura Cannon's statement of December 21 st, 2017

Informed Consent for the Examination: Prior to the examination I informed Mr. Mell that I was performing an evaluation at the request of his defense attorney and that whatever he said to me could be included in a report to him or to her, and that his defense attorney may, in turn, choose to present this to the Court and the prosecution. I also presented information on the various psychological and written tests that I would be administering. Mr. Mell understood this information and signed appropriate consent forms.

History of the Present Illness: Mr. Mell said that he was born in Morristown, New Jersey. He said that, as far as he knew, his mother's pregnancy with him and delivery of him were normal. He was raised in Far Hills, New Jersey. Asked what growing up was like, he said that there was a very traumatic divorce when he was 12 or 13. When asked about his educational

history, he said, "I went to St. John's in the Mountains school in Bernardsville, New Jersey." "I then went to Far Hills Country Day School, which is a private day school in Far Hills, for kindergarten through 9th grade." Mr. Mell said that when he was in the 6th grade, he was thought to have severe dyslexia. Some of his teachers suggested that he was mentally retarded or severely impaired. He said that two teachers took him on and helped tutor him. He said that he had extensive diagnostic testing including an EEG and brain imaging and ultimately was diagnosed as having severe dyslexia by a Ms. Nelsnisk, an expert in dyslexia at the time. She worked with him for three years, seeing him twice per week when he was in the HNT-18-000297 06/26/2019 3:23:47 PM Pg 41 of 105 Trans ID: CRM2019548341

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7th , 8th and 9th grades. Mr. Mell with this was able to graduate from 9th grade in the Far Hills Country Day School in 1981.

Mr. Mell then went to Tilton Preparatory School in Tilton, New Hampshire, for three years, graduating in 1984 at the age of 18. He graduated somewhat late because his parents had held him back for a year. Mr. Mell said that he had gone to schools that were extremely competitive and that most of his classmates had gone to Harvard, Yale, or Princeton. He felt inferior to them and said that he was made fun of periodically. However, he was exceedingly achievement oriented. He said that he became a pilot at the age of 16. Throughout Far Hills Country Day School and Tilton he was an avid hockey and lacrosse player. He said that he followed on the steps of his father who was a champion hockey player at Yale who still held the record for most goals scored in a single game. Mr. Mell also rode horses. Additionally, Mr. Mell became certified and worked as an emergency medical technician in Far Hills and in Boston from 1981 to 1988.

Mr. Mell then went to Boston University (BU). He said that he initially applied and was not admitted, but then went to night school at BU and received good grades and was eventually admitted to BU. He was a student there from 1984 to 1988, graduating in 1988 with honors. He said that he continued to work as an EMT during his time at BU. He said that he received a stork pin for delivering a child. He said that he received a B. A. Degree with a major in Psychology and a minor in Business. He also worked as a voluntary police officer in Brookline, working at this 15 to 20 hours a week from 1986 to 1990.

Mr. Mell said that he then decided to become a government bond trader and worked for State Street Bank in Boston from 1988 to 1992. He moved to New Jersey in June of 1992 after he married his wife. He was 27 and she was 28 when they married. They had dated and had had a sexual relationship for seven years prior to their marriage. He said that he married her because he loved her and said, "I still do." He said that his father had wanted him to come into his father's business right after he graduated from BU, but Mr. Mell had wanted to be on his own and worked for State Street Bank.

Mr. Mell eventually began working in his father's firm in 1992 and moved with his wife at this time to Mendham, New Jersey, where they lived in a small rental apartment. They lived there for several years and ultimately built a house in Bedminster, New Jersey, and moved there in 2006. Mr. Mell continued to live there until he was arrested. Mr. Mell eventually took over his father's firm, a municipal bond trading agency called MH Associates, becoming President and CEO of that company. Mr. Mell said that there were only 4 employees when he started working for MH Associates, but by the time that Mr. Mell left the firm, there were 20 employees. Mr. Mell said that he also started his own financial services firm called Goldstein Capital Management. He said that he had approximately a billion dollars under management in his father's firm and the Goldstein Capital Management firm. He said that his businesses had done well.

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Asked how he got into trouble, Mr. Mell said that on October 9th , 2011, there was a helicopter crash. His company owned a helicopter and he had been scheduled to fly with his partners and friends to a meeting. He could not make it so he did not accompany his associates in the helicopter. His associates on the return helicopter trip crashed with Mr. Mell's friend being killed and his partner being severely injured. Mr. Mell said that this came as a great shock to him and that he thought that he should have been in the helicopter. He felt extremely guilty at being alive and continued with and could not dispel the feeling of survivor guilt. He said that following this crash he began psychotherapy with Dr. Adam Price, a psychologist, and continued in this on a weekly basis until 2017 when he said that Dr. Price's son committed suicide and Mr. Mell thought that this detracted from the quality of the therapy that he had been receiving and he stopped seeing Dr. Price. Mr. Mell following the crash also saw his local medical doctor who started him on Xanax and Paxil for anxiety and depression. He said that he had continued taking these medications since. He said that he found his medical doctor extremely supportive and had continued to meet with him weekly in supportive sessions. Mr. Mell said that this crash also resulted in litigation that extended over several years with eventually a payout of \$25 million dollars to his partner and to his friend's family. Mr. Mell, asked further how he got into trouble, said that on May 8th , 2018, he was arrested by Federal authorities for 3 counts of Online Enticement of a Minor and 1 count of Travel with Intent to Engage in Illicit Sexual Conduct. Mr. Mell said that at 6:00 AM in the morning he awoke to the presence of some 60 FBI agents with multiple red laser targets on his chest when he opened the window to see what the commotion was outside of his house. Mr. Mell said that he had applied for gun permit for a long rifle to shoot foxes on his property the day before the FBI came, which he thought explained the great force that was involved in this second arrest. He said that subsequently, when he was in federal custody, he was additionally charged by the Hunterdon County with sexual assault, specifically by engaging in sexual penetration with a J. Doe when J. Doe was under the age of 16 and he was greater than 4 years older, a crime of the second degree. This charge alleged that he had begun communicating electronically with J. Doe and that he had had sexual intercourse with her. Mr. Mell was incarcerated for approximately three weeks, initially in Newark and then in a local jail. Bail was initially denied, but following an evaluation it was determined that he was not a risk to himself or others. He was released on one million dollars bail. Mr. Mell said that he had a Federal Pretrial Services Officer with whom he spoke with two times per month. Past Mental Health History: Mr. Mell in the 6th grade had an extensive evaluation including an EEG, brain imaging, and psychological testing and was found to have dyslexia and was treated by Ms. Nelsnisk. He said that testing at that time also found him to be very bright with an IQ of 130. Mr. Mell said that he had been involved with his wife from 2008 onwards in periodic couples therapy and that they had also seen a couple's sexual therapist. He said that he and his wife had had a good sexual life initially, but that things had fallen off over the years. He said that he last had sexual relations with his wife in March of 2018. He also said that he had seen Dr. Price, a psychologist, in psychotherapy from 2011 to 2017. Mr. Mell said that

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recently he had been seeing Ms. Dorothy O'Keefe, a social worker in Chester, New Jersey, once per week and a psychologist named Dr. Daniel Water in supportive psychotherapy. Asked about any thoughts of or attempts at suicide, Mr. Mell denied prior suicide attempts and current suicidal intent or plans. Past Legal History: Mr. Mell had one arrest for driving under the influence in Boston when he

was in college at the age of 18. He had to attend classes for three months. He subsequently was arrested for the index charges of sexual assault by Hunterdon authorities and for online enticement of a minor and traveling with the intent to engage in illicit sexual conduct by federal authorities.

Substance Abuse History: Mr. Mell said that he began using alcohol in college. He said that it was never a problem for him and that his arrest for DUI was the only such arrest that he had had. He denied to detailed questioning the use or abuse of alcohol. He said that he had smoked cocaine perhaps 10 or 15 times in the distant past. He denied any use or abuse of other drugs including marijuana, hallucinogens, and other substances. He said that his wife had never complained about his alcohol or drug use.

Head Injury History: Mr. Mell said that during his sophomore in college he was hit on the head and knocked cold when he tried to swing under a door and the header of the door that he was trying to swing from broke and he struck his head. He was seen at Morristown Hospital and released; he said that there had been no sequelae from this fall.

Past Medical History: Mr. Mell is 6 feet 1 inch tall and weighs 180 pounds. His weight had been as high as 220 pounds, but he said that the weight of 180 pounds had been stable for years.

Mr. Mell said that 15 years ago he developed weight loss, bleeding, and abdominal pain. He saw a number of doctors, but eventually was seen by Dr. Henry Bodenheimer, a hepatologist at Beth Israel Hospital in New York City. Dr. Bodenheimer diagnosed him with primary sclerosing cholangitis, or PSC. (PSC basically results in a gradual atrophy and dysfunction of the biliary collecting system in the liver such that at some point the liver is unable to eliminate and release toxins and a liver transplant is required). Mr. Mell had this diagnosis confirmed at the Mayo Clinic and regularly sent laboratory results to the Mayo Clinic for monitoring. Mr. Mell said that he had been treated for 15 years for this disease with a compound called Urso Forte, at a dose of 500 mg three times per day. PSC is fatal disease with an average life expectancy after diagnosis of 8 to 10 years. Mr. Mell said that Dr. Bodenheimer told him that he was in the 5% of patients who survived beyond this. Mr. Mell said that he last saw Dr. Bodenheimer in the fall of 2017 where all of his labs were normal. Mr. Mell also said that 15 years ago he was diagnosed with Crohn's disease (which is associated with a significantly increased risk of colon cancer). He said that he had had monitoring colonoscopy on a yearly basis and that no evidence of cancer had been found. He

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had had no serious attacks of abdominal pain or other symptoms and had not required surgery. Mr. Mell said that he had general practitioner, Dr. Arthur Scott Campbell, in Bedminster, New Jersey, who had taken care of him for 15 years. He spoke very highly of Dr. Campbell, whom he saw on a weekly basis. Mr. Mell had not had any surgeries. He thought that he might be allergic to penicillin.

Past History/Family History/Social History: Mr. Mell's father died at the age of 71 in 2008.

"He killed himself." Mr. Mell said that his father was an alcoholic. "He got sober three years before his death, but became very depressed." "My father never knew how to love." "He was very athletic, setting the record for most goals scored by a hockey player in one game at Yale." Mr. Mell became very tearful as he discussed his father. Mr. Mell's mother is 82 and lives in South Carolina. "She is great." Mr. Mell has a brother, 56, who lives in Boston. "He is lazy." "He has never worked and is a stay-at-home father." Mr. Mell has another brother, 53, who is a pilot and lives in Palm Beach and is single "and always will be." Mr. Mell's wife, Kimberly, is 52. "She is really a good person." "I still love her." "I am devastated by the divorce." Mr. Mell said that he was fully agreeing to the divorce and to provide for his wife. Mr. Mell has a daughter, Emily, 22, who just finished Bucknell and moved to Virginia to teach first grade. His

other daughter, Eliza, 20, is at Colby College in New York and wants to be a veterinarian. His son, Walter, 15, is a sophomore at Westminster School and "is very bright." Mr. Mell said that all of his children were supportive of him, but said that his wife would not speak with him. Asked about any family history of psychiatric or substance abuse disorders, Mr. Mell said that his father was alcoholic and depressed and that alcoholism permeated both of his parent's families.

Deviant and Non-Deviant Sexual History: Mr. Mell reached puberty at the age of 11. He had his first ejaculation at the age 13 by means of masturbation. His first crush was at 14 on a 14-year-old female. His first date was at 12 with a 12-year-old female. His first petting was at 14 with a 14-year-old female. His first genital experience was at 15 with a 15-year-old female. Mr. Mell first masturbated at the age of 13. The most orgasms he had had by any means in a week in his life was at 14. He had had five female sexual partners and no male sexual partners. He was heterosexual in his sexual orientation. The last time he masturbated was before his arrest, which was in April of 2018, and he was fantasizing about his wife, Kimberly. Asked if he had been physically abused during his childhood, he said that he had been hit several times by his father. He was never sexually abused. He thought that he had never had any erectile problems, but said that his wife at one time had suggested using an erectile facilitator, Cialis.

Regarding any paraphilic or hypersexual history, Mr. Mell denied to detailed questioning, exhibitionism, fetishism, frotteurism, pedophilia, sexual masochism, sexual sadism, transvestic fetishism, voyeurism, other paraphilias, ephebophilia (interest in adolescents), biastophilia (arousal or interest in rape), compulsive or excessive masturbation, promiscuity, use of pornography, engagement in telephone sex, cybersex (excessive sexual chatting over the Internet), sexual incompatibility, gender identity disorder, or other sexual HNT-18-000297 06/26/2019 3:23:47 PM Pg 45 of 105 Trans ID: CRM2019548341

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disorders. He denied any other arrests or accusations of sexual harassment or of sexual crimes. He said that he was in 100% control, or in complete control, of his sexual urges and behavior.

Review of Systems: Was negative in detail for any psychiatric or somatic symptoms.

Psychological Testing: Included the following psychological tests with results as noted:

Tests to Assess Deviant and Non-Deviant Sexual Behavior:

1. A Sexual SCID, or Structured Clinical Interview for Diagnoses for Sexual and Gender Identity Disorders: which is a structured clinical interview to establish whether or not individuals may have diagnoses of sexual or gender identity disorders which is being developed at the Sexual Behavior Clinic at New York State Psychiatric Institute and in our private practice was administered. Mr. Mell did not make criteria for pedophilia or for any other paraphilic or hypersexual disorder.

2. The Bancroft Self Report Scale of Sexual Interest and Activity (Developed by Bancroft, Tennent, Loucas, & Case, 1974): was administered, with Mr. Mell being asked to score it with two points of time in mind. The first was before his arrest. The second was for the week before my interview of him. There are two components to this scale. The first is the Frequency of Sexual Thoughts Scale. This scale asks a patient to indicate how often he finds himself thinking sexy thoughts on a scale of 0, or no sexual thoughts at all, to 5, or sexual thoughts frequent and usually associated with feelings of sexual excitement in the previous week. Mr. Mell reported a 2 out of 5 for the first point in time before his arrest and a 0 out of 5 in the week before my interview of him. The second part asks how many ejaculations a patient had had in the week prior to the interview.

Mr. Mell reported that he had had 1 ejaculation in the week period during the period before his arrest and no ejaculations in the week before I interviewed him. Both of these scores suggest a substantial reduction in sexual interest and behavior from the period of time before his arrest to the period just before my interview of him.

3. The Clinical Global Impression Scale (Developed by Guy, 1976): was scored, with Mr. Mell receiving a score of 1, or normal, not at all ill. This scale is a rating scale, which was developed at the National Institute of Mental Health for having clinicians rate how ill a patient is compared with the universe of patients that this clinician has seen with the sort of disorders that are in question. This scale ranges from 0, not assessed, or 1, normal, not at all ill, to 7, among the most extremely ill patients. Further, this scale has been used to estimate the degree of severity for a substantial number of disorders, ranging from schizophrenia, to HNT-18-000297 06/26/2019 3:23:47 PM Pg 46 of 105 Trans ID: CRM2019548341

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eating disorders, to obsessive-compulsive disorder. In this case the focus of my estimation involved sexual and paraphilic disorders. In this case, I rated Mr. Mell as being a 1, or normal, not at all ill, compared with the thousand plus individuals with paraphilias and/or sexual disorders that I have evaluated.

4. The Derogatis Interview for Sexual Function (Male Version): was administered. This is a validated and normed instrument that makes enquiries about an individual's sexual behavior in a variety of domains for the time period of the 30 days prior to the administration of the test, including sexual cognition/fantasy; sexual arousal; sexual behavior/experiences; orgasms; and drive/relationship. Mr. Mell's scores were in the 2nd percentile for cognition/fantasy; 2nd percentile for arousal; 2nd percentile for sexual behavior/experience; 2nd percentile for orgasm; and 2nd percentile for sexual drive/relationship. Mr. Mell was in the 2nd percentile for men for overall sexual activity and functioning. These scores indicate a marked reduction in Mr. Mell's sexual drive since he was arrested and/or a significant depression.

5. The Coleman Compulsive Sexual Behavior Inventory: this is an inventory that focuses, among other things, on the inability to control sexual impulses. It has been described and validated in peer-reviewed literature. One scale of this instrument, the Control Scale, was used. This presents 13 items that an individual is asked to rate from 1, very frequent use, to 5, never engaged in. A higher score reflects greater control over sexual impulses. Pedophiles have a mean score of 36.2, sexual compulsives a mean of 31.7, and controls a mean of 57.2. Mr. Mell had a score of 65, suggesting that he was not sexually compulsive.

6. The Kinsey Scale: which is a scale developed by Kinsey which asks an individual to endorse a number from 0, indicating they were exclusively heterosexual to 6, indicating that they were exclusively homosexual. Mr. Mell circled a 0 indicating that he was exclusively heterosexual.

Tests to Screen for Other Psychiatric Syndromes:

7. A SCID-1, or Structured Clinical Interview for DSM-IV and DSM-IV-TR Axis I Disorders: which is a validated structured diagnostic instrument for the establishment of Axis I DSM-IV-TR psychiatric disorders. This resulted in diagnoses of major depressive disorder, single episode, in partial remission, panic disorder without agoraphobia, and anxiety disorder not otherwise specified.

8. A Mini-Mental Status Examination: which is a well-accepted screen for

cognitive disorders. Mr. Mell received a score of 30 out of 30, suggesting no organic problems.

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9. The Washton Alcohol and Drug Use Questionnaire: which is a brief questionnaire which asks an individual to indicate if he or she had used drugs or alcohol, what the time frame of his or her use was, when he or she had last used any substances, and if substance use had ever been a problem. Mr. Mell indicated that he had used alcohol and cocaine and that he had never had any problem with these substances.

10. The Michigan Alcohol Screening Test (MAST): which is a 24 item validated screen for alcohol abuse. A score of 0 to 4 is considered non-alcoholic and Mr. Mell received a score of 1.

11. The Drug Abuse Screening Test (DAST): which is a 28 item validated screen for substance abuse. A score of less than 5 is normal. Mr. Mell received a score of 0, suggesting that he was not a substance abuser.

12. The Adverse Childhood Experiences Scale: which is a scale developed by Kaiser-Permanente and the National Institute of Health to quantify the degree of adverse childhood experiences an individual has experienced. It presents 10 questions, such as "did an adult or person at least 5 years older than you ever touch or fondle you?" This instrument has been validated and it has been demonstrated that the greater the score the more likely the occurrence of adverse physical or mental health consequences. Mr. Mell had a score of 3, which is a relatively high score, suggesting significant childhood adversity.

Tests to Assess Personality Functioning:

13. The Hare Psychopathy Checklist, Full Version: This is a system of screening for and assessing the degree of psychopathy that an individual has which I have had training in. The Hare asks a rater to make judgments on 20 factors, and can result in a maximal score of 40. I rated Mr. Mell as having a score of 9. This is a low score suggesting that he is not a psychopath.

14. The Static-99R: which is arguably the most validated and thoroughly studied risk assessment instrument for sexual recidivism. I computed Mr. Mell's score as being 0, which places him in the below average risk category for sexual recidivism.

15. The Sexual Violence Risk-20: which is an instrument to guide structured assessment of consideration and rating of a number of risk factors and other factors which would be relevant to the risk of sexual violence that an individual presents. I rated Mr. Mell as having 3 of 20 factors present. I would overall rate

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Mr. Mell's risk of sexual violence (i.e. sexual aggression towards an actual person) using this instrument as low.

16. The SONAR: which is an instrument developed by Hanson et al which attempts to incorporate dynamic factors into an individual's risk assessment. I computed Mr. Mell's score as being 2 (on a scale which extends from the lowest score of -4 to the highest score of 14). This falls within the low risk category (-4 to 3)

17. The Level of Service/Case Management Inventory (LS/CMI): which is an offender assessment developed by Andres, Bonta, and Wormith. It is used to assess an offender's needs and risks. It has been validated on 79,523 male community offenders in North America, including the United States. Mr. Mell received a score of 1 out of 43 (where a higher score is associated with greater needs and greater risks). Compared with individuals who are in the community, he is in the 2.51h percentile in terms of risk, meaning that 97.5% of individuals who are offenders who are now in the community had a higher risk of re-offense and greater need for services than Mr. Mell does.

Additional Data Relevant to the Evaluation:

1. Telephonic Interview of Mr. Mell: On September 18th, 2018, I spoke with Mr. Mell over the telephone to further clarify his use of drugs and sedatives. He said that he had been on Klonopin and Xanax since right after the helicopter accident as well as Xanax. He said that his regular medical doctor prescribed these. He was currently taking Klonopin, 1 mg tablets, one in the morning and two at night. He also was also on up to 6 1 mg tablets of Xanax. He said that at times he had taken 10 or 12 tablets in a day. He thought that he had at times used too much of these antianxiety agents.

Mental Status Examination: Mr. Mell presented on time for the appointment and was casually dressed. His affect was depressed and anxious. He denied hallucinations and there were no evident delusions or disorders of thought. He denied suicidal and homicidal ideation and intent currently and contracted to let his caregivers know if he developed this. He had good insight, good judgment, and good impulse control.

Impression: My impression is that Mr. Mell is a 52-year-old white male who has a history of growing up in an affluent and athletic family in New Jersey. This was disrupted by a bitter divorce when Mr. Mell was 12 or 13. Mr. Mell also had problems with learning and was diagnosed as having dyslexia at the age of 12 and treated extensively with therapy for his dyslexia for several years. He then managed to graduate from 9th grade and high school and college. He has an extensive history of achievement, being an avid athlete, engaging in soccer, hockey and lacrosse, working as an EMT, and working as a volunteer policeman.

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Mell, Steven

September 19th , 2018

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In 2011, Mr. Mell lost a friend and had a business partner who was severely injured in a helicopter accident; Mr. Mell was supposed to have accompanied his friends, but did not. He immediately felt guilty and has continued with survivor guilt since. The accident also resulted in litigation, which went on for several years. Associated with this, Mr. Mell developed a severe major depression, which continues into the present. This has been partially treated, but Mr. Mell is still significantly symptomatic from this.

Mr. Mell in May of 2018 was arrested by Federal authorities and charged with online enticement of a minor and traveling with the intent to engage in illicit sexual conduct.

Subsequently, while in federal custody, he was charged by Hunterdon County authorities with sexual assault of a minor. Mr. Mell was released on bail and currently is under the supervision of Federal Probation. He is being treated with Klonopin and Xanax, both of which are being prescribed by his regular doctor. Mr. Mell feels that he has at times abused these benzodiazepines.

A thorough inventory of Mr. Mell's sexual history discloses no deviancies or hypersexual disorders. Specifically, Mr. Mell does not make criteria for pedophilia, which requires at least six months of sustained atypical sexual fantasy, urges, or behavior. Indeed, his sexual interest and behavior have been markedly attenuated since his arrest. Mr. Mell does have a significant depression, which began with the helicopter accident and continues, which has only partially

been treated. Additionally, he continues with significant survivor guilt related to this accident. Mr. Mell's risk according to 5 actuarial instruments of another sexual crime is low or extremely low. This risk could be further reduced by sex offender specific therapy. Additionally, Mr. Mell has for many years been treated for a fatal illness, primary sclerosing cholangitis, and has another very serious disease, Crohn's Disease, or regional enteritis, which is associated with a significantly increased risk of cancer and which requires frequent colonoscopies to surveil for the development of precancerous lesions.

Diagnoses (According to DSM-5):

1. Major Depression, Single episode, Severe, in partial remission
2. Generalized Anxiety Disorder
3. Sedative, Hypnotic, or Anxiolytic Use Disorder, moderate
4. Panic Disorder
5. Specific Learning Disorder with impairment in reading
6. Regional enteritis (Crohn's Disease)

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Mell, Steven

September 19th, 2018

7. Primary sclerosing cholangitis

8. ? Allergy to penicillin

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Opinion/Recommendations: Mr. Mell is not a pedophile and does not have any pattern of paraphilic or hypersexual behavior. His risk of a future sexual crime is low or very low according to 5 instruments used to assess such risk. This risk could be further reduced by his participation in sex offender specific therapy. Mr. Mell has 2 extremely severe medical disorders, Crohn's Disease and primary sclerosing cholangitis (PSC), both of which will require significant medical treatment and monitoring, and one of which has a high risk of fatality. Finally, recent literature has demonstrated (see appended article by Nunez et al.) that neither incarceration per se, nor the length of incarceration is associated with a decrease in risk of recidivism and this risk could be best managed and reduced through Mr. Mell's continuation in the community and in the therapeutic modalities he has developed.

I have included a copy of my resume for your information.

Sincerely,

(k,»1~3/

Richard B. Krueger, M.D.

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EXHIBIT B3

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RICHARD B. KRUEGER, M.D.

Diplomate in Psychiatry, American Board of Psychiatry & Neurology 210 EAST 68th STREET, #1-H

Diplomate, American Board of Internal Medicine NEW YORK, NEW YORK 10065-6024

Diplomate, ABP&N, Added Qualifications in Forensic Psychiatry TELEPHONE (212) 517-6624

Diplomate, ABP&N, Added Qualifications in Addiction Psychiatry FAX (212) 517-4073

April 9th , 2019

Robert A Bianchi, Esq.

Attorney at Law

The Bianchi Law Group, LLC

4 York Avenue, 2nd Floor

West Caldwell, New Jersey 07006

By Federal Express; telephone is: 862-210-8570

Re: Updated Evaluation of Mr. Steven Mell

Dear Mr. Bianchi:

e-mail rbk1@cumc.columbia.edu

I have updated my evaluation of Mr. Mell, with my report below:

Identifying Data & Chief Complaint: Mr. Mell is a 52-year-old white male who I evaluated extensively in September of 2018. At that time, he had been arrested by federal authorities for 3 counts of on line enticement of a minor and 1 count of travel with intent to engage in illicit sexual conduct. I prepared an extensive psychiatric assessment and risk analysis in a report dated September 19th , 2019, which is appended. Mr. Mell was released on bail and has been living by himself in an apartment. He has been seeing a therapist, Dr. Daniel Water, on a weekly basis. Subsequent to the above charges, Mr. Mell pled guilty to interstate travel to engage in illicit sexual conduct and receipt of child pornography. He is scheduled to be sentenced and I was asked to update my evaluation given the fact of this guilty plea and these charges.

Sources of Information: Included the following interviews:

1. I recently interviewed Mr. Mell again for an hour on March 19th, 2019 in your offices
2. My prior interview of Mr. Mell for 4 hours on August 29th , 2018 and a follow-up telephone call on September 18th, 2018

It also included a review of the following materials:

1. My report of September 19th, 2018, which is appended

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April 9th , 2019

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2. A letter dated December 18th , 2018, referencing a plea agreement
3. A letter of November 21st, 2018, setting forth the plea agreement
4. A folder entitled "Extracted Photos-Phone Evidence No 2" with numerous jpg images, chats, and extraction report

Informed Consent for the Examination: Prior to the examination I informed Mr. Mell that I was performing an evaluation at the request of his defense attorney and that whatever he said to me could be included in a report to him or to her, and that his defense attorney may, in turn, choose to present this to the Court and the prosecution. I also presented information on the various psychological and written tests that I would be administering. Mr. Mell understood this information and signed appropriate consent forms.

Interim History: On March 19th ,2019, I met with Mr. Mell for an hour to review how he had been doing since I had evaluated him in September of 2018. He said, "I have had my ups and downs." He said that he has been continuing to receive antidepressant medication from his primary care doctor, Dr. Campbell. He was switched from Paxil to Prozac, taking a dose of 40 mg in the morning, in anticipation of incarceration in the federal prison system because of the availability of Prozac in the federal system and not Paxil. He said that he thought that his depression was much better. He said that he was increasingly anxious as his sentencing, which will be held on April 17th , 2019, approached. He reported that he had not abused sedatives or alcohol since I last saw him.

Mr. Mell said that all of his children were doing well. His 22-year-old daughter is teaching in Virginia. His 20-year-old daughter is on an elective in Sydney, Australia, and wants to go to veterinary school. His son is doing well. Mr. Mell has been seeing Dr. Daniel Water once a week in psychotherapy of a supportive nature. With respect to his depression he said when I saw him initially that he was very depressed, and that at one point he could hardly get out of bed. He said that now he was much less depressed and much more energetic.

Psychological Testing:

Tests to Assess Deviant and Non-Deviant Sexual Behavior:

1. The Bancroft Self Report Scale of Sexual Interest and Activity (Developed

by Bancroft, Tennent, Loucas, & Case, 1974): was administered. Mr. Mell reported a score of 0 on the Frequency of Sexual Thoughts Scale. This scale asks the patient to indicate how often he finds himself thinking sexy thoughts on a scale of 0, or no sexual thoughts at all, to 5 or sexual thoughts frequent and usually associated with feelings of sexual excitement in previous week. It also asks how many ejaculations the patient has had in the week prior to the interview. Mr. Mell reported that he had had no ejaculations in the week before I interviewed him. Both of these scores suggest a continuing very low or absent sexual drive.

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2. The Coleman Compulsive Sexual Behavior Inventory: this is an inventory that focuses, among other things, on the inability to control sexual impulses. It has been described and validated in peer-reviewed literature. One scale of this instrument, the Control Scale, was used. This presents 13 items that an individual is asked to rate from 1, very frequent use, to 5, never engaged in. A higher score reflects greater control over sexual impulses. Pedophiles have a mean score of 36.2, sexual compulsives a mean of 31.7, and controls a mean of 57.2. Mr. Mell had a score of 65, suggesting that he was not sexually compulsive.

Tests to Assess Other Psychiatric Syndromes:

3. The Beck Depression Inventory: which is an instrument that is used to assess the degree of depressive symptomology that an individual has; the higher the score the more depressed an individual is. The maximum score is 63. Mr. Mell had a score of 6, which is a low score suggesting that he was not depressed currently.

Risk Assessment Instruments:

4. The Child Pornography Offender Risk Tool (CPORT): this is an instrument that has been developed in Canada and which has been validated. I did not administer it when I originally evaluated Mr. Mell because he had charges involving child pornography. The CPORT relies on scoring a number of demographic factors and aspects of the offending behavior; it results in a score of 0 to 7, the higher the score the greater the risk. Mr. Mell had a score of 1, placing him in the low risk group for sexual re-offense, involving either child pornography, contact sexual crimes, or both. The observed recidivism rate for individuals with this score at 5 years is 4.5%.

Mental Status Examination: Mr. Mell was casually dressed. He was coherent and able to provide a good history. There was no indication of thought disorder or psychosis. He denied hallucinations. He denied suicidal and homicidal ideation and intent. He reported no sexual interest in minor females and no compulsions to view pornography or child pornography, or to contact minors for sexual purposes. He was extremely remorseful for his criminal actions. He had good judgment, good impulse control, and good insight.

Impression: My impression is that Mr. Mell has dealt with his arrest, guilty plea, and supervision by federal probation very well. He has reported no impulses to engage in his offending behavior. His depression is quite markedly better, and, in my judgment, this is very likely because of his medication treatment with Prozac. Likewise, his anxiety is much better, again, because, in my judgment of the fluoxetine that he has been taking.

Diagnoses: (According to DSM-5):

1. Major Depression, Single episode, Severe, in complete remission

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April 9th , 2019

2. Generalized Anxiety Disorder, in complete remission

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3. Sedative, Hypnotic, or Anxiolytic Use Disorder, moderate, in remission in an uncontrolled environment

4. Panic Disorder, in remission

5. Specific Learning Disorder with impairment in reading

6. Regional enteritis (Crohn's Disease)

7. Primary sclerosing cholangitis

8. ? Allergy to penicillin

Opinion/Recommendations: Mr. Mell is not a pedophile and does not have any pattern of paraphilic or hypersexual behavior. His risk of a future sexual crime is low or very low according to 6 instruments used to assess such risk and will be reduced by both therapy and supervision when he is in the community.

Mr. Mell has 2 extremely severe medical disorders, Crohn's Disease and primary sclerosing cholangitis (PSC), both of which will require significant medical treatment and monitoring, and one of which has a high risk of fatality. He should have these fully evaluated before going to prison and his incarceration should take into account the medical necessity of monitoring these two disorders. He also has a history of sedative abuse and in my judgment would be an excellent candidate for the Residential Alcohol and Treatment Program (RDAP) in the federal prison system.

Sincerely,

Richard B. Krueger, M.D.

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Date CV Prepared April 11th, 2018

Personal Data

Name

Office Address

Private Practice

Telephone

Email

Birthdate

Academic Training

1967 B.A.

1977 M.D.

Traineeship

1977-1978

1978-1980

1980-1983

Licensure

Richard Bohn Krueger, M.D.

Medical Director

Sexual Behavior Clinic

New York State Psychiatric Institute & Columbia University

Department of Psychiatry, Unit #45

1051 Riverside Drive

New York, N.Y. 10032

210 East 68th Street, Suite 1-H

New York, New York 10065-6024

(212) 740-7330 (New York State Psychiatric Institute)

(212) 740-7341 (New York State Psychiatric Institute)
(212) 517-6624 (private office)
(212) 517-4073 (private office fax)
(917)-750-1596 (cell phone anywhere, anytime)
rbk1@cumc.columbia.edu

7/23/45

Albion College, Albion, MI

Harvard Medical School, Boston, MA

Internship in Medicine, Boston VA Hospital, Boston, MA

Junior and Senior Residency, Medical,

Boston VA Hospital, Boston, MA

Residency in Psychiatry, Department of Psychiatry

Boston University, Boston, MA

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Page 2

1977-Present

2006-2008

2006-6008

1989-1991;

1997-Present

1989-Present

1995-Present

Narcotic License #AK 961-0684

Buprenorphine License #XK 961-0684

New York State Buprenorphine Authorization #000646

New Jersey Registration # 25MA05309800

New York License Registration #177371

New York State Worker's Compensation #177371-2

Board Certification

1980

1984

1996

1997

American Board of Internal Medicine, #7 4112

American Board of Psychiatry and Neurology, Inc.,

in Psychiatry, Certificate #26401

American Board of Psychiatry and Neurology, Inc.,

Added Qualifications in Forensic Psychiatry, Certificate #382,

recertified through 2026

American Board of Psychiatry and Neurology, Inc.,

Added Qualifications in Addiction Psychiatry, Certificate #1183,

certified through 2026

Professional Organizations and Societies

1978-Present

1978-Present

1981-Present

1981-1989

1985-Present

1989-Present

1991-Present

American Medical Association
Massachusetts Medical Society
American Psychiatric Association
Massachusetts Psychiatric Association
American Academy of Psychiatry and the Law
New York Psychiatric Society
New York Academy of Science
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1993-Present

1996-Present

2002-Present

2002-Present

2003-Present

2004-Present

2004-Present

2004-Present

2006-Present

2006-Present

2010-Present

2015-Present

2016-Present

Association for the Treatment of Sexual Abusers

American Academy of Forensic Sciences

Society for Behavioral Neuroendocrinology

International Academy of Sex Research

American Association for the Advancement of Science

International Association of Forensic Mental Health Services

American Psychopathological Association

The Society for the Advancement of Sexual Health

International Academy of Law and Mental Health

International Association for the Treatment of Sexual Offenders

Education Committee, American Academy of Psychiatry and the Law

Member, American Academy of Addiction Psychiatry

Member, American College of Psychiatrists

Academic Appointments

1983-1989

1985-1989

1989-1998

1998-Present

Clinical Instructor in Psychiatry, Boston University Medical School

Clinical Instructor in Psychiatry, Harvard Medical School

Assistant Clinical Professor of Psychiatry,

Columbia University, College of Physicians and Surgeons

Associate Clinical Professor of Psychiatry,

Columbia University, College of Physicians and Surgeons

Hospital Appointments

1982-1987

1983-1984

Consulting Psychiatrist, Hampstead Hospital, Hampstead, NH
Staff Psychiatrist, Westwood Lodge Hospital, Westwood, MA
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1984-1988

1985-1986

Hospital

1985-1989

1985-1989

1988-1989

1989-1998

1990-2000

1990-2000

1991-1994

1991-1994

1991-1994

1991-Present

1994-1998

1995-Present

1998-Present

1998-Present

Honors

1966

Staff Psychiatrist, Pembroke Hospital, Pembroke, MA

Assistant Psychiatrist, McLean Hospital/Bridgewater State
Program, Bridgewater, MA

Consulting Psychiatrist, Massachusetts Treatment Center,
Bridgewater State Hospital, Bridgewater, MA

Assistant Attending Psychiatrist, McLean Hospital, Belmont, MA

Attending Psychiatrist, Waltham/Weston Hospital Waltham, MA

Assistant Attending Psychiatrist, Columbia

Presbyterian Medical Center, New York, NY

Attending Psychiatrist, Gracie Square Hospital, New York, NY

Attending Psychiatrist, Lenox Hill Hospital, New York, NY

Research Psychiatrist II, Department of Biological Psychiatry,

New York State Psychiatric Institute, New York, NY

Member, Department of Biological Psychiatry, New

York State Psychiatric Institute, New York, NY

Research Psychiatrist 11, New York State

Psychiatric Institute, New York, NY

Attending Psychiatrist, New York State

Psychiatric Institute, New York, NY

Clinical Psychiatrist II, Inwood Mental Health Clinic, Washington

Heights Community Service, New York State Psychiatric Institute,
New York, NY

Medical Director, Sexual Behavior Clinic,

New York State Psychiatric Institute, New York, NY

Clinical Specialist 11, Sexual Behavior Clinic, New York State

Psychiatric Institute, New York, NY

Attending Psychiatrist, New York Presbyterian Hospital, New York,

NY

Phi Beta Kappa

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Page 5

1966

1967-1968

1983

2004

2007

2014

2017

2017

Omicron Delta Kappa

Rotary International Scholarship for study at University
of Stockholm, Sweden

John Murray Prize for Research in Psychiatry,
Department of Psychiatry, Boston University
Boston, MA

Distinguished Alumni Award, Albion College, Albion, MI

Distinguished Service Award from the New York State Alliance of
Sex Offender Service Providers and the New York State Chapter
of the Association for the Treatment of Sexual abusers presented
"in appreciation of your many years of service. We honor you for
your dedication, leadership, clinical expertise and scholarly
contributions to the field of sex offender management"

NYSATSA/NYSASOSP May 3rd , 2007, Poughkeepsie, NY

Life Fellow, American Psychiatric Association

Distinguished Life Fellow, American Psychiatric Association

Society for the Advancement of Sexual Health Carnes Award

Fellowship and Grant Support

1990-1994

1992-1993

1992-1993

1992-1994

Co-Investigator, NIMH, (MH35636) 09-13 Affective and cognitive
consequences of ECT 1990-1995 (subject to MERIT award
extension to 2000). \$1,008,144 direct costs (90-95). Principal
Investigator Harold A. Sackeim

Principal Investigator, Cambridge Neuroscience (#CNS-1879-
001). A placebo-controlled study of pramiracetam in depressed
inpatients undergoing electroconvulsive therapy

Principal Investigator, Cambridge Neuroscience (#CNS-1879-
002). A follow-up study of patients completing protocol (#CNS-1879-001) (a placebo- controlled study of
pramiracetam in
depressed inpatients undergoing electroconvulsive therapy)

Co-Investigator, NIMH, (MH47739) 01-05 Continuation
pharmacotherapy following ECT. (NYSPI site \$759,101 direct
costs all sites \$2,490,284). Principal Investigator Harold A.
Sackeim.

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Page 6

1993-1994 Co-Investigator, Dana Foundation Research Program on Age-Related Memory Defects (ECT memory project). \$250,000 direct

costs. Principal Investigators Eric Kandel and Lewis P. Rowland.

Other Grants and Contracts

11/2000-9/2001

5/2001-9/2001

10/2001-9/2002

2006-2007

2007-2008

Contract No 0208-2001-07 (MH) with Department of Probation of the United States District Court for the Southern District of New York; contract for the evaluation and care of federal offenders convicted of sexual crimes.

Non-competitive Purchase Order #50668A with the Department of Probation of United States District Court for the Southern District of New York for to administer penile plethysmograph and polygraph examinations.

Non-competitive Purchase Order #56640 with the Department of Probation of United States District Court for the Southern District of New York to administer Individual and Group Mental Health Counseling/Sex Offender.

Consultation Agreement with GalaxoSmithKlein regarding development of methods and scales to assess for pathological sexual behavior, pathological gambling, and other disorders of impulse.

New York State Office of Mental Health Policy Scholar Grant for 2007-2008 academic year, for project entitled ""An Analysis of Treatment Response and Medication Satisfaction in a Group of Patients Treated with Gonadotropin Releasing Hormones Agonist Therapy for Hypersexual and/or Paraphilic Disorders and An Analysis of Diagnoses of a Group of Patients Arrested for Crimes Against Children over the Internet." Amount awarded: statistical, data entry, and research design support provided by the New York State Office of Mental Health.

Departmental and University Committees

1992-1995

1992-1995

NYSPI-Columbia University IRB Psychopharmacology I

Subcommittee, member

New York State Psychiatric Institute--Columbia University

Department of Psychiatry Institutional Review Board, member

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Teaching Experience and Responsibilities

1977-1980

1977-1980

1980-1983

1983

1983-1984

1989-1991

1994-2000

1991-1993

1991-1994

1991-1994

1994-1997

1994-1998

1994-2005

1994-present

1996-present

1999-present

Clinical Instructor in Medicine, Tufts University School of Medicine
(taught medical students, interns, and residents in medicine)

Clinical Instructor in Medicine, Boston University, School of
Medicine (taught medical students, interns, and residents in
medicine)

Clinical Instructor in Psychiatry, Department of Psychiatry, Boston
University (taught medical students and residents in psychiatry)

Taught seminars in clinical interviewing using videotape for
medical students and psychiatric residents at Boston University

Taught Boston University medical students during their psychiatry
rotation at Westwood Lodge Hospital

Faculty, Psychiatric Medicine I and Psychiatric Medicine 11,
teaching Columbia first and second year medical students

Supervisor PGY IV Residents in psychiatry at Columbia P&S in
consultation and liaison psychiatry

Supervisor and instructor, Columbia medical students and
psychiatric residents in performing ECT

Developed and directed a Continuing Medical Education
Fellowship on Electroconvulsive Therapy offered by the
Department of Psychiatry of Columbia P&S and the Department of
Biological Psychiatry of New York State Psychiatric Institute

Clinical Supervisor, Columbia psychology interns

Supervisor, Columbia PGY III medical students in their outpatient
experience during their psychiatry rotation

Faculty, Harlem Hospital Residency in Psychiatry, teaching PGY II
residents on sexual disorders and paraphilias and their treatment

Evaluation supervisor, Columbia PGY III psychiatric residents

Faculty, Creedmoor Psychiatry Residency, teaching PGY III
psychiatric residents on sexual disorders and their treatment

Faculty, Columbia Cornell Fellowship in Forensic Psychiatry

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Other Professional Activities

1984-1989

1984-1989

1984-1989
1985-1989
1985-1989
1988-1989
1988-1989
1989-1998
1989-1991
1994
1995-Present
1995-Present
1995-Present
1996-Present
1996-2002
Consulting Psychiatrist, Blue Cross/Blue Shield, Utilization Review Program
Consulting Psychiatrist, The Neurologic Center at Forest Manor, Middleborough, MA
Consulting Psychiatrist, Jordan Hospital, Plymouth, MA
Consulting Psychiatrist, The Boston Neurobehavioral Center, Boston, MA
Consulting Psychiatrist, The Massachusetts Treatment Center, Bridgewater, MA
Consulting Psychiatrist, McLean Health Services, Belmont, MA
Consulting Psychiatrist, Framingham Court Clinic, Framingham, MA
Consulting Psychiatrist, Sexual Behavior Clinic, New York State Psychiatric Institute, New York, NY
Attending Psychiatrist, Inpatient Psychiatric Unit, Allen Pavilion, Columbia Presbyterian Medical Center
Guest Reviewer, Biological Psychiatry
Member, Sexual Offenders Committee, American Academy of Psychiatry & the Law
Authorized Provider, State of New York Worker's Compensation Board
Expert Consultant, New York State Health Department's Office of Professional Medical Conduct (OPMC), Albany, NY
Expert Consultant, New Jersey State Board of Medicine Trenton, New Jersey
Member, Board of Directors, The New York Academy of Traumatic Brain Injury, Inc.
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1997-2001

1997-Present

1998-2000

1998-2001

1999-2002

2000

2001

2003

2005

2005-2011

2007

2007

2008-2011

2008-Present

2008-Present

2009-Present

2009-Present

2009

Member, Psychopharmacology Committee, American
Academy of Psychiatry & the Law

Member, Board of Directors, New York State Chapter,
Association for the Treatment of Sexual Abusers

Consultant, NY State Office of Mental Health/Sidney Albert
Institute of the Parsons Child and Family Center Workgroup
on Developing a Statewide System of Care for Child and
Adolescent Sexual Abusers

Chairman, Psychopharmacology Committee, American
Academy of Psychiatry & the Law

Consultant, NY State Office of Mental Health Task Force on
Sex Abuse

Guest Reviewer, Psychiatry Research

Guest Reviewer, Practical Psychiatry and Behavioral Health

Guest Reviewer, Progress in Neuro-Psychopharmacology
& Biological Psychiatry

Guest Reviewer, European Archives of Psychiatry and Clinical
Neuroscience

Vice-President, New York State Chapter, Association for the
Treatment of Sexual Abusers

Guest Reviewer, Sexual Abuse

Guest Reviewer, Journal of Nervous and Mental Disease

Member, The Trauma and Stress Committee, American Academy
of Psychiatry and the Law

Member, DSM-V, Sexual and Gender Identity Disorders Work
Group

Expert Reviewer, Journal of Sex Research

Expert Reviewer, Journal of Sexual Medicine

Member, Society for Sex Therapy and Research (SST AR)

Guest Reviewer, Harvard Review of Psychiatry

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2010

2011

2011

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2011

2011-Present

2011-Present

2011-Present

2011-Present

2012

2012-2013

2013-2015

2013

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2014

2014

Guest Reviewer, CNS Spectrums

Guest Reviewer, Sexual Abuse

Guest Reviewer, Neuropsychiatry

Guest Reviewer, Sexuality & Culture

Guest Reviewer, Journal of Abnormal Psychology

Reviewer, Journal of Sex and Marital Therapy

Reviewer, Journal of Sexual Medicine

Member, Education Committee, American Academy of Psychiatry
and the Law

Member, Sexual Health and Disorders Committee of the World
Health Organization; this committee is composed of international
authorities and is making recommendations for revision of the
sexual disorders section for ICD-11 (The International
Classification of Diseases-11 th Edition)

Guest Reviewer, Archives of Sexual Behavior

President Elect, New York State Association for the Treatment of
Sexual Abusers

Elected by Board to position of President, New York State
Association for the Treatment of Sexual Abusers

Guest Reviewer, Journal of Psychiatric Research

Guest Reviewer, Archives of Sexual Behavior

Participant, Meeting on Protocol Development for Field Testing of
ICD-11 Sexual Disorders and Sexuality-Related Conditions

Guest Reviewer, International Journal of Family Medicine

Guest Participant, Human Sexuality Committee, Group for the
Advancement of Psychiatry, White Plains, New York

Guest Reviewer, Sexual Medicine Reviews

Guest Reviewer, Archives of Sexual Behavior

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2014

2014

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2015

2015

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2015

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Guest Reviewer, Journal of Forensic Psychiatry and Psychology

Guest Reviewer, Journal of Psychiatry and Neuroscience

Guest Reviewer, Journal of Sex and Marital Therapy

Guest Reviewer, Journal of Sex Research

Guest Reviewer, Comprehensive Psychiatry

Guest Reviewer, Archives of Sexual Behavior

Guest Reviewer, Journal of Sex and Marital Therapy

Guest Reviewer, Plos One

Guest Reviewer, Comprehensive Psychiatry

Guest Reviewer, Journal of Forensic Psychiatry and Psychology

Guest Reviewer, Journal of Sex Research

Guest Reviewer, Behavioral Sciences

Invited participant, Assembly Standing Committee on Correction,

Public Roundtable on Sex Offender Residency Restrictions to
examine the efficacy of sex offender residency restrictions and

identify best practices to promote public safety and prevent
recidivism of sex offenders. Wednesday, May 20th , 2015,

Legislative Office Building room 711-A, 7th Floor, Albany, New

York 12248 called by Daniel J. O'Donnell, Member of the

Assembly, Chairperson, Committee on Correction

Guest Reviewer, Journal of Sex Research

Guest Reviewer, Addiction

Member, American College of Psychiatrists

Guest Reviewer, International Journal of Psychological Research

Guest Reviewer, Medical Journals

Member, DSM Review Committee for Externalizing Disorders and

Personality Disorders (Personality, Disruptive, Impulse Control,

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Conduct Disorders, Substance Use Disorders, Paraphilic Disorders)

Guest Reviewer, Journal of Psychopharmacology

Guest Reviewer, American Journal of Psychiatry

Guest Reviewer, The Journal of the American Academy of Psychiatry and the Law

Guest Reviewer, Journal of Sex and Marital Therapy

Guest Reviewer, Development and Psychopathology

Guest Reviewer, Journal of Sexual Medicine

Guest Reviewer, International Clinical Psychopharmacology

Guest Reviewer, Journal of Psychiatric Practice

Guest Reviewer, Journal of Sex and Marital Therapy

Guest Reviewer, Journal of Sexual Medicine

Guest Reviewer, Journal of Forensic Research

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11. Krueger RB. Pharmacological Treatment of Male Sex Offenders. Presentation at the Psychopharmacology Training Program of the New York State Office of Mental Health, Albany, New York, November 9, 1999.

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Grand Rounds, the Department of Psychiatry, Montefiore Medical Center and the Albert Einstein College of Medicine, Bronx, NY, October 17, 2002.

42. Krueger RB. Recent Developments in the Diagnosis and Pharmacological Treatment of Sex Offenders. Presentation at Grand Rounds, Kirby Forensic Psychiatric Center, Ward's Island, New York, NY, November 7, 2002.

43. Krueger RB. Recent Developments in the Diagnosis and Pharmacological Treatment of Sex Offenders. Presentation at Grand Rounds, Middletown Psychiatry Center, Middletown, NY, February 5, 2003.

44. Kaplan MS, Krueger RB. Assessment of Youngsters with Histories of Inappropriate Sexual Behavior. Presentation at Grand Rounds, Rockland Children's Psychiatric Center, Orangeburg, NY, February 11, 2003.

45. Krueger RB. Recent Developments in the Diagnosis and Pharmacological Treatment of Sex Offenders. Presentation at Mount Sinai Hospital, New York, NY, March 11, 2003.

46. Krueger RB. Recent Developments in the Treatment of the Paraphilias and the Hypersexual Disorders in Adults and Adolescents. Presentation at Combined Social Work and Psychiatry Grand Rounds, Harlem Hospital, New York, NY, March 26, 2003.

47. Krueger RB. Recent Developments in the Diagnosis and Pharmacological Treatment of Sex Offenders. Presentation at Grand Rounds, Manhattan Psychiatric Center, Ward's Island, New York, NY. May 2, 2003.

48. Krueger RB. Recent Developments in the Diagnosis and Pharmacological Treatment of Sex Offenders. Presentation at Grand Rounds, Pilgrim Psychiatric Center, West Brentwood, NY. November 5, 2003.

49. Krueger RB. Recent Developments in the Diagnosis and Pharmacological Treatment of Sex Offenders. Presentation al Grand Rounds, St. Luke's-Roosevelt Hospital Center, New York, NY, March 10, 2004.

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2006

50. Kaplan MS, Krueger RB. Assessment and Treatment of Adolescent Sexual Offenders. Presentation at Grand Rounds, Rockland Children's Psychiatric Center, Orangeburg, NY, February 1, 2005.
 51. Krueger RB, Kaplan MS. Assessment and Treatment of Individuals Arrested for Internet Crimes Against Children. Presentation at the Tenth Annual Conference of the New York State Alliance of Sex Offender Service Providers and the New York State Chapter of the Association for the Treatment of Sexual Abusers. White Plains, NY, May 6, 2005.
 52. Rotter M, Reid N, Rivera J, McCullough M, Krueger R. Psychopharmacological Assessment and Treatment of Patients in the New York State OMH System. Part of an overall presentation The Mentally Ill Sexual Offender Special Considerations for a Special Population. Presentation at the Tenth Annual Conference of the New York State Alliance of Sex Offender Service Providers and the New York State Chapter of the Association for the Treatment of Sexual Abusers. White Plains, NY, May 6, 2005.
 53. Freedman PM, Kaplan MS, Krueger RB, Simring SS. Sexual Deviation, Sexual Crimes, and Sexually Violent Predators. State of New Jersey, Judicial College, Administrative Office of the Courts and the Supreme Court Committee on Judicial Education. Teaneck, NJ. November 22, 2005.
 54. Krueger RB. Recent Developments in the Diagnosis and Pharmacological Treatment of Sex Offenders. Presentation at Grand Rounds, Creedmore Psychiatric Center, New York, NY, March 9, 2006.
 55. Krueger RB. Recent Developments in the Diagnosis and Pharmacological Treatment of Sex Offenders. Presentation at Grand Rounds, Gouvernor Hospital, New York, New York, April 25, 2006.
 56. Krueger, RB. Reports of Child Sexual Abuse Perpetrated by Females in a Sample of Male Sexual Offenders and Comments on SVP Legislation in New York State. Presentation at a conference "Meeting the Needs of All Victims of Criminal Behavior" given by New York AAPL, New York University, New York, New York, April 29, 2006.
 57. Friedman, RA, Kaplan, MS, Weiss, SL, Greenberg, M. Risk Assessment and a Team Approach to Sexual Violence in the Family. Presentation at The Interdisciplinary Forum on Mental Health and Family Law in New York State. New York, New York, May 16, 2006.
 58. Abel, GG, Marks, TI, Krueger, RB. The Evaluation and Treatment of Physicians Involved in Sexual Misconduct and Sexual Harassment.
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- Course 100. The American Psychiatric Associations 159th Annual Meeting. Toronto, Ontario, Canada, May 25, 2006.
59. Krueger, RB, Kaplan, MS. Biological Treatments for the Paraphilias and Compulsive Sexual Behavior. Presentation at Annual Meeting of the Association for the Treatment of Sexual Abusers. Chicago, Illinois, September 29, 2006.
 60. Rotter, M, Krueger, R. The Mentally Ill Sexual Offender: Special Considerations for a Special Population. Presentation by Dr. Rotter

before the American Psychiatric Association's Institute on Psychiatric Services Annual Meeting. New York, New York, October 6, 2006.

61. Seybert, J, Hurley, D, Whalen, M, Garoppolo, T, Bode, A, Krueger, R. Selected Issues Involving Child Pornography. Presentation at the Criminal Justice Act Panel Committee of the Eastern District of New York. Brooklyn, New York, October 24, 2006.

62. Corliss, RK, Cross, CD, Krueger, RB, Harkavy, S, O'Connor, A: Civil Commitment of Sexually Violent Predators: Where Are We Now and Where Do We Want to Go? NAM I-New York State 24th Annual Educational Conference. From Research to Recovery: Improving the Lives of New Yorkers with Mental Illness. White Plains, New York, November 3, 2006.

63. Kinscherff, R, Guidry, L, Berlin, F, Bengis, SM, Hart, SD, Latham, C, Prentky, R, Vincent, G, Dunseith, NW, Taylor, P, Krueger, RB, Saleh, FM, Ball, CJ. Conversations on Best Practice Applications for the Mentally Ill/ Problematic Sexual Behavior Population: Values and Implementation. Worcester, Massachusetts, November 17, 2006.

64. Krueger, RB. Influencing sex offender legislation: What role for Clinicians? Invited lecture for a symposium entitled: Society and sex offenders with D, Wylie, K, Morris, C, Green, P, Krueger, R, Bradford, J, and Soothill, K. Organized by the Sexuality & Sexual Health Section of the Royal Society of Medicine, London, England, December 1, 2006.

65. Krueger, RB. Biological Treatments for the Paraphilias and Compulsive Sexual Behavior. Presentation at Grand Rounds. Central New York Psychiatric Center, Marcy, New York, December 20, 2006.

66. Krueger, RB. Biological Treatments for the Paraphilias and Compulsive Sexual Behavior. Presentation at Grand Rounds. Woodhull Medical & Mental Health Center, January 17, 2006.

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2007

2008

67. Baillargeon, J. et al. Responses to Sex Crimes and People Convicted of Sex Crimes. Participant. Open Society Institute, New York, New York, January 25, 2006.
68. Abel, GG, Marks, TI, Krueger RB. The Evaluation and Treatment of Physicians Involved in Sexual Misconduct and/or Sexual Harassment. American Psychiatric Association 160th Annual Meeting, San Diego, California. May 21, 2007.
69. Lindenmeyer, JB, Langer, SJ, Krueger, RB, Barbaree, Barbaree, HE, Siegel, LA, Zonana, HV. Biological Treatments for the Sexually Violent Offender and Discussant in Symposium 70. The Sexually Violent Offender. American Psychiatric Association 160th Annual Meeting, San Diego, California. May 23, 2007.
70. Krueger, RB. Risk Assessment and Risk Management. Presentation at the Whiting Forensic Division of Connecticut Valley Hospital, Middletown, Connecticut. September 20th, 2007.
71. Krueger, RB. Paraphilias & Hypersexual Disorders: An Update. Presentation at Grand Rounds, Department of Psychiatry, Mount Sinai Hospital, New York, New York. September 25th, 2007.

72. Seybert, J, Krueger, R, Kelly, E., Goldberg, A, Whalen, M, Levitt, R. Psychiatric/Mental Health Involvement in Cases Involving Sexual Crimes. Part of a panel entitled "Rita, Rita, Guidelines Eater and SORNA, SMART, AWA, and SOMA by the Criminal Justice Act Panel Committee of the Eastern District of New York, Brooklyn, New York. November 7th , 2007.
 74. Krueger, R, Bradford, J. Compulsive Sexual Behavior, Discussant. New York State Office of Mental Health, Bureau of Psychiatric Services and Research Institute Support, Psychopharmacology Training Program, Albany New York, November 29th , 2007.
 75. Miraglia, R, Krueger, R, Kaplan, M. The Treatment and Management of Persons Who Have Committed Sexual Offenses, Bureau of Psychiatric Services and Research Institute Support, Statewide Grand Rounds, Albany, New York, February 27th , 2008.
 76. Krueger, R, Paraphilias & Hypersexual Disorders: An Update. Presentation at Grand Rounds, Mid-Hudson Forensic Psychiatric Center, New Hampton, New York. April 22nd , 2008.
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2009

77. Krueger, R, Kaplan, M. The Diagnosis and Treatment of Individuals Convicted of Internet Crimes Against Children. Workshop at Annual Conference of the New York State Association for the Treatment of Sexual Abusers, Saratoga Springs, New York. May 13th, 2008.
78. Krueger, R, Kaplan, M. Medication Treatment of Paraphilias and Compulsive Sexual Behavior. Workshop at Annual Conference of the New York State Association for the Treatment of Sexual Abusers, Saratoga Springs, New York. May 13th , 2008.
79. Miraglia, R, Culkun, J, Lee, G, Krueger, Richard. Current Trends in Management and Treatment of Sex Offenders: Psychopharmacological Approaches. Grand Rounds. Bronx State Psychiatric Center. Bronx, New York September 5th , 2008.
80. Nersessian, E, Levy, F, Davidson, A, Kernberg, O, Krueger, R, Williams, L, Winemaker. Paraphilias. A Roundtable Discussion. The Philoctetes Center for the Multidisciplinary Study of Imagination at the New York Psychoanalytic Institute, New York, New York. October 18th , 2008.
81. Weiss, S, Braunstein, L, Kaplan, M, Krueger, R. Internet pornography and child custody. Presentation at The Interdisciplinary Forum on Mental Health and the Law, New York, New York. December 18th, 2008.
82. Zucker, K, Blanchard, R, Kafka, M, Krueger, R, Meyer-Bahlburg, H, Seagraves, R.T., Brotto, LA, Blinik, I. Symposium: Provisional report by the DSM-V workgroup on sexual and gender identity disorders. Presentation at the 34th Annual Meeting of the Society for Sex Therapy and Research, Arlington, Virginia, April 3^d, 2009.
83. Krueger, R, Lee, L. Current Trends in Management and Treatment of Sex Offenders: Psychopharmacological Approaches. Central New York Psychiatric Center, Utica, New York, April 21st , 2009.
84. Lee, L.G., Krueger, R. Androgen Reduction Therapy in SOTP. Joint CNYPC/LSPC/Central Office Session, Utica, New York, April 21st , 2009.

85. Krueger, R, Kaplan, M. Diagnostic Issues in the Assessment and Treatment of Individuals Convicted of Sexual Offenses. Central New York Psychiatric Center, Utica, New York, April 21 st , 2009.

86. Krueger, R., Lee, L.G. Psychopharmacological Treatment of Sexual Offenders. Presentation to Judges, MHLS attorneys, and the Attorney General's Office. Ceremonial Courtroom, Onondaga County Courthouse, Syracuse, New York, June 4th , 2009.

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2010

87. Kafka, M, Blanchard, R, Krueger, R, Langstrom, N, Paraphilic Disorders and DSM-V: Considerations for Revision of Diagnostic Criteria; Sexual Sadism Disorder, Sexual Masochism Disorder, and Paraphilic Coercive Disorder. Annual Meeting of the Association for the Treatment of Sexual Abusers, Dallas, Texas, October pt, 2009.

88. Krueger, R, First, M, Fedoroff, P, Zonana, H, Berlin, F: A Critical Appraisal of Proposed DSM-V Paraphilic Diagnoses. Annual Meeting of the American Academy of Psychiatry and the Law, Baltimore, Maryland, October 29111 , 2009.

89. Kaplan, M, Krueger, R: Proposed Paraphilic Diagnoses for DSM-V. Grand Rounds, Mid-Hudson Forensic Psychiatric Center, New Hampton, New York, December 1st, 2009.

90. Krueger, R, Hall, D, Thomas, N, McPherson, J, Page, J, Carey, C. Testimony regarding proposed sex offender legislation and SORA actuarial assessment before the New York State Senate Committee on Crime, Crime Victims, and Corrections. Albany, New York, March 9th , 2010.

91. Krueger, R, Kaplan, M: Paraphilic diagnoses in DSM-Vat a conference entitled "Contemporary Treatments of Paraphilias" at the Inbal Hotel in Jerusalem, Israel on June 17th , 2010.

92. Kaplan, M, Krueger, R: Cognitive-behavioral treatment of paraphilias and Hypersexual Disorders at a conference entitled "Contemporary Treatments of Paraphilias" at the Inbal Hotel in Jerusalem, Israel on June 17111, 2010.

93. Krueger, R: Medication treatment of the paraphilias and hypersexual disorders. Grand Rounds at the Ann Klein Forensic Center Special Treatment Unit, Rahway, New Jersey, July 14th , 2010.

94. Krueger, R: New developments in the diagnosis of sexual masochism and sexual sadism. Presentations at the 11th Conference of the International Association for the Treatment of Sexual Offenders (IATSO), Oslo, Norway, September 2nd , 2010.

95. Maskel, L, Bradford, J Tucker, D, Krueger, R, Thornton, D, Zander, T, Franklin, K: Stirring the DSM-5 Cauldron. Debate at the 4 pt Annual Meeting of the American Academy of Psychiatry and the Law, Tucson, Arizona, October 23rd , 201 O.

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2011

2012

96. Krueger, R: Medication Treatment of the Paraphilias and Hypersexual Disorders. Presentation at Kingsboro Psychiatric Center, Brooklyn, New York, October 28th, 2010.
97. Krueger, R: Biological Treatment of Individuals with Paraphilias and/or Sexual Disorders. Invited lecture for the Faculty of Forensic Psychiatry, Royal College of Psychiatrists, Annual Meeting, Berlin, Germany, February 3rd, 2011.
98. Kaplan, M, Krueger, R: Sexual Acting Out in Adolescents: Normative vs. Pathological Behaviors and Their Management. Presentation at Grand Rounds at Queens Children's Psychiatric Center, Bellerose, New York, October 20th, 2011.
99. Sorrentino, Rene, Kafka, M, Krueger, R: The DSM-5 Sexual Disorders: Forensic Implications. Presentation at the Annual Meeting of the American Academy of Psychiatry and the Law, Boston, Massachusetts, October 24th, 2011.
100. Lee, Li-Wen, Miraglia, R, Krueger, R: New York State's SVP Law: Program Development and Implementation. Presentation at the Annual Meeting of the American Academy of Psychiatry and the Law, Boston, Massachusetts, October 26th, 2011.
101. Krueger, R, Kaplan, M: Treatment of Individuals with Paraphilias and/or Sexual Disorders. Presentation at Grand Rounds. Lincoln Hospital, Bronx, New York, December 20th, 2011.
102. Krueger, R: Paraphilic Diagnoses in DSM-5 and Treatment Update on Paraphilic Disorders. Presentation at Grand Rounds. Department of Psychiatry. Nassau University Medical Center, East Meadow, New York, February 29th, 2012.
103. Krueger, R: Biological Treatment of Individuals with Paraphilias and/or Sexual Disorders. Keynote address to the 12th Annual Massachusetts Department of Mental Health Forensic Service Division's Mentally Ill/Problematic Sexual Behavior Program Training conference. University of Massachusetts Hoagland-Pincus Conference Center, Shrewsbury, Mass. May 17th, 2012.
104. Krueger, R, Lee, Grace: The Psychopharmacological Treatment of Individuals with Paraphilias and/or Sexual Disorders. Workshop given at HNT-18-000297 06/26/2019 3:23:47 PM Pg 87 of 105 Trans ID: CRM2019548341

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2013

- the Annual Conference of the New York State Association for the Treatment of Sexual Abusers, Hunter, New York. May 22nd, 2012.
105. Krueger, R, First, M, Kaplan, M: Forensic Implications of DSM-5. Workshop given at the Annual Conference of the New York State Association for the Treatment of Sexual Abusers, Hunter, New York. May 22nd, 2012.
106. Krueger, R. Behavioral Addictions. Conference on the Essentials of Addiction given at the Association of the Bar, City of New York, New York, New York, June 4th, 2012
107. Mossberg, M., Ravitz, A, Tatarsky, A, Drager, JL, Bender, S, Alter, E. The Essentials of Addictions: A New Understanding for Family Law

Practitioners, Forensic Experts and the Court. Conference at the Association of the Bar, City of New York, New York, New York, September 27th, 2012

108. Krueger, R: The Role of Psychiatric Diagnosis and Treatment in the Management of Individuals Who Have Committed Sexual Crimes.

Invited Lecture for Course on Sex Offenders in the Criminal Justice System arranged by the Honorable Barnett Hoffman at John Jay College, New York, New York, October 16th, 2012

109. Krueger, R: Biological Treatment of Individuals with Paraphilias and/or Sexual Disorders. Invited Presentation at the Special Treatment Unit, Avenel, New Jersey, October 17th, 2012

110. Maskel, L, Forestell, M, Singer, M, LeBell, R, Corcoran, J, Krueger, R, Wollert, R, Bradford, J.: Hebephilia: Weed Diagnosis in the Botanical Garden of DSM-5? Mock Trial, 43rd Annual Meeting of the American Academy of Psychiatry and the Law, Montreal, Quebec, Canada, October 25th, 2012.

111. Krueger, R, Kaplan, M: Diagnostic Issues in the Assessment and Treatment of Individuals Convicted of Sexual Offenses and an Update on DSM-5. Grand Rounds, Mid-Hudson Forensic Psychiatric Center, New Hampton, New York, February 5th, 2013

112. Krueger, R: Sex Offender Diagnoses, Treatment, and DSM-5 Update. The National Alliance of Sentencing and Mitigation Specialists (NASAMS), Baltimore, Maryland, March 23rd 2013

113. Krueger, R: Pain and Sadomasochism: Definitions, Epidemiology, Studies, Mechanisms, and Future Directions. Invited Presentation to The HNT-18-000297 06/26/2019 3:23:47 PM Pg 88 of 105 Trans ID: CRM2019548341

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Pain Project, University of Glasgow, Department of Philosophy, Glasgow, Scotland, April 6th, 2013

114. Krueger, R: Paraphilic Disorders: Presentation at Meeting on Protocol Development for Field Testing of ICD-11 Sexual Disorders and Sexuality-Related Conditions. Invited presentation and participation in meeting hosted by The World Health Organization for the development of ICD-11. Geneva, Switzerland, April 23rd-25th, 2013

115. Krueger, R: Paraphilic Disorders in ICD-11. Presentation at the National Transgender Health Summit, San Francisco, California, May 18th, 2013

116. Krueger, R: Sexual Disorders and Sexual Health in the ICD-11: Parallels and Contrasts with DSM-5: Paraphilic Disorders, with Drescher, J, Cohen-Kettenis, Peggy, Cochran, Susan, Giami, Alain, and Reed, Geoffrey.

Symposium at the American Psychiatric Association's Annual Meeting, San Francisco, California, May 21st, 2013

117. Krueger, R: Pain and Sadomasochism: Definitions, Epidemiology, Studies, Mechanisms, and Future Directions. Invited Presentation to The Pain Project, University of Glasgow, Department of Philosophy, Glasgow, Scotland, June 19th, 2013

118. Krueger, R, Kaplan, M.: Sex Offender Diagnosis, Treatment, and DSM-5 Updates. Multi-Track Federal Criminal Defense Seminar, Buffalo, New York, August 9th, 2013

119. Krueger, R: Biological Treatment of Individuals with Paraphilias and Hypersexual Disorders. Grand Rounds, Department of Psychiatry,

Jacobi Hospital, Bronx, New York, September 25th , 2013
120. Krueger, R: The Role of Psychiatric Diagnosis and Treatment in the Management of Individuals Who Have Committed Sexual Crimes. Invited Lecture for Course on Sex Offenders in the Criminal Justice System arranged by the Honorable Barnett Hoffman at John Jay College, New York, New York, October 8th , 2013
121. Krueger, R: DSM-5 For Article 1 O Examiners. Presentation at the New York State Office of Mental Health Forensic Division, Albany, New York, October 18th, 2013
122. Krueger, R, Kleinplatz, PJ, Silverstein, C: Kinky Sex of Paraphilia? Sexual Disorders in DSM-5, Annual Meeting of the New York State Psychological Association, New York, New York, October 20th , 2013
123. Lee, Li-Wen, Krueger, Richard, Murphy, Lisa, Knack, Natasha, Maskel, Lynn: Ethical Issues in SVP Treatment: Is There a Right Answer?
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2014

Presentation at the Annual Meeting of the American Academy of Psychiatry and the Law, San Diego, California, October 25th, 2013
124. Krueger, Richard, Martinez, Nicolas: The Classification of Sexual Disorders and Sexual Health: Recommendations for ICD-11 and Legal and Policy Issues Related to Proposals for Paraphilic Disorders in WHO's iCD-11. Presentation at the Annual Meeting of the American Academy of Psychiatry and the Law, San Diego, California, October 25th , 2013
125 Kamdang, L, Guevara, V., Krueger, R: Discussion on Child Pornography and People in the Registry. Discussion with the Policy Caucus and Criminal Justice Caucus, Columbia University School of Social Work, New York, New York, November 13th , 2013
126. Krueger, R, Kaplan, M: The Case of an Individual Arrested for Child Pornography: The U.S. vs. C.R. Presentation at the Tri-State American Academy of Psychiatry and the Law's 15th Annual Conference, San Juan, Puerto Rico, December 13th , 2013
127. Krueger, R: DSM-5 and Sexual Disorders. Grand Rounds. Mid-Hudson Forensic Psychiatric Hospital, New Hampton, New York, April 15th , 2014
128. Krueger, R: Proposed Diagnostic Criteria and Biological Therapies for Compulsive Sexual Behavior Disorder: DSM-5 and ICD-11 Considerations in Symposium by Potenza, M, Erez, G, Levounis, P, Kraus, S, Kafka, M. Hypersexual Behaviors: Diagnostic, Categorical, Gender, Orientation, Psychopathological, and Treatment Considerations. The Annual Meeting of the American Psychiatric Association, New York, New York, May 5th , 2014
129. Krueger, R: Sexual Health and Sexual Disorders: The Science and Implications of Changing Diagnoses in the ICD. Presentation for the Columbia University Seminar Series on Global Mental Health, Columbia Mailman School of Public Health, New York, New York, May 12th , 2014
130. Krueger, R., Reed, G., First, M., Briken, P.: Proposed Paraphilic Disorders for ICD-11. Poster Presentation at the Fortieth Annual Meeting of the International Academy of Sex Research, Dubrovnik, Croatia, June 26th , 2014
131. Briken, P., Krueger, R.: Paraphilic Diagnoses in DSM-5 and Proposals for

ICD-11-Are There Implications for Sexual Offender Management?

Presentation at the 13th Conference of the International Association for the Treatment of Sexual Offenders (IATSO), Porto, Portugal, September 3rd , 2017

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2015

2016

132. Turner, D., Krueger, R., Harrison, K, Briken, P.: Institutional and Legal Prerequisites of Pharmacological Sexual Offender Treatment in the Countries of the European Union and North American. Presentation at the 13th Conference of the International Association for the Treatment of Sexual Offenders (IATSO), Porto, Portugal, September 4th , 2017

133. Krueger, R.: Biological Treatment of Individuals with Paraphilias and Hypersexual Disorders. Presentation at the University of Minnesota's Department of Psychiatry and Sexual Health Grand Rounds, Minneapolis, Minnesota, February 18 11', 2015

134. Krueger, R.: Paraphilic Disorders in DSM-5. Presentation at the 40th Annual Conference of the Forensic Mental Health Association of California, Monterey, California, March 19th , 2015

135. Krueger, R.: Paraphilic Disorders in ICD-11. Presentation at the 40th Annual Conference of the Forensic Mental Health Association of California, Monterey, California, March 19th , 2015

134. Krueger, R.: The Role of Androgen Reduction Therapy for the Treatment of Individuals Who Have Committed Sexual Offenses. Presentation at the 40th Annual Conference of the Forensic Mental Health Association of California, Monterey, California, March 19th , 2015

136. Krueger, R., Reed, G., First, M., Briken, P., Marias, A, Kismodi, E.: Proposed Paraphilic Disorders for ICD-11. Poster Presentation at the Forty-first Annual Meeting of the International Academy of Sex Research, Toronto, Canada, August 11th, 2015

137. Krueger, R., Maskel, L., Bradford, J., Zonana, H., Dwyer, G., Wollert, R.: Between a Rock and a Hard Place: Debating Sexual Sadism Diagnoses. Panel at the 46th Annual Meeting of the American Academy of Psychiatry and the Law, Fort Lauderdale, Florida, October 25th , 2015

138. Krueger, R., Murphy, L, Dwyer, G, Knack, N: Child Pornography Offenders: Definitions, assessment, risk of recidivism, and treatment. Panel at the 46th Annual Meeting of the American Academy of Psychiatry and the Law, Fort Lauderdale, Florida, October 23'd, 2015

139. Krueger, R, Kaplan, M. Weiss, S, Braunstein, L.: The Impact of Sexual Behavior on Custody Evaluations. Presentation at the Interdisciplinary

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2017

Forum on Mental Health and Family Law, Phillips-Nizer, New York, New York, April 14 111, 2016

140. Krueger, R, Kaplan, M, Menzie, L, Rzewinski, J, Kaplan, M, Jackson, K,

Ford, W.: Program Descriptions on Sex Offender Treatment Panel of Providers. Presentation before the New York County District Attorney's Office, May 4th , 2016, New York, New York

141. Krueger, R: Psychopharmacology for Forensic Psychologists. Lecture at Fairleigh Dickenson University, Teaneck, New Jersey June 15th, 2016

142. Krueger, R, Briken, P: Proposed Paraphilic Disorders and Impulse Control Disorders for the International Classification of Disease and Related Health Problems Eleventh Revision (ICD-11). Presentation at the 14th Biannual Conference of the International Association for the Treatment of Sexual Offenders, Copenhagen, Denmark, September 8th, 2016

143. Murphy, L, Dwyer, G, Krueger, R, Fedoroff, P: The Scarlet Letter: Public Notification of Sexual Offenders. Presentation at the Annual Meeting of the American Academy of Psychiatry and the Law, Portland Oregon, October 30th , 2016

144. Krueger, R, Kaplan, M. Sexual Masochism and Non-Consenting Victim Case Presentation. Presentation at the Annual Winter Conference of Tri-State AAPL, Miami, Florida, December 8th , 2016

145. Krueger, R. Current Practices for Treating Sexual Offenders. Presentation at a joint meeting of the Council on Psychiatry and the Law and the Committee for Judicial Action of the American Psychiatric Association. Washington, D.C. September 15th, 2017

146. Krueger, R., Ser, Jason: Sex Offender Risk Assessment. Presentation at a conference on Sentencing Strategy Session for Federal Public and Community Defenders, Chicago, Illinois, September 26th , 2017

147. Krueger, R. Paraphilic Disorders in ICD-11. Presentation at the World Congress of Psychiatry, Berlin, German, October 10th , 2017

148. Candilis, P, Kaempf, A, Kalla, N, Krueger, R. Truth to Power: Committee Chairs and the Presidential Theme Ethics Committee. Truth to Power in the Matter of Sexual Offenders. American Academy of Psychiatry and the Law. Annual Meeting, Denver, Colorado, October 26th , 2017

149. Vince, M, Kaplan, M, Krueger, R. The Adolescent Sexual Offender Program at New York State Psychiatric Institute. Presentation to the

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New York County Department of Probation, New York, New York,
November 8th , 2017

150. Krueger, R, Kaplan, M. The Diagnosis and Treatment of Individuals Who Have Committed Sexual Offenses-Part I-Evaluation. Presentation at Grand Rounds to the Mid-Hudson Forensic Psychiatric Center, New Hampton, New York, November 14th , 2017

151. Krueger, R, Kaplan, M. The Diagnosis and Treatment of Individuals Who Have Committed Sexual Offenses-Part II-Treatment. Presentation at Grand Rounds to the Mid-Hudson Forensic Psychiatric Center, New Hampton, New York, December 19th , 2017

152. Kaplan, M, Krueger, R. The Sexual Behavior Clinic at New York State Psychiatric Institute. Presentation to Behavioral Health Services, Adult and Juvenile Operations, NYC Department of Probation, New York, New York, January 17th, 2018

153. Kaplan, M, Krueger, R. Child Pornography Offenders. Presentation to

the Manhattan Sex Therapy Group. New York, New York April 10th, 2018
154. Drescher, J, Reed, G., Krueger, R, Kraus, S, Reshuffling the Deck:
Revising Sexual and Gender Diagnoses in ICD-11. Accepted
presentation. Annual Meeting of the American Psychiatric association,
New York, New York, May 7th, 2018
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EXHIBIT B4

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I, " . . ; , ; < > . • 17. n
March 7, 2019
Robert A Bianchi, Esq.
Bianchi Law Group, LLC
4 York Avenue, Second Floor
West Caldwell, New Jersey 07006
RE: S. Bradley Mell
Dear Mr. Bianchi,
.kffrcy C. Sing<: r, Ph.D.
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Joa11m . V, in i\ l' : ; t, Pli. JJ.
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I . ii: 1 C: . ! l. lhn, Ph.D., \ II PP
I, , , . ; , , , , H,) ~

As you know, I have been treating Mr. S. Bradley Mell since August 2018. Since that time, I have met with Mr. Mell for 22 psychotherapy sessions. I am pleased to report that Mr. Mell has been an extremely cooperative and compliant psychotherapy patient Mr. Mell appears to have taken the psychotherapy process seriously, and seems to be highly motivated to better understand his aberrant behavior, and ensure that it is not repeated in the future.

Since you are well versed in the particulars of Mr. Mell's arrest for inappropriate sexual behavior, I will desist from providing such details. Suffice to say that Mr. Mell found himself in a great deal of legal difficulty given his sexual affair. His prior therapist, Dorothy O'Keete Diana, LCSW, referred Mr. Mell to me. Ms. Diana was aware that my practice specializes in the assessment and treatment of sexual disorders, and she believed that I would be better able to assist Mr. Mell than she. By way of introduction, allow me to describe some of my background for such work. I received my doctorate from New York University in 1985 and have been providing sex therapy evaluations and treatments since that time. I am a licensed psychologist in the State of New Jersey, and

In addition to the tragedy of the helicopter crash, Mr. Mell has experienced a lifetime of trauma. His parents divorced when he was in 9111 grade due to his father's extramarital affair with his mother's best friend. He recalls a generally chaotic home characterized by tension and dysfunction, as well as having to testify in his parent's divorce trial against his father. His mother began heavy use of benzodiazepines, and he would often find her passed out at home upon his return from school. His father was an alcoholic and committed suicide. Mr. Mell recalls a highly ambivalent relationship with his father, and vowed to never be like him. Of note, however, is that Mr. Mell began his extramarital affairs when he was the same age as his father was when beginning his extramarital exploits. There are other behaviors that mirror his father's, but none of them manifested until after the helicopter crash and death of friends. Mr. Mell struggled in school as a youth, and teachers suggested he might have been mildly mentally retarded. Later on, he was correctly diagnosed with dyslexia, and was able to succeed in school beyond the expectations of all. In 2003, Mr. Mell was diagnosed with a life--threatening illness of the bile duct, and was told he could expect a life expectancy of another 8-10 years. That was 16 years ago, and Mr. Mell reports living for 1 O+ years

with the palpable sense that he could die at any time. In 2010, Mr. Mell reports having

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his first bout of panic attacks, and the first of several trips to the emergency room thinking that his life was about to end.

Mr. Mell reports significant mortality fears. He refused a 50th birthday celebration, as he was unwilling to acknowledge the aging process. Mr. Mell reported that the two affairs allowed him to fantasize being 18 again. This is not unusual in those cases in which a confrontation with mortality triggers repressed emotions from earlier traumas that threaten one's existence. I have attached a 2017 article I published in a peer-reviewed professional journal that will introduce you to this phenomenon in greater detail. As you can see from this article, "Existential Issues in Sexual Medicine: The Relation Between Death Anxiety and Hypersexuality," uncharacteristic and uncontrolled sexual behaviors can often be precipitated by a confrontation with mortality and death. Mr. Mell's behavior was, by all accounts, uncharacteristic of any of his prior behaviors. This point is particularly salient when assessing the factors that were driving Mr. Mell's inappropriate sexual behaviors. It is for this reason, as well as his traumatic family history, that I characterize Mr. Mell as a trauma patient as opposed to a sex offender. Given the history of this case, most all sex offender assessment instruments would rate Mr. Mell as a low-risk to re-offend. It is also noteworthy that my impressions mirror very closely those of Richard B. Krueger, M.D., an internationally renowned sex offender expert, who performed an independent evaluation of Mr. Mell. Dr. Krueger reports that Mr. Mell had a relatively high score on the Adverse Childhood Experiences Scale, which suggests significant childhood trauma and adversity. In addition, Dr. Krueger reports that Mr. Mell's sexual history is not suggestive of any sexual deviancy, including pedophilia. Dr. Krueger says, "Mr. Mell's risk according to 5 actuarial instruments of another sexual crime is low or extremely low."

I hope this information will be useful to you in your representation of Mr. Mell. As mentioned earlier, he has done very well in a therapy directed at the treatment of trauma. I believe treatment that continues in this direction will continue to be helpful to him. Please feel free to contact me if I can provide any additional information and/or clarification.

Sincerely yours,

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Daniel N. Watter,

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Clinical and Forensic Psychology

Diplomate in Sex Therapy, ABS & AASECT

DNVV/ss

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Ed.D.

M.A.

B.S.W.

New York University, 1985

Montclair State College, 1979

University of Alabama, 1978

Certificate in Medical Humanities, Drew University, 2009.

Certificate of Completion, The Kennedy Institute for Ethics Intensive Bioethics Course 34, Georgetown University, 2008.

Child Abuse Case Consultant Project, New Jersey Governor's Task Force on Child Abuse and Neglect, 10/94 - 11/95.

Certificate in Forensic Psychology, New Jersey Academy of Psychology, 1993.

Certificate in Child, Adolescent, and Family Psychotherapy, The Institute for Rational-Emotive Therapy, 1987.

Certificate, The New Jersey Summer School of Alcohol and Drug Studies (Rutgers University), 1982.

Certificate in Rational-Emotive Therapy, The Institute for Rational-Emotive Therapy, 1981.

CERTIFICATION AND LICENSURE:

Fellow: The International Society for the Study of Women's Sexual Health, 2015.

Certified Supervisor, The American Association of Sexuality Educators, Counselors, and Therapists, 2012.

Clinical Fellow, The American Academy of Clinical Sexology, 1991.

Clinical Supervisor, The American Board of Sexology, "1990.

Clinical Psychologist, (N.J. license #35SI00261500), 1989.

Diplomate in Sex Therapy, American Board of Sexology, 1989.

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Diplomate in Behavioral Medicine, International Academy of Behavioral Medicine, Counseling, and Psychotherapy, 1988.

Marriage and Family Counselor, (N.J. license #FIO1124), 1986.

Certified Sexologist, The American College of Sexologists, 1985.

Certified Sex Therapist, The American Association of Sexuality Educators, Counselors, and Therapists, 1981.

Certified Sex Educator, The American Association of Sexuality Educators, Counselors, and Therapists, 1979.

WORK EXPERIENCE:

Private practice of psychology, Parsippany, New Jersey, 1981-present.

Clinic Supervisor, Psychological Services Clinic, Rutgers University Graduate School of Applied and Professional Psychology, 2015-present.

Adjunct Professor of Psychology, Drew University, Madison, New Jersey, 2007-2008, 2014.

Adjunct Professor of Psychology, Fairleigh Dickinson University, Madison, New Jersey, 2001-2010.

Adjunct Professor of Psychology and Family Therapy, Seton Hall University, South Orange, New Jersey, 2000-2013.

Clinical Assistant Professor of Psychiatry and Behavioral Medicine, New York College of Osteopathic Medicine, June 1998-present.

Clinical Instructor, Department of OB/GYN, UMDNJ-New Jersey Medical School, Newark, New Jersey, 1988-2013.

Clinical Assistant Professor, Department of Psychiatry, New York Medical College-Lincoln Hospital, New York city, 1987-1993.

Assistant Professor, Department of Health Science, The William Paterson College of New Jersey, Wayne, New Jersey, 1981-1988.

Instructor, New Jersey Summer School for Alcohol and Drug Studies, Rutgers University,

1983.

Consultant, New Jersey Division of Alcoholism, Trenton, New Jersey, 1983.

Director of Sex Education, The Psychological Service Center, Teaneck, New Jersey 1980-1982.

HNT-18-000297 06/26/2019 3:23:47 PM Pg 99 of 105 Trans ID: CRM2019548341

Research Assistant, New York University Department of Health Education, New York City, 1980.

Staff Psychotherapist, The Family Counseling Service of Tuscaloosa, Alabama, 1977-78.

Crisis Counselor, Crisis Intervention Center, Tuscaloosa, Alabama, 1976-78.

COLLEGE COURSES TAUGHT:

Consumer Health

Counseling: Sexual Issues (graduate)

Current Health Issues

Drugs and Health

Family Life and Sex Education: Methods and Curriculum (graduate)

Health Counseling

Human Behavior and Health

Human Sexuality

Recent Advances in Sex Therapy (graduate)

Human Sexuality (graduate)

Sexual Counseling and Therapy (graduate)

PROFESSIONAL MEMBERSHIPS AND AFFILIATIONS:

American Association of Sexuality Educators, Counselors, and Therapists

American Psychological Association

American Society for Bioethics and Humanities

Association for the Treatment of Sexual Abusers

International Association for the Treatment of Sexual Offenders

International Society for Sexual Medicine

International Society for the Study of Women's Sexual Health

Morris County Psychological Association

New Jersey Association of Cognitive-Behavior Therapists

New Jersey Association for the Treatment of Sexual Abusers

New Jersey Psychological Association

Sexual Medicine Society of North America

Society for Sex Therapy and Research.

PROFESSIONAL OFFICES AND COMMITTEE MEMBERSHIPS:

Chair, Ethics Advisory Committee, The American Association of Sexuality Educators, Counselors, and Therapists. 2018-present.

Member, Special Classification Review Board of the Adult Diagnostic and Treatment Center, 2015-present.

President, The Society for Sex Therapy and Research, 2015-2017.

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President-Elect, The Society for Sex Therapy and Research, 2013-2015.

Member, Ethics Committee, The American Association of Sexuality Educators, Counselors, and Therapists, 2012-2014, 2018-present.

Secretary, New Jersey State Board of Psychological Examiners, 2010-2012.

Member, New Jersey State Board of Psychological Examiners, 2009-2012, 2017-present.

Chair, Task Force on Fellows, The American Association of Sexuality Educators, Counselors, and Therapists, 2009--2010.

Member, Ethics Committee, Saint Barnabas Medical Center, Livingston, NJ, 2009-2016.

Secretary/Treasurer, The Society for Sex Therapy and Research, 2008-2013.

Chair Diplomate Certification Committee, The American Association of Sexuality Educators, Counselors, and Therapists, 2007-2012.

Chair, Ethics Committee, New Jersey Psychological Association, 2007-2008.

Co-Chair, Scientific Program, Society for Sex Therapy and Research 32nd Annual Meeting, 2007.

Member, Book Award Committee, The Society for Sex Therapy and Research, 2006--2017.

Member, Sex Therapist Certification Committee, The American Association of Sexuality Educators, Counselors, and Therapists 2006-2012.

Member, Certification Revocation Task Force, The American Association of Sexuality Educators, Counselors, and Therapists, 2006-2007.

Member, Diplomate in Sex Therapy Certification Committee, The American Association of Sexuality Educators, Counselors, and Therapists, 2005-2012.

Member, Ethics Committee, New Jersey Psychological Association, 2002-2008.

Chair, Admissions Committee, The Society for Sex Therapy and Research, 2002-2006.

Chair, New Jersey Psychological Association Program Committee, May 1997-December 2000.

Member, Council on Legislative Affairs, New Jersey Psychological Association, 1992-1994.

Grassroots Coordinator for Legislative District 25, New Jersey Psychological Association, 1991-2000.

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Representative to the New Jersey Psychological Association Executive Board, Morris County Psychological Association, 1989--1992.

Member, Interprofessional Relations Committee, New Jersey Psychological Association, 1989-1996.

Member, Program Committee, New Jersey Psychological Association, 1989-2006.

Consulting Editor, THE JOURNAL OF SEX EDUCATION AND THERAPY, 1987-1989.

President, New Jersey Health Education Council, 1986-87.

Vice-President, New Jersey Health Education Council, 1985-86.

Member, Board of Trustees, New Jersey Council on Family Relations, 1985-87.

Recording Secretary, New Jersey Health Education Council, 1984-85.

PUBLICATIONS:

Watter, D.N. (in press). Sexuality and aging: navigating the sexual challenges of aging bodies. In: Y M Binik & K.S.K. Hall (eds). PRINCIPLES AND PRACTICE OF SEX THERAPY, 6TH ed. New York: Guilford Press.

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Watter, D.N. (1986). [Review of PRIVATE PRACTICES: THE STORY OF A SEX SURROGATE]. JOURNAL OF SEX EDUCATION AND THERAPY. 12, 63.

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Watter, D.N. (1985). [Review of WHAT'S HAPPENING TO MY BODY BOOK FOR BOYS]. SIECUS REPORT. 13, 15-16.

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Watter, D.N. (1977). "School Sex Education: A Must!" PROCEEDINGS OF THE ALABAMA-MISSISSIPPI CONFERENCE OF SOCIAL WORKERS. 1, 17-26.

HONORS:

Fellow, The International Society for the Study of Women's Sexual Health (ISSWSH), 2015.
Psychologists Recognition Award, New Jersey Academy of Psychology, 1993, 1997.

Who's Who in Sexology, 1985.

Award for Excellence in Teaching, William Paterson College Health Majors Organization, 1982.

Fellow, The International Council of Sex Education and Parenthood of the American University, 1980.

Research Assistant, New York University Department of Health Education, HI80

Graduate Assistant, Montclair State College Department of Psychological Services, 1978-79.

Phi Alpha Social Work Honor Society, 1978.

National Dean's List, 1978.

Dean's List, University of Alabama, 1976, 78.

REFERENCES:

Available upon request.

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